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Fall 2004

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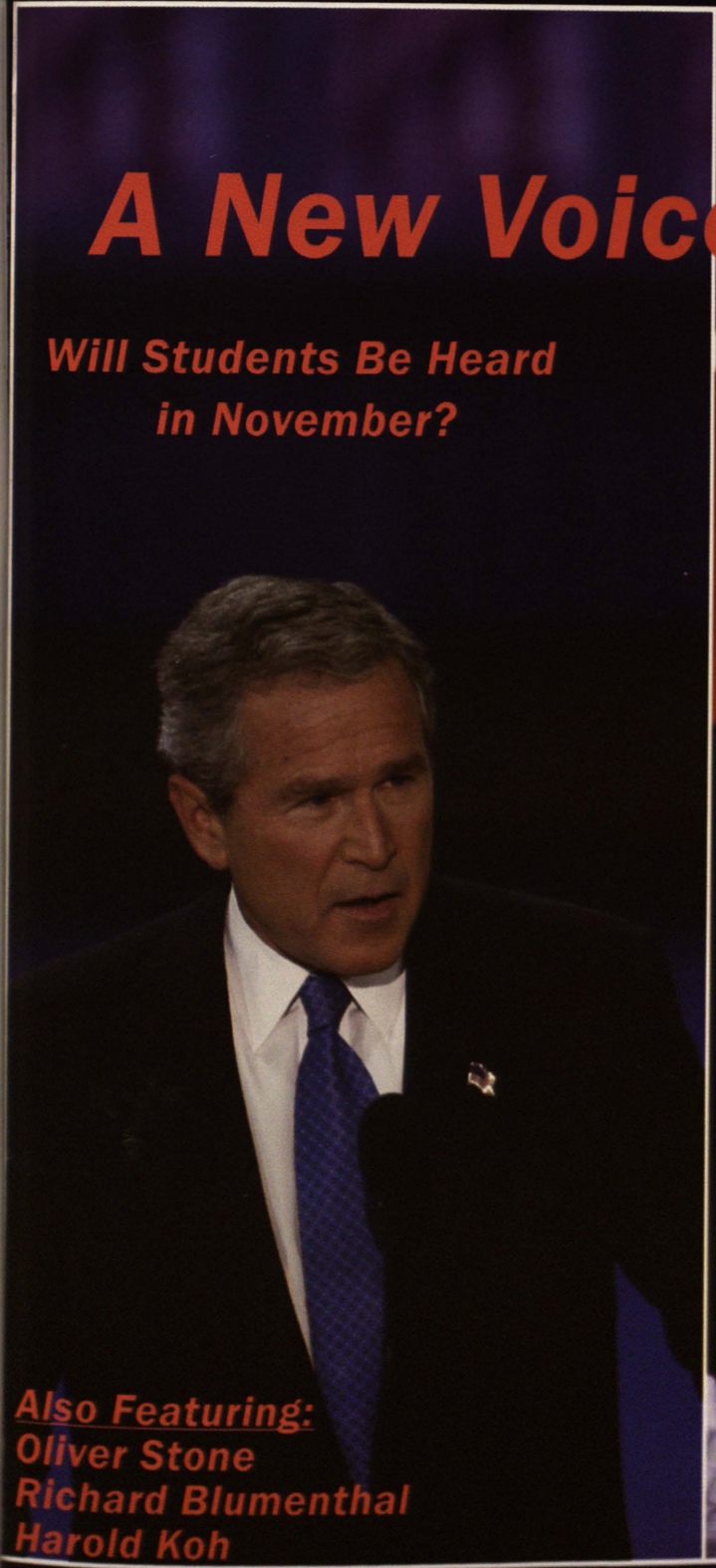
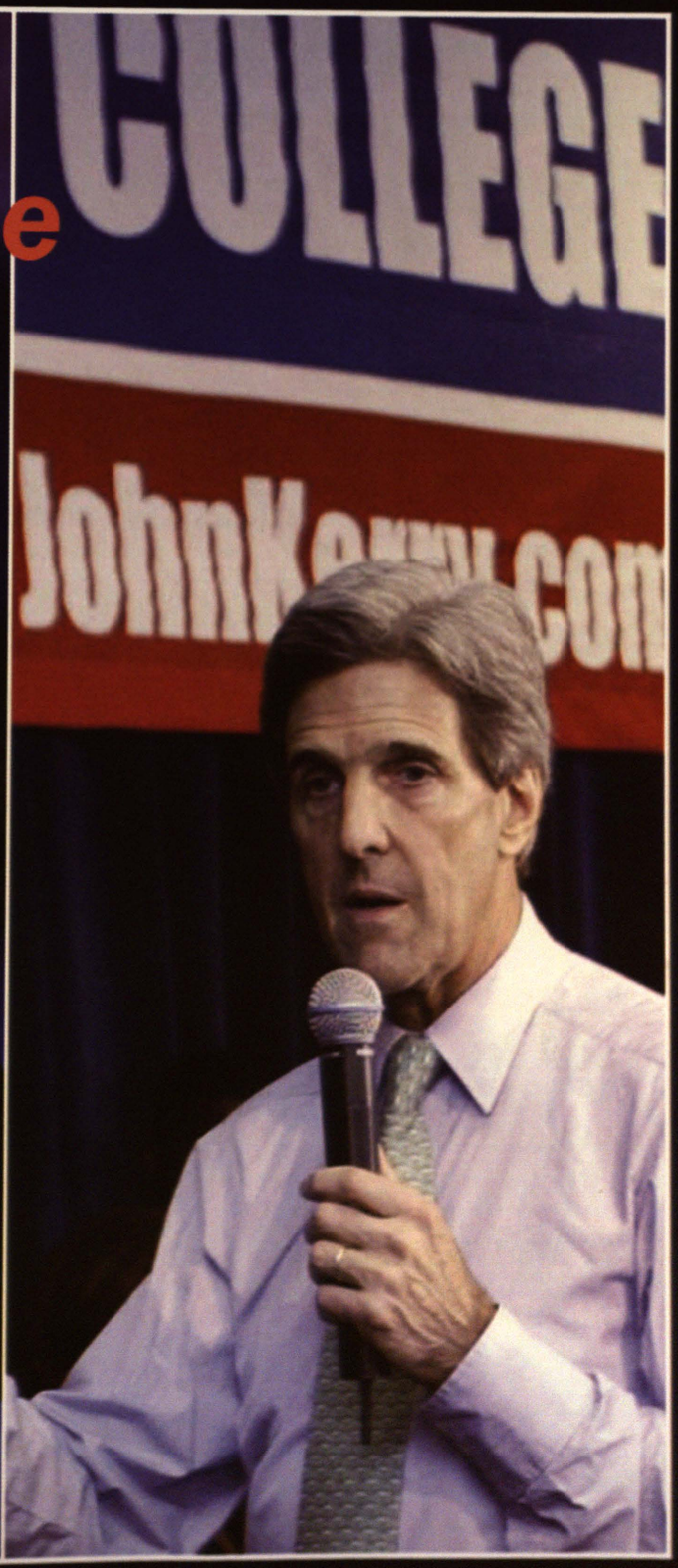
The
# POLITIC
A Yale College Publication

Volume V Issue III
Fall 2004
$5.95

## A New Voice

### Will Students Be Heard in November?






Also Featuring:
Oliver Stone
Richard Blumenthal
Harold Koh

# thank you

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The Politic would also like to extend its sincere gratitude to its Board of Advisers, whose guidance has played a large role in shaping the development and expanding the influence of The Politic.

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Fall 2004

Dear Reader,

As college students ourselves, we on *The Politic* editorial board live campus politics daily. We find world-renowned speakers in our lecture halls, we quibble over ideological differences in our dining halls and protests are often visible from our windows. Thus, when we pondered coverage of the 2004 presidential election, we were drawn to one logical angle of the campaign that we can showcase authoritatively and in an original manner: politicking on college campuses.

While the presidential and vice presidential debates almost always take place on college campuses, and much has been made of the need to "get out the vote," what do students and those who work on campus really look for in their candidates? This issue of *The Politic* seeks to address this question and others through a variety of articles by those on the front lines of collegiate canvassing. Philip Sharp writes about youth voting, Jonathan Zaff and Jennifer Phillips further examine the battle for young persons' votes, Jim Sleeper takes a historical look at Kingman Brewster and the rise of the liberal establishment in academia and Meredith Startz uses the Yale Political Union as a case study on the state of formalized debate on campuses. What we find, above all else, is that campus politics are as intense and unpredictable as ever. When masses of key political actors live, eat and sleep together in close quarters, divergent views are known, and debate is unavoidable.

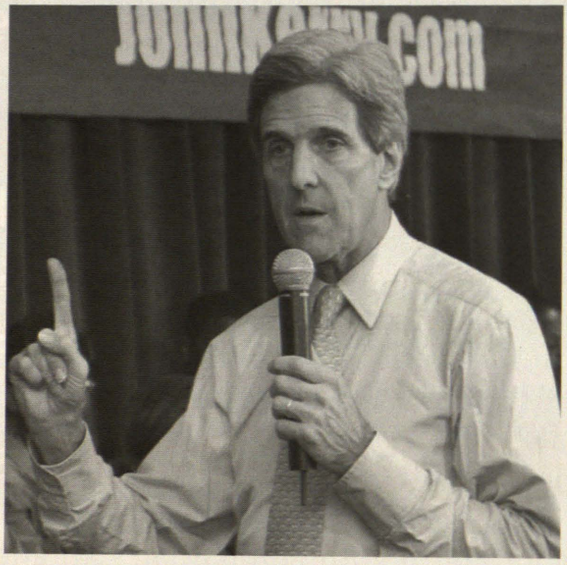
Also in this issue, we are proud to continue our tradition of mixing student and professional contributions. Important established contributors include filmmaker Oliver Stone, Yale Law School dean Harold Koh, Connecticut Attorney General Richard Blumenthal and William Whobrey, who headed the United Nations Liberia Mission.

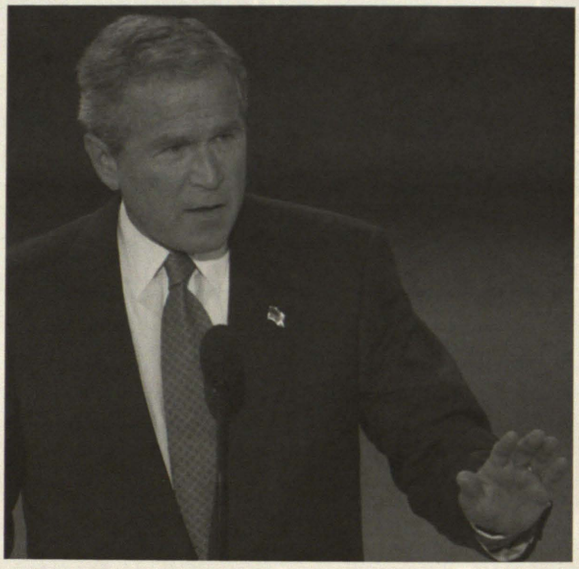
For Tess Monaghan, Steve Siger, Jacob Leibenluft and myself, it has been a pleasure serving you as the 2004 editorial board. We hope we have been successful as we have strived to bring you timely, relevant and interesting political commentary. Thank you for your support, and I urge you to join me in subscribing to *The Politic* for years to come.

Matt Bloom

Matthew Bloom, Editor-in-Chief

# The POLITIC





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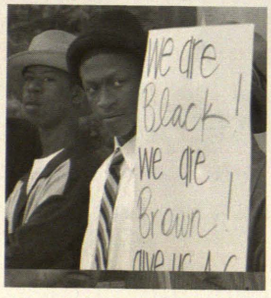


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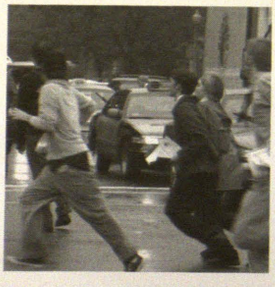

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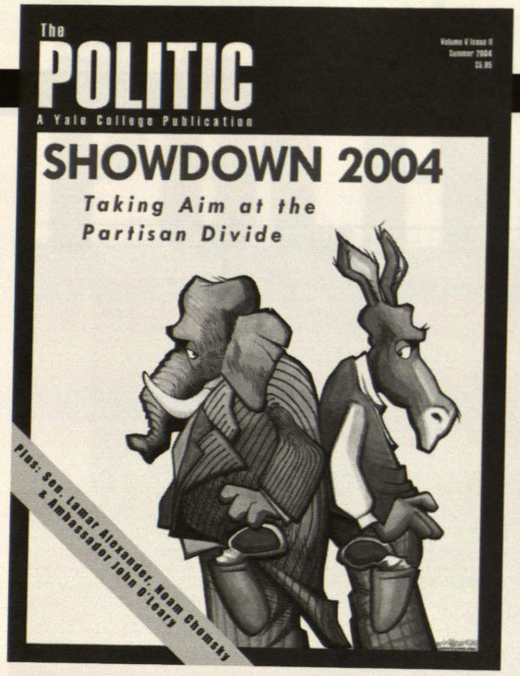


**Re: Political Deadlock in America**
To the Editor:

I think Stanley Greenberg's introspection into the divisiveness of our nation touches on an issue at the forefront of our country's future. However, I do not feel it is as black and white as he does. Greenberg paints the picture of a greedy, power-hungry GOP trying to manipulate innocent Americans and bashing down the liberal freedom fighters. If the Democrats are in a 'trap' as Greenberg has suggested, it is not the Republicans who set it. With the Democrats having clear control of the media, I think the battle is much more evenhanded and even-faced. The two parties are, perhaps now more than ever, distinct entities shooting for a common goal. Is the goal a better America, healthier citizens and lower poverty rates? Or is the goal (for both parties) to control, influence and manipulate the American public? I would argue that the higher up you reach in government, the more the goal shifts from the former to latter. Does John Kerry sincerely care about the issues in his 'platform?' Did Bush enter Iraq because of his pursuit of justice and American safety? Are the two parties elephants and donkeys, or valiant knights and evil dragons? I think they are the same face with different masks. Jefferson knew we were heading in this direction. Being a student of classical antiquity, he remarked, "The natural progress of things is for liberty to yield and government to gain ground."

Mark Schneider
Davenport College '08

**Re: Blue Blood Politics**
To the Editor:

I write to offer some brief insights regarding Tom Hayden's reflections in "When Bonesmen Fight." I partially disagree with Hayden's description of American democracy as a forum for the elite to fight the battles of the masses. Though this upcoming election pits two former members of Yale's Skull and Bones society against each other, we should not forget that this is more of an exception, not a rule, in modern politics. While blue blood clearly helps, American history has shown that it is not a requirement for those who seek the highest office in the land. Even in the election of 2004, the Democratic candidate could just as easily have been John Edwards – who, as we are constantly reminded, is the son of a mill worker. Democracy isn't coming to America as Hayden suggests. It's here.

Charlie Friedman
Timothy Dwight '06

**Re: Political Deadlock in America**
To the Editor:

In his article "Political Deadlock in America," Stanley Greenberg highlighted an important problem in the American political system: the increasing polarization of political parties. To solve this problem, Greenberg urged Democrats to expand their share of the electorate by focusing on underlying social problems in America as opposed to ephemeral political issues.

I found Greenberg's solution to be entirely ineffective. The reality of the situation is a two-party system is no longer tolerable in America. It is preposterous that in the world's foremost democracy, people are forced to choose between two polarized political parties that fail to represent their interests. Rather, our political system should resemble the type of multiparty democracies prevalent throughout Europe. Such a system would provide political parties that range throughout the political spectrum, as opposed to two parties at the extremes of the political system. Only with the development of a multi-party democracy will voters truly have a choice.

Joshua Mukai
Jonathan Edwards '08

**Re: *The Politic***
To the Editor:

As an avid connoisseur of (and sometime contributor to) *The Politic*, I am happy to see the continuous improvement that this undergraduate journal has shown over my years at Yale. Consistently addressing pressing issues that may not get enough play in the mainstream media, *The Politic* has made me a more informed and more conscientious citizen. I must admit that I look forward to distribution day for this magazine, four times a year.

As I graduate and move on after this school year, I sleep more easily with the knowledge that a new generation of Yalies will have *The Politic* to guide them in forming their political views. I know that it has been fundamental in helping me form mine.

Benoit Bewley
Calhoun College '05

*The Politic* welcomes letters to the editors, article submissions, and any and all comments. All articles must be written exclusively for *The Politic*. *The Politic* reserves the right to edit all submissions. Please send all correspondence to **editor@thepolitic.org** or:

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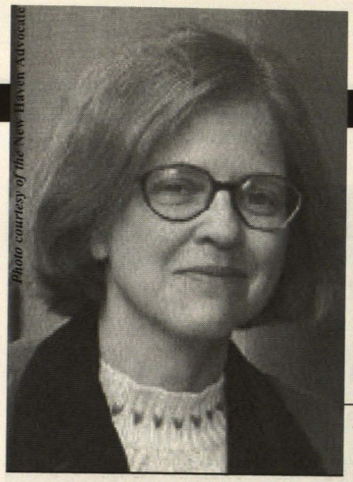


Photo courtesy of the New Haven Advocate

# spotlight on:

# *Cynthia Farrar*

## Lecturer in Political Science and EP&E and Director of Urban Academic Initiatives

On October 11, *The Politic* sat down with Cynthia Farrar, the director of urban academic initiatives in the Office of New Haven and State Affairs at Yale University. In addition to her work at Yale, which has included developing partnerships between the University and the local community and teaching political science, Farrar currently coordinates the Citizens' Deliberations Project with MacNeil/Lehrer Productions.

Farrar has held "citizens' deliberations" in the past, especially in the New Haven region, but in the heat of a presidential election, she significantly expanded her project. On October 16, Farrar helped direct a national "Deliberation Day," where 17 communities across the country held discussions that were broadcast on local public television. In addition to New Haven, where a discussion was held at Yale Law School, the deliberations were held in cities ranging from Cleveland and Pittsburgh to Boise and Lexington, Ky. Beyond the televised discussions, Farrar's project has helped sponsor town hall meetings and other programs in cities and towns throughout the country.

**Can you describe the PBS Deliberation Day event and the idea behind it?**

The idea, initiated by MacNeil/Lehrer Productions, was to bring new voices into the discussion during the presidential year about some key issues that are at stake. The discussions focus on national security and American jobs in the global economy. The events are interesting because they gather a random sample of folks from an area. This sample looks like one from an opinion poll, but here we have discussions about the topics. The participants get background information to read before the event. We call it a "poll with a human face." It is an attempt to engage citizens not just as consumers in the way that polls of various kinds do, but as people who are capable of reflection and discussion. In January we conducted these discussions in ten cities, and now in October we will do 17.

**What is your role, and how did you get involved?**

I am the coordinator of all the Citizens Deliberations nationally. I got involved because I have been running events of this kind in New Haven for the last three years, teaming up with Jim Fishkin who invented this approach. A few years ago I thought that it was worth exploring the possibility of using this as an instrument of governance. If you use this as public consultation at the local level and repeated it you could change what citizens and politicians see the role of the public can be.

I got involved in the MacNeil/Lehrer project because they wanted to move into local communities that would use this approach and have a local and national flavor.

**What topics will the discussion focus on?**

The discussions focus on two topics: national security and American jobs in the global economy. When we chose them months ago they seemed to us to be the two issues that were among the most likely to be the most salient in the presidential election campaign. It is in these areas that decision are going to have to be made in the next four years that will affect everyone. Also, In contrast to the discussions in January, this time we have been able to give each different site a local focus on the job issue.

**Will the information gathered at all the discussion cities be aggregated in some way?**

They all complete the same survey at the end of the day, and at the same time there is a national online poll that represents the country as a whole. We will be reporting the local results and comparing and contrasting them to the national results and to other cities.

**What do you anticipate will be the biggest difference in the way the discussion goes in various cities?**

In January you saw some variation in terms of people's attitudes depending on the regions. Baton Rouge and Nebraska were somewhat more conservative in the traditional sense than some of the other sites. The more interesting differences are about where people start from. Some places have many people with a military background; others have been strongly affected by a recent loss of manufacturing jobs. They all end up talking about the same issues, but approach them from different angles.

# YALIES AROUND THE WORLD

## *An Education Away from New Haven*

Each summer, hundreds of Yale undergraduates travel abroad, whether for study, jobs, or just vacation. *The Politic* asked a few students to reflect on the political climate that they encountered as Americans in a foreign country.

### SYRIA by Nachy Kanfer '06

Meeting new people in Damascus, Aleppo, or anywhere else in Syria follows a formula. What is your name? Welcome to my country. How are you? Praise be to God. How is your family? Praise be to God. What do you think of George Bush? This nation of about 20 million, bordering Iraq to the east and Israel to the southwest, evinces a markedly unanimous political worldview: a general antipathy to Western governmental policy, which they perceive as anti-Arab; a widespread humility, as befits a dominated people; and a robust refusal to allow political agendas to interfere with fundamental Arab values such as intellectual discourse, friendship, and hospitality. One man in Aleppo summed up his country's situation succinctly for me. "We Syrians have to be careful now. We've been surrounded by powerful neighbors – Turkey, then Israel, then Iraq, and now... America. We can't do whatever we like anymore." Another fellow, a taxi driver, addressed my concerns of being profiled as an American in this country, recently targeted with new sanctions from Washington. "No worries. We don't blame people for the actions of their governments – and we would hope you don't blame us for ours."

*Syria's variation on an American classic.*

### SPAIN by Daniel Bernstein '05

My friend and I arrived at Barcelona's train station at 4:25, hoping to catch the 4:30 to Madrid. With our Eurail pass in hand, we thought we could just hop right on board. It only took us a minute, however, to realize that not only did we need a validation stamp, but we also had to wait in line for a police officer to examine our ticket and run our luggage through an x-ray machine. Needless to say, we missed the 4:30.

Upon our arrival in Madrid two hours later than expected, we decided to take the subway to our hostel, rather than drag our luggage uphill for ten blocks. As I tried to make sense of the Metro maps on the wall, I couldn't help but notice that certain stations were closed. They were closed, of course, because terrorists had blown up a train there less than five months ago.

I remember being in New York months after 9/11 and noticing that the whole city was still on edge. Not to mention that flying anywhere in the country was a nightmare. But in Spain, that same uneasiness was not apparent. People went to work, took their siestas, sat at outdoor cafes, and partied at clubs. Perhaps I shouldn't have been so surprised: it was only one bomb that exploded months ago; Spain's been battling Basque separatists for years; and after all, security was certainly tighter at the train stations. Unlike in America, Spain seemed to accept terrorism as a fact of life.

I had been afraid of some lingering resentment over what the Spanish perceived as America's responsibility for their country's role in Iraq. Fortunately, the only political slight I received came from someone in a bar

*A Madrid train station, which implemented new security measures after the bombings of March 11.*

late one night who realized that I was an American college student and asked where I went to school. To my reply she sneered: "That's where George Bush went." But she then began to chuckle: "It's O.K.; if you go to Yale, you must be rich."

## IRAN by William Harper '05

The American public draws upon a certain set of (mis)conceptions when thinking about Iran, fueled by the hostage crisis of 1980, images of ranting Mullahs and its inclusion in the Axis of Evil. Although I have taken numerous classes on the history and politics of the region, my trip this summer to Iran, primarily to conduct research for my senior essay and study Islamic architecture, broke even my "enlightened" understanding of the area. I meet engineering students who were imprisoned for participating in demonstrations back in the late '90s, black-clad fundamentalists who had a hatred for President Bush but loved American citizens, an old cab driver in Tabriz who longed for the days of the Shah, and more Bush supporters than I personally know back in the States. I came away from the trip with a greater understanding of the diverse points of view that permeate the Iranian political culture. But for all our actions in or against the country, in my opinion, Iranians as a whole still view America as a utopian city upon a hill. The challenging task for future American leaders is to walk the fine line between capitalizing on this goodwill for positive change in Iran and insuring that this image is not blemished as it has been too many times in the past.

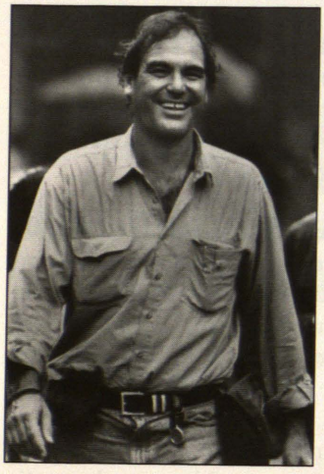
## INDIA by Stephanie Dziczek '06

*"America."* The people I met in India would raise their brows and repeat the name of my country with awe when I told them where I was from. They eagerly offered their impressions: nice country, big, rich, and clean. I nodded in agreement. Yet some Indians would pause dramatically and, with a sly smile add: "George Bush." While the politics of America's presence in Iraq was never a popular topic of discussion, the image of America's flexing its global muscle followed me wherever I went. As the world's largest democracy, India is rapidly developing. Indians take pride in their country and, I realized, do not feel intimidated by ours. In fact, they seem inspired to one day rival our might.

*Women congregate before a conference in India.*

# WHERE ART AND POLITICS MEET

## *A Conversation with Filmmaker Oliver Stone*



Oliver Stone has won three Academy Awards and five Golden Globes for his directing and screenwriting. From bringing viewers into the lives of American soldiers in Vietnam to prompting the U.S. Congress to pass a resolution concerning freedom of information, Stone's films have had a profound impact on modern politics. Stone is truly a man who has outstripped the boundaries of Hollywood and allied serious cultural and political messages with entertainment. *The Politic* had the opportunity to interview him on March 26, 2004.

**How do you feel your movies have influenced American politics?**

*JFK* had an impact in three different ways. The first is that, as a movie, it appealed to many people. Secondly, it worked to liberalize the atmosphere of that time. The year it was released in theaters was a key year because [Bill] Clinton was on the rise, and the people were getting tired of [George H.W.] Bush. *JFK* came at the right time and reflected a new atmosphere of openness about government. Clinton was a part of that wave. On a third level it was seen as a polarizer. It became a political symbol of right versus left despite the fact that it was not based on the right or the left; it was simply an investigation done hypothetically. The film continues to be misunderstood, but at the same time embraced by many. It was a landmark in my life, and it is hard to give a quick answer concerning its overall influence.

When *Platoon* came out in December '86, at the end of Reagan regime, the president was a lame duck. In late '86, Oliver North was brought to trial, and the whole Irangate scandal broke. *Platoon* played into that kind of, "Let's throw open the government, let's open the doors and let the light in," attitude, which affected the military as well.

*Nixon*, a film that I loved, was ignored in a way, which is sad because I think it was misunderstood. Some of my other movies were well-received and weirdly politicized. *Heaven and Earth* was very badly hurt in the 1993 release by a wave of anti-immigrationism at that time. Pat Buchanan was involved with it, and for a year or two they really hated immigrants. That was a lynch mob. My other movies all have histories as well.

**Since you are making a movie about Alexander the Great, how do you think he compares with modern political leaders?**

Alexander was a great military visionary. He also had considerable managerial talents, but he was bored by that. He was a great general, and that involves organization, but I do not think he would have been satisfied to consolidate the empire if he could not keep moving, keep finding new things to conquer. That's what gave him his tremendous propulsion. And he also died young, at thirty-two.

So he cannot be compared to the administrative type leaders that we require today. It seems to me there is no room for visionaries. Visionaries are distrusted, whether they are Fidel Castro or Mao, unless they embrace the free market, globalization concept of those people in power who have the most money. They are mocked, defrocked, reviled and ridiculed in the international media. Marcos was a fascinating man, a very bright intellectual who took up very strong opposition to landowners in Chiapas, Mexico. Of course he was eventually done away with by the international media because they kept upping the ante, asking him to do something bigger, like blow up something or commit some act of violence. He was interested in salvation, truth, peace – it's a very hard game.

I would love to meet the guy in Venezuela, Chavez. Sad story. It is a farce we are trying to get him out of there. Anybody who wants change in this world, not just in terms of politics, but in terms of drama, is in for a hard ride. I do not know why, it just is that way now. Maybe Shakespeare had to code his plays. Maybe the Greek playwrights had to code things; you cannot say anything too directly.

I think that the essence of politics comes down to change or no change. There are always people who are more tolerant of it, and those who are not. I believe all the friction of history is written in that equation.

The group that resists change is generally more willing to kill the group that wants change. Sometimes, the

group that wants change will kill those opposing change, as in the French Revolution, or the Russian Revolution. But this occurs very infrequently in history. Whereas if you total up the volume of dead through history you will find that those who resisted change have inflicted 95% more damage on those who wanted change.

**Fidel Castro is often viewed simply as a stereotypical dictator. After filming a documentary on Castro, what do you think of him and his politics?**

I think you have to look at the film to see what kind of guy he is. I would say first that he is a human being, and you have to listen to him in that capacity. You must listen to him before you judge him. Few people have seen the movie, and most have condemned it without even seeing it. It is very un-American, and I think that he is a guy who makes a hell of a lot of sense. He has a completely contrary view to United States' globalization. He is obviously a socialist, but many of his ideas have led to positive results in Cuba. Of course some have not, but still he has had to face an enormous blockade, with quite a lot of pressure from the beginning. America has been attacking him, not vice versa. And since the beginning, he has been the enemy of Coca-Cola and United Fruit. He took over the land – you do not do that. These American economic powers have never given up and have guided U.S. foreign policy; we have become a colonialist power, supporting these exiles who want Castro out. We could have come to an accommodation with him forty years ago, if Nixon hadn't poisoned the waters. And now, it only gets worse, on both sides.

**We understand that you have done extensive research on a conspiracy involving the government and President Kennedy's assassination. How did such a conspiracy originate?**

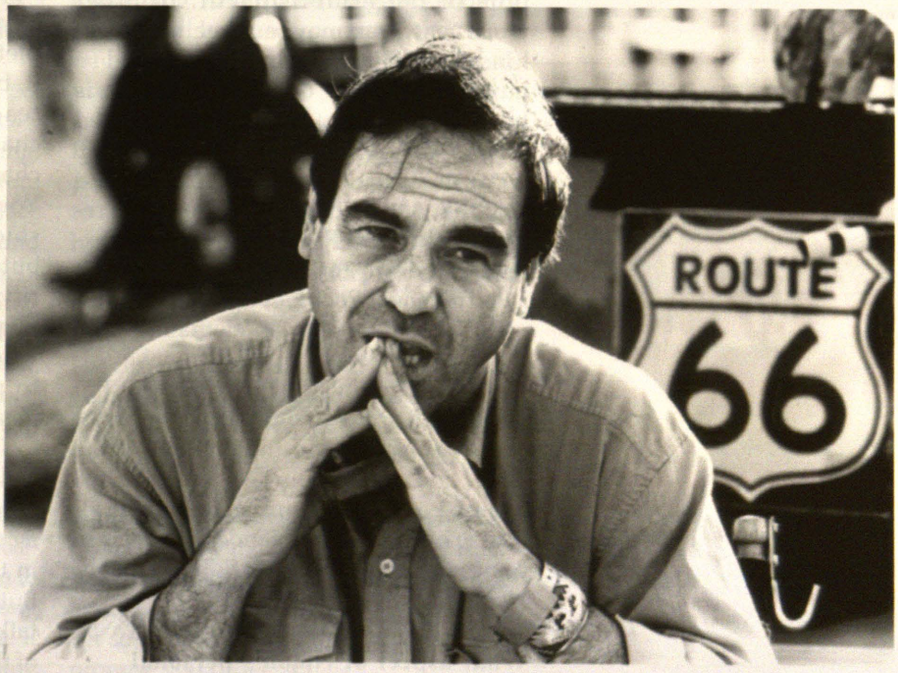
I do not think that the people responsible for Iraq are the same people or anything like that – it is the product of the system. I think Kennedy was killed by the products of the system. I think he was killed by a legitimate force. The things that occurred, all taken together, lead one to believe that there was power involved, and there was a manipulation of events as best as possible to make the outcome as ridiculous as Lee Harvey Oswald shot this man from a window with his broken-down rifle, and behaved as he did afterwards. It was a very strange story.

I do not want to get into the details, but the assassination was a metaphor for failure to come to terms with tragedy in the American mind. Failure to come to terms with Vietnam, and September 11. [President George W.] Bush will not be photographed with a soldier leaving Iraq in a coffin, and yet he will be photographed around 9/11, sucking up to the innocent victims who are not those innocent victims he has killed in Iraq as a result of his faulty decision process after the terrorist attack. Instead of providing security, he has provided every single person in this country with more insecurity. For him to run on a platform of security is an offense to the mind as well as to the heart. It's just so sad. I am heartbroken for America because I love the country, and I feel like it is not really the country I know.

**Are the wars in Vietnam and Iraq similar?**

There are resources out there in the world, and people want them. How to maintain distribution of wealth, how to keep people in America spending money, getting certain people reelected, continuing the cycle of money and power. All the reasons for Iraq can be compared to the same old forces that started Granada and Panama. It is the way America thinks; I call it the beast in Wall Street. It is a system. It is not an elaborate conspiracy, but people are conformists that will go along with the system. There is a certain propulsion of thought, of heart, of emotion, that pulls the leaders of America in this direction of no instead of yes, no change instead of change.

America is all penalties, it is all negativity, it is what's screwed up in our culture in a deep DNA way. We are born without a heart, and we are taught not to have one. I am more concerned about the overall idea of this country, what kind of system of mind we have. In the same



thought, what do we teach kids? What are our values? I suppose I have lived with a fraud for fifty years of my life, but does it become more evident, or does it become worse?

**"Hitler promised law and order, and he basically delivered destruction of civilization. He delivered death on the greatest level we have yet seen. So, beware of those people who promise you order."**

**In the movie *Nixon*, you make clear that Nixon himself was instrumental in our continued presence in Vietnam. How much do you feel one person can influence the behavior of America?**

A tremendous number of people look at the power of George W. Bush or Lyndon Johnson to have America go to war. These were decisions on their part, of course, with huge support systems to keep them going, but there is no question that Johnson could have had a tipping point pulled the other way on Vietnam. I think that part of the question around Kennedy's death has to be the fact that he was withdrawing from Vietnam and had issued orders to that effect. It was on paper, National Security Memorandum 265. [Then Secretary of Defense Robert] McNamara has confirmed that he was going to pull out, as have numerous aides. Kennedy was definitely coming out, but it was Johnson's call at some point, and when he did make moves to pull out, he had the support of the establishment. In other words, he was maybe three years behind, but in the interim he destroyed so much. The horror of the whole story is he drops out because everybody wanted him to get out. The system screws up because instead of replacing him with a guy that would have pulled out, we replaced him with Richard Nixon, who extended the war for another four years. It is outrageous! People were robbed completely by Nixon. It was Vietnamization, that is to say we are going to have less Americans getting killed every week, but we are still going to fight and spend a lot of money and bomb the hell out of the place, and we are going to bomb the hell out of Laos, and Cambodia, which of course ended up in a genocide. It was in some ways worse not to fight it openly. Nixon fought a sneaky war.

**What aspect of Nixon's personal character contributed to America's prolonged stay in Vietnam and his foreign policy in general?**

The part of Nixon that was anticommunist was very significant. I think he had an ingrained fear of expropriation. Communism was certainly the strong arm of the radical phase. But that has never been an issue in America, with the vast populism of the labor strikes.

As I said earlier, those who do not want change have inflicted far more damage on those who do want change. Nixon's mechanism was a small mind; he was a small businessman. His original base was being a small Orange County businessman. I think it is ironic that he became known as the great opener to China. I think that it was probably more a political opportunity to stay alive at that point.

**You made a trilogy of movies about the Vietnam War. Do you think there are parallels between the fear of Communism which took us into Southeast Asia and the fear of terrorism which has taken us into the Middle East?**

As Roosevelt said, "The only thing we have to fear is fear itself." He was completely correct. Many people do not see it, but change is part of life. Buddhism teaches that. Change is inevitable, change is life. Everything is subject to change. We must embrace that concept. You can grab all the rocket defense shields you want, billions of dollars, but you will never have security. Security does not exist; it is a creation of the mind. Ben Franklin said it best, "Those who would give up essential Liberty, to purchase a little temporary Safety, deserve neither Liberty nor Safety."

I believe fear has definitely been a controlling characteristic of the 20th century, as Michael Moore pointed out in *Bowling for Columbine*. I noticed it was coming on in the seventies, with all the crime talk. But the crime talk becomes international talk because of the fear of the Arabs, fear of the Russian influence in Granada, fear

of Panama, fear of drugs, narcoterrorists and poverty. Then there was a war against poverty, war against drugs. Now it is the war against terror. I have lived through all the wars, including Vietnam. It is always a war.

A smart man does not declare war, the smart man declares peace. A fight for peace. And you have to fight hard – I am not a Hollywood delusionist, I have been around the world and seen a great deal. I would fight terrorism tooth and nail, but I would fight it quietly, covertly; I would do the job and go to the places that matter. I wouldn't go to Iraq, I would go to Pakistan. This is bullshit, it's all a lie. The bigger the lie, the more people are going to believe it. It is unbelievable how false values are passed off as objective.

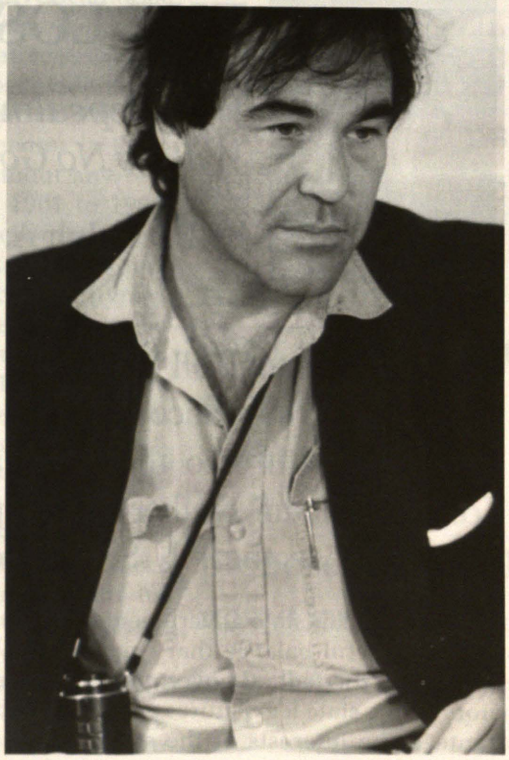
**Do you consider yourself patriotic?**

I am not a patriot. Patriots are always circling the flag. I will fight for things that we have the right to fight for, like basic human rights. Calling yourself a patriot is the last refuge for scoundrels. The concept that a super-state is more important than a human being is wrong. When does a state become more important? That happened in Germany, it should not happen in America.

**At this moment, what do you think of America, and can you briefly describe your ideal vision for America?**

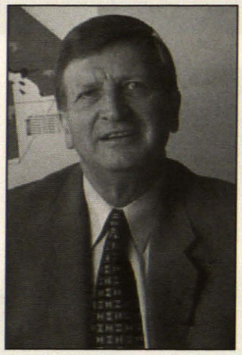
There is no utopia; there never was. America has, since its unique beginning, always been an experiment in freedom and struggle. It has been an ugly place too, with a lot of brutality, lynching and vigilantism. America continues to be a melting pot which is constantly changing. I have lived fifty years in this two hundred and fifty year old experiment, one fifth of it. So I do not know the whole, but what I have seen is pretty interesting, because it is all about freedoms.

In my life, I have felt a certain turbulence, a social trembling around freedom, which I thought was ultimately in a positive direction. And then I saw a reaction to it, and the reaction has really lasted a long time, thirty years much to my surprise. It seems like many arguments concerning whether to embrace change or to reject it are cultural, and date back to the sixties. But it is the same old divides I saw in Vietnam. I am convinced that there are always two blocks of people. The question is to what degree they will fight, to what degree will they polarize and actually damage society. We tremble on the edge of war all the time, we tremble on the edge of crisis, egged on by the money-hungry media. They want a bombing every day, and they get it. It is a shame, but it always stays the same.



I will say that the next fifty years are going to be marked by change. And it might be very good for us to learn what it means to lose face. It might be very good for us if we do end up breaking apart in some way or losing what we have because of our rigidity, or because of our arrogance. It would be a shock to many people, but change always is. Get ready for it. Don't think of it as a bad thing. And try to change the country as you will because you know that in an ongoing experiment, variables are always changing.

There is one thing that I can say is positive, that there will always be a reaction to people like Bush and his cabal. People need to stay angry and motivated to get rid of him. Don't let up. You know their side's view—you have to fight for legitimacy and fight for law and order. The irony is that what Bush is offering is really like Hitler. Hitler was offering law and order. He was going to stop the Bolsheviks, he was going to stop the strikes. He was going to pay the German debt. He was the guy the bankers liked, because he was saying the right words, and they knew he would pay it. He promised law and order, and he basically delivered destruction of civilization. He delivered death on the greatest level we have yet seen. So, beware of those people who promise you order.



# THE LOST FEDERALISM

## *Why Repealing the Seventeenth Amendment Will Do No Good*

by Dr. Ralph A. Rossum

Senator Zell Miller of Georgia made news late this spring when he introduced legislation to repeal the Seventeenth Amendment and return to the original mode of electing senators by state legislatures rather than by popular vote. He argued that letting states choose their U.S. senators would force senators to be more accountable to their state governments and would help restore the careful balance that once existed between the states and the federal government. The election of senators by the state legislatures was "the linchpin that guaranteed the interests of the states would be protected," he said. "Today, state governments have to stand in line. They are just another one of many, many special interests that try to get senators to listen to them. And they are at an extreme disadvantage because they have no PAC [Political Action Committee]." As proof, he noted that Congress had imposed some $33 billion worth of unfunded mandates on the states for fiscal year 2005 alone.

Miller was right to argue that senators are no longer accountable to their state governments and are no longer interested in protecting the interests of the states as states. He was wrong, however, to believe that repealing the Seventeenth Amendment and returning to the original mode of electing senators would cure the specific ills that concern him. The Seventeenth Amendment is a symptom of the disease that afflicts federalism, not the disease itself. That disease is Progressivism – with its contempt for political institutions and constitutional structure and its commitment to simple majoritarian (as opposed to more complex, mitigated) democracy; until that disease is rooted out, the problems that Miller believes will be solved by the repeal of the Seventeenth Amendment will remain unaffected.

We have strayed far from the federal-state balance envisioned by the Founding Fathers. Along with separation of powers, federalism was a critical structural means by which the framers sought to resolve what Madison in *Federalist* No. 51 called the "great difficulty" of establishing republican governments: "You must first enable the government to control the governed, and in the next place, oblige it to control itself." By creating two levels of government and dividing power between them, the framers were able to entrust the new federal structure with far more power than they would have been willing to grant to either the states or the federal government alone. They thereby assured that the new federal structure had sufficient power to "control the governed" and to avoid the near-anarchy that had existed under the Articles of Confederation. And, they assured that both would be obliged to "control" themselves by delegating to the new government only certain enumerated powers and reserving the rest to the states or the people by expressly limiting state power in Article I, Section 10 of the Constitution; by making the Constitution and federal laws passed pursuant to it the supreme law of the land; and by placing the two quite the contrary, "they feel an instinctive contempt for them." Forms, Tocqueville argues, excite the contempt and hatred of men living in democratic ages. Since they "commonly aspire to none but easy and present gratifications" and since the "slightest delay exasperates them," they are "hostile to forms, which perpetually retard or arrest them in some of their projects."

Over time, the public came to have less respect for constitutional forms. Forms – separation of powers, checks and balances, and federalism – were all associated by the Progressives with a mechanistic "Newtonian Theory" of politics that, as Woodrow Wilson insisted, had been superseded by a modern Darwinian Theory. "The Constitution," Wilson argued, "was founded on the law of gravitation. The government was to exist to move by virtue of the efficacy of 'checks and balances.'" However, according

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to Wilson, "The trouble with th[at] theory is that government is not a machine, but a living thing. It falls, not under the theory of the universe, but under the theory of organic life. It is accountable to Darwin, not to Newton." Moreover, constitutional forms were regarded by the Progressives as evidence of the framers' lack of confidence in the people. As Wilson argued in a chapter in his 1912 campaign book *The New Freedom* entitled "The People Need No Guardians": the framers were "willing to act for the people, but . . . not willing to act *through* the people. Now we propose to act for ourselves."

Under the Progressives' tutelage, the people lost respect for constitutional forms, and hence, for the structural protection afforded federalism. They came to associate the election of the Senate by state legislatures with an outmoded, plutocratic constitution. By contrast, the people came to identify direct election of the Senate with reform, faith in the people and progress. The people demanded change, and they eventually prevailed. On May 12, 1912, the Seventeenth Amendment, providing for direct election of the Senate, was approved by the Congress; it was quickly ratified by the requisite three-fourths of the state legislatures in less than eleven months and declared to be part of the Constitution in a proclamation by the Secretary of State on May 31, 1913. Not only was the Seventeenth Amendment ratified quickly but it was ratified by overwhelming numbers. In 52 of the 72 state legislative chambers that voted to ratify the Seventeenth Amendment, the vote was unanimous, and in all 36 of the ratifying states, the total number of votes cast in opposition to ratification was only 191, with 152 of these votes coming from just two legislative chambers: 77 came from the Connecticut House and 75 from the Vermont House.

Why would the states be so eager to ratify an amendment that so profoundly altered the original federal design? Why would they be willing to abandon the principal structural means of protecting the interests of the states as states? Four factors played a role.

The first was legislative deadlock over the election of senators brought about when one party controlled the state assembly or house and another the state senate. From 1885 to 1912, there were 71 such legislative deadlocks, resulting in 17 senate seats going unfilled for an entire legislative session or more. Deadlock was most evident and embarrassing in Delaware; it was represented by only one senator in three Congresses and was without any representation at all from 1901 to 1903. These protracted deadlocks often led to the election of "the darkest of the dark horse" candidates, occasionally deprived the affected states of representation in the Senate and always consumed a great deal of state legislative time that was therefore not spent on other important state matters. Deadlocks thus powerfully served to rally the proponents of direct election.

A second factor was the political scandal that resulted when deadlocks were occasionally loosened by the lubricant of bribe money. Instances of bribery and corruption were, in truth, few in number. Only about one-half of one percent of the elections during this period were proven to be influenced by corruption, nonetheless, these instances were much publicized and proved crucial in undermining support for the original mode of electing senators.

A third factor, closely related to the second, was the growing strength of the

**"Once a convention is called, there is no way to confine its deliberations; such a convention might consider itself authorized to propose other amendments as well – or even to propose an entirely new Constitution."**

***Shift of power**: Before the direct election of senators, state legislatures wielded unparalleled control over the U.S. Senate. In 1913, senators began to be elected by popular vote, shifting the federal balance of power to the national level.*

***Repealing renegade**: Senator Zell Miller (D-Ga.) and his wife arrive for the memorial service of the late Senator Paul Coverdell (R-Ga.). Miller has been one of the Senate's strongest advocates of small government, urging a swift repeal of the 17th Amendment.*

Populist movement and its deep-seated suspicion of wealth and influence. It presented the Senate as a dishonest "millionaire's club." In the House, proponents of direct election proclaimed a need to "awaken ... in the Senators ... a more acute sense of responsibility to the people." And in the Senate, they proclaimed the Senate to be "a sort of aristocratic body – too far removed from the people, beyond their reach, and with no especial interest in their welfare."

When Populism waned, Progressivism waxed in its place, providing a fourth (and perhaps the decisive) factor: The Progressives believed in "the redemptive powers of direct democracy" and were convinced that the people could be trusted to act for themselves. As Wilson proclaimed, government was to be not only "of, by and for" the people, but "through the people."

**"The Seventeenth Amendment is a symptom of the disease that afflicts federalism, not the disease itself."**

As a result of these factors, the public demanded change and repeatedly carried this message to the Congress itself through direct petitions. Beginning with a petition from the citizens of Kendall and LaSalle, Illinois, dated January 18, 1886, and continuing through the day the Seventeenth Amendment received congressional approval, the Congress received a total of 238 petitions from farmers' associations, labor groups and other citizens' groups calling for direct election of the Senate.

Even the states themselves demanded change. Beginning with a memorial from the California State Legislature on February 18, 1874, and continuing through congressional adoption of the Seventeenth Amendment in 1912, the Congress received a total of 175 memorials from state legislatures urging adoption of direct election of the Senate. State legislatures did more, however, than merely memorialize Congress. Thus, by 1912, thirty-three states had introduced the use of direct primaries. The direct primary democratized the election of senators in the same way that the election of the president had been democratized. Just as state members of the Electoral College cast their votes for the presidential candidate who had received the greatest popular vote in the state, so the state legislatures were asked to elect that candidate for the Senate who had received the greatest popular vote in a preferential primary.

The states took another decisive step as well; they exercised their power under Section V of the Constitution and called for a convention to consider amending the Constitution to provide for direct election of the Senate. Calling for a constitutional convention was a high-risk strategy. Article V of the Constitution makes no provision for the manner of selecting and apportioning the delegates to such a constitutional convention, for the place of holding such a convention, for the rules of its proceedings or for the scope of its au-

thority. As a consequence, many have argued that once a convention is called, there is no way to confine its deliberations; such a convention might consider itself authorized to propose other amendments to the Constitution as well – or even to propose an entirely new Constitution organized on completely different principles. Nevertheless, the states seemed willing to risk opening this Pandora's Box for the sake of securing direct election of senators. By 1910, effectively thirty of the thirty-one state legislatures then required to call a convention had formally petitioned the Congress. Arizona and New Mexico were about to become states and were expected to increase the ranks of those supporting such an amendment to what would then have been the required thirty-two. The fear of a "runaway" constitutional convention, along with the fact that most senators represented states whose legislatures were on record as favoring direct election of the Senate, proved decisive. Thus, on May 12, 1912, the 62nd Congress finally approved the Seventeenth Amendment by a vote in the Senate of 64 to 24 and by a vote in the House of 238 to 39.

What is particularly noteworthy of the decades-long debate over the adoption of the Seventeenth Amendment was the absence of any serious or systematic consideration of its potential impact on federalism. The consequences of the Seventeenth Amendment on federalism went almost completely unexplored. The popular press, the party platforms, the state memorials, the House and Senate debates and the state legislative debates during ratification focused almost exclusively on expanding democracy, eliminating political corruption, defeating elitism and freeing the states from what they had come to regard as an onerous and difficult responsibility. Almost no one (not even among the opposition) paused to weigh the consequences of the amendment on federalism.

Most political leaders during this lengthy campaign to secure the adoption and ratification of the Seventeenth Amendment clearly did not appreciate the framers' understanding that the principal means of protecting federalism and preventing the transfer of the "residuary and inviolable sovereignty of the states" to the national government was the mode of electing the Senate. They did not worry about altering constitutional structure, because they embraced the Progressive notion that the Constitution is a living organism that must constantly adapt to an ever-changing environment. They did not worry that their alterations would break a Newtonian, clock-like mechanism; rather, they believed in and celebrated the Darwinian adaptability of the Constitution and the evolution of its principles.

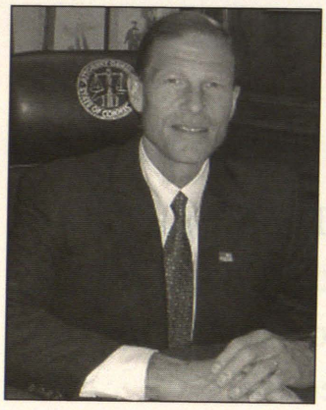
Abraham Lincoln's 1838 speech to the Young Men's Lyceum suggests why they were oblivious to the impact that direct election would have on federalism – and also why Senator Miller will find that repealing the Seventeenth Amendment will have no practical effect without a fundamental change as well in the political and social forces that led to its adoption. In that speech, Lincoln described how the founding principles of the republic were "fading" from view. He did not fear that they would ever be entirely forgotten, only "that like every thing else, they must fade upon the memory of the world and grow more and more dim by the lapse of time." Nevertheless, Lincoln warned, the consequences were profound. Those founding principles "were a fortress of strength; but what invading foeman could never do, the silent artillery of time has done; the leveling of its walls."

To invoke Lincoln's imagery, in the glare of the Progressives' white-hot confidence in the justice and superiority of simple majoritarian democracy, the framers' arguments for relying instead on a more complex, mitigated democracy "faded" from the public's view. Over an 86-year campaign to make the Senate more democratic, the people's memories of the framers' understanding that federalism could only be rendered secure by the mode of electing the Senate "gr[e]w more and more dim by the lapse of time." They no longer appreciated the importance of constitutional structure, and so, aided in their attack by the "silent artillery of time," they leveled the walls of federalism. With or without the Seventeenth Amendment, we continue to live with the consequences of this successful assault.

**"Today, the concentration of power in the federal government and the diminution of states to almost meaningless political entities jeopardize the framers' solution to the central problem of republican government."**

# THE DEMOCRATS' NEXT CONTENDER

## *A Conversation with Connecticut Attorney General Richard Blumenthal*



Richard Blumenthal has served as Connecticut's Attorney General for an unprecedented four terms since his first election to the office in 1990. As Attorney General, he has focused his attention on fighting Big Tobacco while protecting consumer rights, civil rights, and the environment. Blumenthal graduated from Yale Law School, where he was editor-in-chief of the Yale Law Journal, in 1973. On August 13, 2004, he sat down to speak with *The Politic*.

**You have been a leader in the fight against Big Tobacco. How long will this fight last and what is your ultimate objective?**

The fight will last until tobacco ceases to be a threat to the health and quality of life in this country of literally millions of Americans who become addicted and suffer from disease as a result of Big Tobacco marketing its products to children. The ultimate objective is to stop marketing to children and to regulate cigarettes and other mechanisms that deliver nicotine as drug delivery devices. In other words, the Federal Food and Drug Administration should regulate tobacco, and hopefully eventually stem and stop its use – or at least change the nature of the product so that it ceases to be addictive and harmful.

**How far are we from a comprehensive, national measure that would reimburse taxpayers for tobacco-related medical costs?**

The objective of our lawsuit was to reimburse taxpayers for medical costs and partly we accomplished that goal. There is also a federal lawsuit pending that seeks reimbursement for the cost to taxpayers through government health payment programs. And there is legislation pending before the United States Congress that would provide authority to sue government organizations to regulate production or sales of tobacco products. We are potentially nearing a national measure, but whether it will provide for full complete and fair reimbursements to taxpayers remains to be seen. And how effective it will be in regulating tobacco is also an open question.

**Some officials, including former FDA Commissioner David Kessler, have called for the regulation of nicotine as a drug. Do you think that putting tobacco under the purview of the FDA is absolutely necessary?**

I believe that it is absolutely necessary. I agree with Dr. Kessler and have for many, many years. Indeed, one of the objectives of our lawsuit in settlement discussions with Big Tobacco – and eventually the first settlement that we reached – was to achieve FDA regulation of tobacco. I view that authority as an absolutely vital step. We cannot ban or prohibit tobacco overnight. We would create a black market that would make Prohibition look like child's play, because we have more than 40 million people in this country addicted to tobacco. Banning the product immediately and completely is simply not an option. We need the FDA, or some equivalent agency, to oversee, scrutinize, and regulate the product, eventually perhaps making it less addictive by reducing and at some point eliminating nicotine – and gradually achieving the same end or objective as a ban.

**Many smokers are upset about the recent trend of outlawing smoking in restaurants, bars and other public places. What is your position on this issue, and do you think that this is taking the crusade against tobacco a little too far?**

When we look back, in probably just five or ten years, on the bans in restaurants and bars – and other measures against second-hand smoke – we will see them in much the same light as we do now the bans on smoking in airplanes. If you were to enter an airplane, and someone were to light a cigarette, you would view it as utterly bizarre and outrageous. I think that much the same attitude will prevail in five or ten years about smoking in restaurants and bars for many of the same reasons. It is a danger to health; it causes all the same diseases that smoking itself does. Second-hand smoke is a proven killer. It also reduces enjoyment of the food and the dining-out experience. People simply cannot easily escape it once they are seated in a bar or restaurant. Now, the answer of those who disagree with me is, "There are smoke free areas." At the Yale pool – at Payne-Whitney – if you were to say that we are going to have a chlorine-free section in the pool, that we will put the chlorine in one end and you

can go swim in the other end, people would obviously regard you as delirious. The same is true of ventilation systems and other kinds of air-circulation mechanisms in restaurants. The air cannot be simply barred from one section to another. I think that the legislature has a right and a responsibility to take justified public health measures – and this one is justified.

I regard as a more serious issue the increasing amounts of taxes on cigarette sales, because it is a very regressive way to help stop people from beginning to smoke. It is aimed at the youngest people by imposing an additional economic burden on kids who may be tempted to start smoking, since they have the least amount of disposable income, but it also imposes a burden on lower-income people who are already addicted. I have long advocated that we provide help to them in cessation and treatment programs – whether patches or pharmaceutical drugs or counseling – so that they can break an addiction that also carries an increasingly heavy economic burden.

**Connecticut state politics have obviously been somewhat tumultuous this summer. What is your take on the resignation of Governor Rowland and what implications might this have on Connecticut's near future?**

His resignation is clearly the right step. Governor Rowland's resignation was the result of various investigative steps that have uncovered very serious wrongdoings that have been attributed to him and acknowledged by him. I think it was clearly a necessary step for him to take, and probably best served his interest and the state's.

**How can Connecticut's leaders regain the public trust?**

What is needed now to recover the credibility and integrity of the state government is a thorough, comprehensive reform program. I have proposed a 19 point program that would include, for example, an oversight board to supervise all state contracts; a false claims act imposing potential penalties and recovery of damages in cases of wrongdoing; recovery of state pensions from state officials who violate the public trust; a ban on all gifts, without exception. There needs to be more than just rhetoric and talk. Actions speak louder than words. We need very specific reform proposals that would overhaul and reform the way the state does business. The wrongdoing was *enabled* by flaws in the system. It is more than just a couple of state officials acting dishonestly. Their dishonest abuse of public trust was enabled by faults in the current system. We need to restore Connecticut's good name by enacting measures that achieve a more accountable and transparent system.

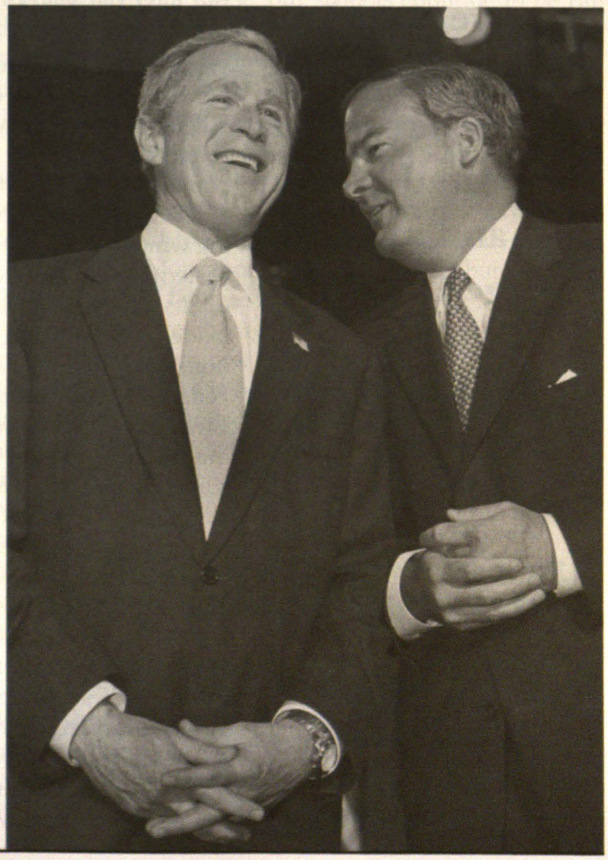
**Where do you see yourself in five or six years?**

I wish I knew the answer to that question. My focus right now is on being the best possible attorney general that I can be. I love this job. It works well for my family, particularly my four young children. I have always believed that opportunities arise for people who do the best possible job they can in the position they have. Obviously there are opportunities and challenges that I would welcome, whether as governor or some other position, but at this point my focus is on the job I have right now.

**What is your role, and Connecticut's role, in the War on Terror?**

Unfortunately, federal support and funding for states and municipalities has been woefully inadequate, both in the amount and the allocation. The federal government has simply failed to provide sufficient resources for coastal states like Connecticut that have ports and other transportation facilities that could be vulnerable, or nuclear fa-

**"We cannot ban or prohibit tobacco overnight. We would create a black market that would make Prohibition look like child's play."**



***In the hot seat**: Former Connecticut Governor John Rowland stands with President George W. Bush at a Republican fundraiser. Rowland was forced to resign his post this summer amid allegations of corruption. Attorney General Richard Blumenthal is currently involved in investigations into these alleged crimes.*

cilities that are susceptible to terrorist attacks. The simple answer is, Connecticut's role has been less than perhaps it should be, but we gather information, we seek to protect our most vulnerable facilities and we work to cooperate with the federal government.

**You have been a very strong advocate of Senator John Kerry's presidential campaign. With Senator Kerry in office, would you be in a better position to fight the War on Terror?**

I think that Senator Kerry will do a better job in fighting the War on Terror for the reasons that he has stated better than perhaps I can. Maybe most important is that he will be absolutely accurate and truthful in what he tells the American people. He has the experience of a combat-seasoned veteran. He knows how a war – including the War on Terror – has to be organized and strategized. He has a sense of where we are vulnerable and how intelligence has to be better obtained. Those reasons are some that I think show how he will be more effective as a commander-in-chief.

**What are the major legal battles that you anticipate states dealing with over the next ten years?**

We are fighting some of them right now. For example, on the environmental front, where the federal government has simply abandoned the field, we are suing power plants in the Midwest that create the smog and acid rain that is blown by the prevailing winds to Connecticut and other northeastern states. We are suing those power plants for the sulfur dioxide and nitrogen oxide contamination they cause in violation of the Clean Air Act. We are suing the Federal Environmental Protection Administration for failing to enforce the law and indeed undercutting that law. We are also suing the five major emitters of carbon dioxide because of its effect in causing global warming, a very severe danger in the next five or ten years. In all of America – most particularly coastal states like Connecticut where global warming causes increases in insect-borne diseases, eroding shorelines, increasing temperatures, damage to natural resources and health – there are many battles to be fought for preserving clean air, water, and natural resources.

On healthcare, we are going to be fighting for full disclosure of clinical trials and tests that a public has a right to know, as well as for an end to monopolistic practices by major pharmaceutical drug companies in restricting competition from generic drugs that would provide cheaper, equally safe and effective remedies. There needs to be a reduction in the cost of pharmaceutical drugs, whether by importing from Canada or some other means. There are an array of abuses and waste in our healthcare system that pose potential violations of law or call for reforms that have to be legislated through the Congress or state legislatures. In our securities industry there continues to be a need for stronger scrutiny, oversight, and law enforcement. In many other areas the federal and state governments can form an alliance or partnership – and sometimes we take the initiative where the federal government fails to be proactive.

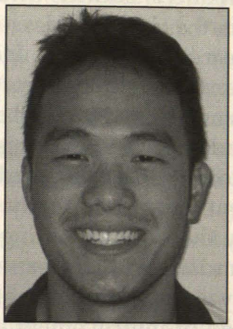
**In the past, you have served as volunteer counsel for the NAACP Legal Defense Fund. Are there any issues that you tackled then that you continue to focus on now in your current capacity?**

I was a volunteer counsel for the NAACP Legal Defense Fund in representing a black man convicted by an all-white jury of murder, who was then on death row for about eight years. As I learned – and proved – he was wrongly convicted. He simply did not do the crime. Eventually he was exonerated, but he came within a few hours of his death by execution – he had his head shaved and ate his last meal. So I have a very keen sense of the need to work toward a more effective and fair justice system.

**Has your experience as a defense attorney made you a better prosecutor today?**

Yes, it has given me a greater sensitivity to the potential for errors or mistakes. No prosecutor believes that he or she is infallible. Certainly I have seen the system from both sides – as a federal prosecutor, as a defense attorney and now as a state law enforcement officer – and I am always mindful of the need to second guess myself.

**"Governor Rowland's resignation was the result of various investigative steps that have uncovered very serious wrongdoings that have been attributed to him and acknowledged by him."**



# RE-EDUCATING AMERICA

## *How Policy-Makers Have Failed This Nation's Youth*

by Aaron Tang

Look closely. Somewhere in middle America where two presidential candidates ask desperately for your vote, dig deep beneath the dialed-up rhetoric of 2004's sexiest campaign issues – Iraq, the War on Terror, our troubled economy, even same-sex marriage – and you will find two very different pictures of what education is like in America. On the one hand, the incumbent president will tell you that American children are no longer being left behind, that a standards-based reform system implemented as the result of the 2001 No Child Left Behind Act has reversed the troubling trends of the late 20th century, propelling us into a golden era of American education. As President Bush remarked in his 2004 State of the Union Address, "By passing the No Child Left Behind Act (NCLB) ... [w]e are making progress toward excellence for every child in America ... and the No Child Left Behind Act is opening the door of opportunity to all of America's children."

The challenger will tell a different story. John Kerry's website announces that today, "[s]chools do not have the resources they need to succeed, Washington is not working to make reform succeed and children are losing out. One million students are dropping out of high school every year, and because the price of college has risen by 35 percent over the last three years, 220,000 qualified young people were priced out of college last year." Moreover, Kerry, alongside the rest of the Democratic Party, has criticized the President for not investing enough money into education, under-funding NCLB by some $27 billion.

Which story is true? Simply put, neither. President Bush's picture lacks an accurate grasp of reality. Since 1989, high school graduation rates have fallen from 74 percent to 68 percent today, according to Harvard professor Gary Orfield. SAT scores are down 39 points from their 1967 high; scores on the National Assessment of Educational Progress have languished in the past two decades, particularly for minority groups; and in 1999, United States 12th graders outperformed students in only two of 21 countries that participated in the Third International Math and Science Study. Nationwide, only half of all high school graduates who start college will complete it, and a good many must take remedial classes in order to even begin meeting the requisites of a college curriculum.

To make matters worse, our schools continue to be rife with pernicious inequality: place an average 17-year-old African American or Latino student in the same classroom with an average 13-year-old white student, and the two will likely be academic peers, according to the National Center for Education Statistics. Looking down the road, a 24-year-old white male will be twice as likely as his African American counterpart and five times more likely than a Latino 24-year-old to hold a bachelors degree. In terms of wealth, Thomas Mortenson writes that a child born into the highest quintile of families is seven times more likely to obtain a college degree by age 24 than a child born into the lowest quintile of families.

But Kerry's picture is not entirely correct either. The sitting president has funded education at record levels every year he has been in office, far surpassing the Clinton federal education budgets. The FY 2005 federal budget contains 49 percent more money earmarked for education than President Clinton's FY 2001 budget – $50 billion, up from $34 billion – an increase which easily outpaces the overall increase in government spending. And yet what does the challenger wish to propose as a centerpiece to his education plan? Create an education "trust fund" to prevent education spending from being *cut* by congressional budget hawks.

What should we take from these competing notions of American education? A simple fact: the quality of education that we provide to our nation's youth *has* changed very little, *is* changing very little, and no matter who we elect in 2004, it

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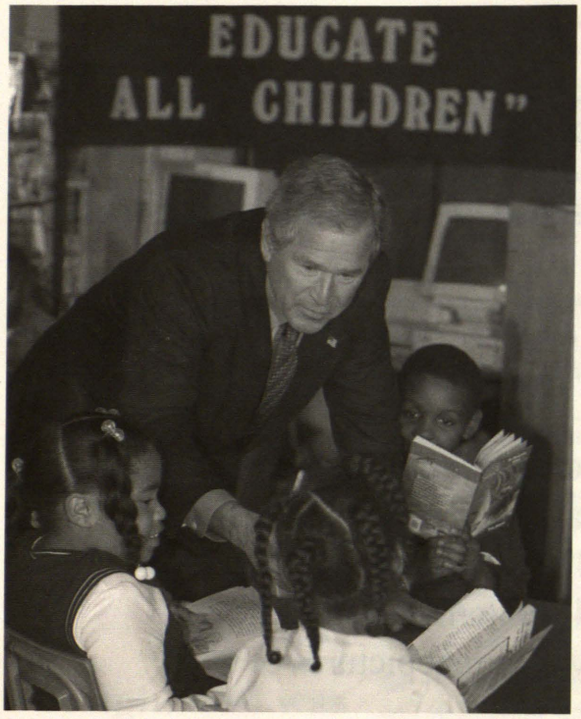



***Class act**: President George W. Bush speaks with children at a St. Louis elementary school. His controversial "No Child Left Behind Act" has been hailed as much-needed reform by its supporters while written off as ineffective standardization by its opponents.*

**"Moreover, any standards system that sets adequacy as the bar as opposed to excellence, as the state standardized tests do, is by definition destined to expect only mediocrity from students."**

appears that it *will* change very little.

This is a saddening portrait, until we realize that it is also an instructive one; after all, from every failure can be garnered a lesson. The lesson to be learned is this: politicians today are ever more arguing on the margins of education reform, even while American children hang in the balance. For example, much has been said about the pros and cons of school choice – but even if the most optimistic of research studies are correct in concluding that publicly funded school vouchers can yield a six point gain in student achievement for those who are able to opt out, what of the millions more who are left behind? Standardized testing may begin to hold schools accountable for student performance, but so long as states can define "success" and "failure" as they wish, we will continue to see variation that can only be described as completely unbelievable. Two years ago, Michigan had 1,500 failing schools while Arkansas had not a single one. John Kerry's "education trust" proposal is just yet another plan in this long line of marginal reform – a red herring that will make little difference for students in our nation's lowest-achieving schools. In short, every hour that is spent debating the nuances of NCLB, funding levels, school choice, vouchers and standardized testing is an hour wasted arguing over policies that have remarkably little chance of actually improving the quality of student-teacher interactions in classrooms throughout America.

Even the two things that we *do know* matter in increasing student achievement continue to receive mere lip-service: high student expectations and teacher quality. With regard to the former, standardized testing and accountability may appear to be a means of increasing teacher expectations of students, but parents and students know better from first-hand experience. Too often the result of standardized tests has been to water down innovation in the classroom; the product is students who are expected to fill in the right bubbles – not students who are expected to excel. Moreover, any standards system that sets adequacy as the bar as opposed to excellence, as the state standardized tests do, is by definition destined to expect only mediocrity from students, not superiority. Yet states do exactly this because setting excellence as a standard would mean that virtually every school in each state would be in need of improvement – an honest, ambitious and laudable challenge that no state would invite on itself with federal funding in the balance.

Concerning the latter, NCLB's teacher quality provisions also face immense challenges, chief among them the entrenched interests of schools and teacher unions. The Department of Education has done well to fund programs like the American Board for Certification of Teacher Excellence, which aim to increase access to the classroom. But as long as teachers continue to be hired, fired, rewarded and punished without any regard for their actual abilities to improve student learning, little real progress will be made.

And so our question then becomes, if not debating the details of education policy, what should we spend our time on instead? Put simply, we must return to the basics. The fundamental question is simple: Does every American child receive a high quality education?

Quite obviously, the answer is no. And so the challenge we confront is how to make it so that all American youth will be guaranteed the right to a quality compulsory education. Few will argue that such a guarantee is a bad thing for this nation or her people; education is, in the end, the bedrock upon which the stability and progress of a free society is founded. But education is more than just a safeguard for the masses in preserving our republican form of government – it is the very means by which the well-being of a people is secured. The Declaration of Independence famously declared a certain set of truths to be self-evident, "that all men are created equal, that they are endowed by their Creator with certain unalienable Rights, that among these are Life, Liberty and the pursuit of Happiness." Education may have been Jefferson's protectorate for life and liberty, but in today's world the pursuit of happiness is also hardly possible without social, economic and technological advancements

– advancements that depend on the innovation, integrity and work ethic that only a high quality education can provide.

Agreeing that the education of our youth is essential to the preservation and progress of our society, we need to look next to the U.S. Constitution for guidance. What does the Constitution say about the education of our youth? Not a single thing. We preserve for our youth a right to brandish handguns even as these same youth are banished to failing schools with perilously low-expectations and far too few outstanding teachers. In more recent debates, it has been proposed that the right of same-sex couples to be married should be explicitly and preemptively banned in our nation's holiest document lest state legislatures begin securing it of their own accord. Yet in the year that has passed since this same-sex marriage amendment was first discussed, some one million American students have dropped out of high school and millions more have experienced little educational progress in dilapidated, overcrowded and under-resourced schools throughout the nation. All the while, inequality grows in our society and American workers struggle to compete with their international counterparts.

Without a constitutional mandate that all children receive a quality education – that education is in fact a fundamental right on par with suffrage and free speech – the burden has fallen on local districts and states to define and measure thresholds of acceptable achievement. The result has been all too obvious: what is high-quality in Westchester, N.Y., is different than what is high-quality in New Haven, Conn. Without a federal declaration that all children are afforded a right to education, too many children in all manners of districts, rich and poor, continue to be shuffled through the system without adequate support and attention.

As it stands, only eight percent of the total amount of money spent on K-12 public schooling comes from the federal government. Even the amount that the federal government does contribute is trivial when compared to other social programs – education spending makes up less than two percent of the annual federal budget. If one accepts the premise that more resources are a necessary (if not sufficient) condition for school improvement, the greatest potential for impact lies in federal tax coffers. Although one should be wary of input-oriented evaluations of educational equality, it is not an overstatement to argue that the 2000-2001 school year disparity of nearly $7,000 between per-pupil expenditures in New Jersey ($11,248) and Utah ($4,674) cannot be legitimately justified. Furthermore, state-by-state attempts to assure equitable resource allocation *within* states have met with inconsistent results; state supreme courts in Oklahoma, North Carolina, and Wisconsin struck down school-funding equalization measures while supreme courts in Montana, Texas, and Ohio have affirmed robin-hood type schemes. The poorest school districts in these states often tax themselves at much higher rates than the wealthiest districts, but nonetheless reap far less revenue per student. Only a federal effort to level the educational playing field will ensure that students in poor districts and states receive a quality of education commensurate with the education afforded in the rest of America – without robin-hooding funds and resources away from wealthy suburbs. Should it decide to leverage its considerable financial and human resources toward educating youth, while respecting the concerns and experience of educators and parents, the national government could be a powerful facilitator of positive change.

The chronic bankruptcy of our national education system does not need to be eternal. Indeed, the absence of a constitutionally guaranteed right to a quality education appears to be grounded, quite weakly, in two concepts that were at the outset never intended to abridge the instruction of our youth: an inclination for localism and a concern for judicial activism. In the former instance, education has been regarded as a matter of local concern since the Northwest Ordinance of 1787 which provided that section 16 of each new township would be set aside for school purposes. What has evolved has been a system of public schooling that values local control at a premium, the notion that parents and community members should have a say in how to run their schools.

While this idea may be true – parents do, in many cases, know best (though I would submit that more often, students know *better*) – it is no longer quite as important a fact as it used to be. Two centuries ago, parental and local control over schools was critical because area families needed to have flexibility to change school schedules to fit with farming schedules. Today,

**"The *similarities* of the challenges that face children today are much greater than the *differences* that once separated them along geographic, racial, and economic lines."**

**"More is spent on schools every year, but the schools themselves often get worse."**

of course, society has changed. The "religion of localism" emerged as a natural outgrowth of the founding fathers' distrust for a powerful central government, and there is reason to believe that locally controlled and locally varied schools added value in the early period of American history. But American society experienced dynamic change during the 20th century, and the old grammar of schooling is now obsolete. Family farms no longer need the manual labor of school-aged children during harvest seasons, the original purpose of summer vacation. The division between the northern manufacturing and southern farming economies has all but evaporated, and instead all American children encounter the same basic charge: how to succeed in a fast-paced, information-heavy, and globalized world. The *similarities* of the challenges that face children today are much greater than the *differences* that once separated them along geographic, racial and economic lines. A federal education amendment would recognize this new and critical reality.

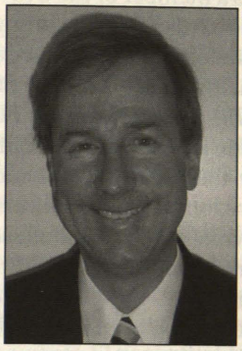
With regard to the concern for judicial activism, what was initially a sensible caution has since been confounded with an assumed value judgment about a federal education right. Following the dramatic *Brown v. Board* decisions of the middle 20th century, several state-by-state inequality cases led up to the U.S. Supreme Court's hearing of *San Antonio Independent School District v. Rodriguez* in 1973, where the Court decisively stated that "[e]ducation, of course, is not among the rights afforded explicit protection under our Federal Constitution. Nor do we find any basis for saying it is implicitly so protected..." The *Rodriguez* ruling effectively crippled any hopes for a judicial declaration that education is a national right for all children, but such was never the intention. The Court chose not to make a definitive national statement about education, but it stopped short of proscribing one of the other branches of the government – namely, the Congress – from doing so. Therefore, the Court's decision should not be seen as a judgment on the role of the federal government in education writ large.

***Read my lips**: First Lady Laura Bush reads to kindergarteners at a Washington, D.C., elementary school. A librarian by trade, Mrs. Bush has been one of the strongest advocates of education reform in the current administration.*

Is it likely that either of the two presidential candidates will come out in vocal support for a constitutional amendment recognizing education as a fundamental American right? Probably not, if only because there is no public outcry and no sense of urgency in the matter. Despite what we might say as a collective people about the value of educating our youth, we very rarely back our words with substance; we do not hold our nation's leaders to the education flame. More is spent on schools every year, but the schools themselves often get worse – holding patterns are harder than ever to maintain in school district funding battles all around the country. Just about the only thing that is conclusive based upon input, output and process measurements of education in the U.S. is that we have not improved appreciably.

So what good would an amendment do, and how would we get it? The latter question is perhaps the easiest: an education right amendment will emerge only as the product of public support for one. The best way to do this is to leverage the political power of young people in action; petition campaigns and million student marches would go far in bringing debates about the right to a quality education to the foreground of public discourse.

Once this is accomplished, an education rights amendment would be powerful because it would force us to do three things as one nation: define, measure and guarantee quality. Certainly it is not so easy to define what "high quality education" means, and neither is it easy to ensure that it is a right that is being secured. But the same is true for equal protection and free speech – there are limits and subjective elements to many long-embraced national rights. And in the final analysis, just as with these other rights, the true value of declaring education an American right lies in the process: the amendment drive would enlist, motivate and empower millions of students, parents and educators in the fight for better education. Defining "high quality" will give all of these involved parties an increased ownership in their schools. At the end of the day, the heightened public engagement, improved individual ownership and increased school resources will combine to provide a national bulwark upon which every American child's right to a high quality education will stand. P



# RE-THINKING RACIAL PREFERENCES

## *The Future of Affirmative Action in the 21st Century*

by Roger Clegg

Fifty years after *Brown v. Board of Education*, race issues still command attention in the schools, workplaces and courtrooms of America. Affirmative action, in particular, remains controversial in the wake of recent Supreme Court rulings. Let us begin with the proposition that affirmative action would end tomorrow if it were opposed by its main beneficiaries, African Americans. Surely it has as a necessary condition the support of those it purportedly benefits, and surely if it ended for African Americans, it would end as well for Latinos, women and others whose claims rest on strained efforts to liken their historical plights to blacks'. In fact, affirmative action programs *are indeed* against the self interest of African Americans, even narrowly and selfishly defined.

It is worth noting at the outset that it is not entirely clear how supportive African Americans, among other beneficiaries, are of racial preferences. The survey evidence is mixed. On the one hand, for instance, a 2001 survey by the *Washington Post*, Harvard's Kennedy School of Government and the Kaiser Family Foundation found that 86 percent of African Americans (as well as 92 percent of the general population) answered "strictly on merit" in response to this question: "In order to give minorities more opportunities, do you believe race or ethnicity should be a factor when deciding who is hired, promoted, or admitted to college, or that hiring, promotions, and college admissions should be based strictly on merit and qualifications other than race or ethnicity?" On the other hand, another recent poll by the conservative Black America's Political Action Committee (BAMPAC) found that 65 percent of African Americans believe affirmative action "Is good in principle but needs to be reformed" (19 percent answered that it "is fine the way it is" and 8 percent affirmed that it "is fundamentally flawed and needs to be eliminated").

The former study is the more precise, and therein lies one key in persuading African Americans – and others – in this debate. The term "affirmative action" is ambiguous, and the proponents of racial preferences use that ambiguity to play a dishonest game of bait-and-switch. The old forms of affirmative action – positive, proactive measures to end discrimination, and aggressive outreach and recruiting in markets shunned by those uninterested in the minorities there – are legally unproblematic and accepted by most Americans. The only variety of affirmative action at issue today is preferential treatment, a label that is of course avoided like the plague by its proponents. Thus we should focus the attention of African Americans on whether they should oppose the kind of affirmative action that is only what Nathan Glazer many years ago accurately labeled "affirmative discrimination." There are four areas in which racial preferences are commonly used: education, employment, contracting and redistricting. Many of the arguments pro and con are the same in each arena, but we can focus on admission preferences in higher education, since that has attracted the most controversy of late.

What are the benefits? I suspect that many Americans regard the "diversity" rationale with suspicion – that is, that students learn more and better if they are surrounded by students of different backgrounds. African American students in particular are sufficiently dismissive of this rationale that thousands happily decide every year to go to predominately black colleges and universities.

The benefit likely to persuade African Americans is the truly obvious one: that it enables black students to get into a school to which they would not otherwise have gained admittance. A better education translates into better career opportunities.

Let us now consider the list of costs to the use of admission preferences, set out below with a short analysis of how persuasive each is likely to be for African Americans:

**The use of preferences is personally unfair, passes over more qualified students and sets a disturbing legal, political and moral precedent in allowing racial discrimination.** Only the bad precedent part has resonance, and it is only speculation to suppose that allowing preferences for African Americans will end up justifying preferences against them some day. With Hispanics now the largest minority, however, perhaps it is

*Roger Clegg is general counsel for the Center for Equal Opportunity in Sterling, Virginia. He graduated from Yale Law School in 1981.*

becoming more of a reality.

**It creates resentment among whites.** Oh well, too bad. Next.

**It stigmatizes the so-called beneficiaries in the eyes of their classmates, teachers, and themselves, as well as future employers clients, and patients.** This is more persuasive and will be discussed below.

**It fosters a victim mindset, removes the incentive for academic excellence, and encourages separatism.** This might also be persuasive, and is also discussed below.

**It compromises the academic mission of the university and lowers the overall academic quality of the student body; it creates pressure to discriminate in grading and graduation standards.** Not persuasive from the perspective of narrow self-interest.

**It breeds hypocrisy within the school.** Big deal.

**It encourages a scofflaw attitude among college officials.** Yawn.

**It mismatches students and institutions, guaranteeing failure for many of the former.** Much more persuasive; discussed further below.

**It papers over the real social problem of why so many African Americans and Latinos are academically uncompetitive.** This may be true, and it may be true that those who are helped are actually middle class and the least likely to deserve special treatment, but it is not certain that getting rid of preferences will cause policymakers to take a harder look at the real social problems or do anything about the underclass.

**It gets states and schools involved in unsavory activities like deciding which racial and ethnic minorities will be favored and which ones not, and how much blood is needed to establish group membership.** This is another slippery slope argument and is unlikely to garner much interest from the hypothetical perspective we are considering.

So, the potentially strong arguments involve stigma, mismatching, separatism, disincentives, and the victim mindset.

The stigma argument has two elements. The first is that, by lowering academic qualifications for African Americans, we inevitably send the message that they cannot be expected to compete intellectually with other groups. It is, in short, offensive. On separate occasions I asked both Ward Connerly, who as a member of the University of California Board of Regents brought attention to the system's use of racial preferences, and Shelby Steele, author of *A Dream Deferred: The Second Betrayal of Black Freedom in America*, if there was any difference in the way they spoke about racial preferences to predominately black versus predominately white audiences. Both said yes. For the former, they stressed how insulting preferences are, how the system reinforces the stereotype of black intellectual inferiority – that African Americans can't possibly be held to the same academic standard as Caucasians or Asian Americans.

**"They stressed how insulting preferences are, how the system reinforces the stereotype of black intellectual inferiority – that African Americans can't possibly be held to the same academic standard as Caucasians or Asian Americans."**

The second element of the stigma argument is that some people will assume that *all* African Americans at an institution are there only because the standard has been lowered for them. Carl Cohen, the professor at the University of Michigan whose freedom-of-information request helped expose the university's system of preferences, has offered this compelling analogy: Suppose a school announced that it would be admitting short people according to lower academic standards. Certainly this would be unfair to tall people, but the biggest losers would be the short people who would have gotten in without lower standards, but who now will be assumed – by their classmates, teachers and future employers and clients – to be less competent, simply because they can be seen to be short. African Americans now suffer the same stigma.

Mismatching is another problem created by our system of affirmative action. If African American students are admitted according to a lower standard than other students, then they will – in the aggregate – be less academically qualified than the other students at that institution. Had they not been admitted there, they would have gone to some other school, where their academic qualifications would have been comparable to everyone else's.

"So what?" someone might say. While it may be true that it's not "Yale or jail," as civil rights author Abigail Thernstrom, a member of the Massachusetts State Board of Education and a commissioner on the United States Commission on Civil Rights, put it, perhaps ending preferences would not prevent African American students from getting into school somewhere. But aren't you better off going to a better regarded, more selective school, even if you are less qualified than most of the other students?

The numbers suggest otherwise. *The*

*Shape of the River* by Derek Bok and William Bowen – the most heavily relied on source for those defending preferences – concedes that the average black student at a selective university has an undergraduate GPA at the 23rd percentile, versus the 53rd percentile for whites. Black graduation rates are unfortunately lower, too. At the University of California at Berkeley, for example – before it was forced to end its use of admission preferences – 16 percent of whites failed to graduate within six years of entry, versus 42 percent of blacks. At another University of California campus forced to end preferential admission – San Diego – Professor Gail Heriot has shown that the once huge gap in undergraduate GPAs has now all but vanished. Another study, funded by the Mellon Foundation, concluded that a principal reason for the shortage of minority faculty is that so few earn adequate grades as undergraduates – a direct result of affirmative action mismatching.

Finally, a 2002 study by Stacy Berg Dale of the Andrew W. Mellon Foundation and Alan B. Krueger of Princeton University showed that going to a more prestigious school does not increase a student's earning potential if we factor in the academic qualifications that individuals had before admission. In other words, it won't help an individual to go to a school where one's academic qualifications are worse than everyone else's.

It is also commonsensical to conclude that, if you admit African Americans under a lower standard – if you demand and expect less of them – they will respond to this disincentive to learn by learning less. If you encourage identity politics, you will encourage separation and discourage integration. And the use of preferences – which most understand to be in place not because of "diversity" but rather as a way of correcting past wrongs – encourages African Americans to view themselves as victims, with predictably deadly effects on African Americans' willingness to take responsibility for their lives and communities. These arguments are made by, among others, John McWhorter, a liberal, African American professor at the University of California at Berkeley, in *Losing the Race: Self-Sabotage in Black America*.

Earlier we assumed that the one critical benefit of affirmative action was that it increased beneficiaries' chances of getting into better schools and leading a more successful lives – but we've seen now that this postulated benefit actually doesn't exist in the first place. That is, putting an end to the mismatching of students and universities will actually help African Americans, not hurt them. We've also assumed implicitly that African Americans would be indifferent to the injustices and social costs of racial preferences for those who are not black. But this is an assumption that ought to anger anyone who can appreciate the unfairness of discrimination – and so we must add the costs of affirmative action borne by society to those borne exclusively by African Americans described above. The inequity, divisiveness, resentment, hypocrisy and slippery slope to other discrimination caused by widespread racial double standards clearly outweigh the nonexistent benefits to society.

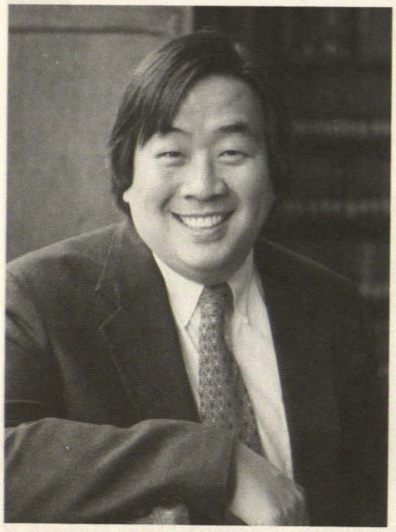
What is needed now, more than ever, is a truthful self-reflection by every American on the future of race relations in this country. Will we continue to codify and separate based solely on the color of our skin, using race as a proxy for more meaningful socioeconomic variables? Will we continue to blind ourselves to the real problems affecting underprivileged minorities by applying the "Band Aid" of racial preferences as an easy cure-all? We cannot succeed in creating opportunity for every American until we admit that racial preferences allow policymakers to ignore the difficulties that perpetuate disadvantage – to the detriment of all races. The impetus for change must come from the beneficiaries of these preferential policies; a dialogue between policymakers and affirmative action recipients is critical if *successful* solutions are to be wrought to replace racial preferences. We must remember that equality of opportunity is the backbone of a prosperous nation, while racially gerrymandered equality of results is symptomatic of a society in ruin. Choose wisely.

***Judgment day**: Demonstrators descend upon Washington, D.C., in support of affirmative action in the wake of a series of Supreme Court cases regarding the controversial practice. The Court decided that race was a valid consideration in college admissions under some circumstances.*

**"If you encourage identity politics, you will encourage separation and discourage integration."**

# DOES AMERICA PLAY BY THE RULES?

## *An Interview with Harold Koh*



Harold Hongju Koh has been the Dean of the Yale Law School since early 2004. Between 1998 and 2001 he served as Assistant Secretary of State for Democracy, Human Rights, and Labor. He is widely published on the topics of international law, human rights, and international institutions and regimes. He is currently working on a book called *Why Nations Obey: A Theory of Compliance with International Law.* Professor Koh sat down for an interview with the staff of *The Politic* on September 14, 2004.

**The United Nations has suffered an identity crisis since the United States circumvented it on its path to war in Iraq. Do you think that the international system of law was badly hurt by this? What would you blame for this failure: U.S. arrogance or U.N. irrelevance?**

I think the U.N. is pretty resilient. It has survived a lot of things and it will survive this. First of all you want to distinguish between international law and the U.N. International law has existed for many centuries. The U.N. charter and the U.N. system came in after World War II and are in many ways constructs of U.S. foreign policy. What happened in the postwar period was that the U.S. saw that a U.N. system and a system of international law and treaties both served global interests and served U.S. interests. What has made the last couple of years a sort of departure is that instead of seeing that that system is one we need to support and that ultimately serves our ends, we have tended to view it as a constraint that didn't necessarily need to be heeded.

It's a little bit as if you had moved to a neighborhood in which you were the richest neighbor, and there's a neighborhood association that you might want to be a part of. You have a choice – you can participate and cooperatively lead them, you can ignore them, or you can actually be affirmatively hostile. Each of those choices has consequences on whether you can rely on those people to help you in your joint efforts. I think that the basic message is that there are some things in the neighborhood that you can't do by yourself. As much as you would like to, you can't control the whole neighborhood. You can't finance everything in the neighborhood. If people are going to be attacking your property, you can use the neighborhood to help you out. So there's a long run value in maintaining good relations with your neighbors.

**Does the U.S. need to comply with the U.N. to keep good relations with its neighbors or can it continue to act on its own where it sees fit?**

Let's first distinguish between right after September 11, with what you could call a multilateral moment. At that point, the French were saying, "we're all Americans now." The president could have, and I think should have, used that multilateral moment to come to the U.N. and make a statement that this was the civilized world against terrorism. He could have requested that every ambassador of the U.N. be behind it. That would have sent a very powerful message. In fact the U.S. president didn't go to the U.N. for many months after September 11. Rudy Giuliani went before the U.N. before the president of the United States did.

That opportunity was missed because at that point we were in a situation of benign neglect. There were a number of things leading up to the Iraq war that signaled more than benign neglect with some affirmative distaste. The decision on signing the International Criminal Court treaty was very strange. We were at a point where we wanted to prosecute people. In fact, when we went into Iraq we said we wanted to prosecute Saddam Hussein. It would have been a very good moment to have a court that we could use that didn't look like an Iraqi court or an American court. But having at that moment turned our back on that court we

sent a signal of hostility to that system that was very counterproductive.

What's happened since is that we've been gradually pulled back from this attitude. There's no doubt that Colin Powell preferred a more multilateral approach. There's no doubt that Tony Blair was urging the administration towards a more multilateral approach. Once we had gotten into Iraq it was very clear that we couldn't finish the job and secure the peace without U.N. cooperation. There are a number of ways in which we tacked back in the direction from which we had pulled away from and what it shows is that a long term pattern of cooperation and building of multilateral structure is in our best interest.

**To what extent has U.S. rejection of the International Criminal Court hurt its credibility in the Middle East, especially as we try to prosecute Saddam Hussein and teach Iraqis about the rule of law?**

Law-abiding nations should not fear international courts, so long as those courts are fairly composed. We've participated in a lot of international bodies; some of them haven't been so favorable to us, but if we participate, at least we have a voice. The United States was not a party to the International Court of Justice for many years. There are a lot of international tribunals that it hasn't been a part of. The main point is that the International Criminal Court came into existence, and now it's not going to go away. So if you have this body in existence, you have a choice. Do you participate in it and help to make it a better, more fair institution or do you let it go its own way and be viewed as hostile to it? If you stay away from it it's more likely that it will evolve in a way that's hostile to Americans. And I don't know why that's in anybody's interest.

**Why is America rejecting the ICC right now? Are there problems in the laws of the court that might be worked out in the future, or is the U.S. simply opposed to the concept?**

The United States participated in the Rome Conference in 1998 and got a lot of the changes that it wanted. The Clinton administration spent a lot of time before signing it in making it an institution we could live with. So really what's changed is that the administration changed. Even within the administration there were those like Colin Powell who saw no reason to undo something that the Clinton administration had done. But there's another group that wanted it undone. However, you would have thought that right after September 11 was a bad moment to do it.

I believe we should take the long view. An International Criminal Court can help us; if we think we don't violate the law and other people do, then we're more of a prosecutor in the long run than we are a defender. So we've got to work with the court and help make it better.

**You mentioned last October in *The Economist* that we were witnessing a sea of change in U.S. human rights policy. Where do you see that one year later, and what do you think the effect is going to be?**

The U.S. is exceptional in a number of ways

**"The U.S. doesn't want to go from being the prime supporter of human rights to its most visible outlier."**

***Weight of the world**: U.S. foreign policy has left much of the world in the cold.*

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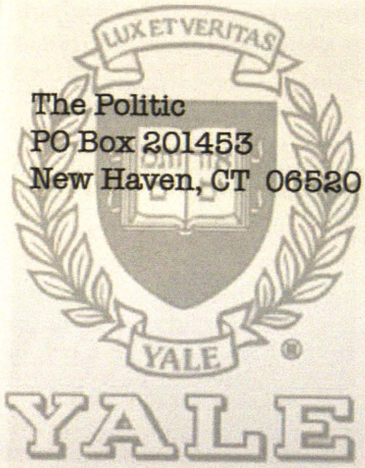


YALE

– it's an exceptional leader in human rights, and there are many areas in the world where we are not going to get human rights improvement unless the U.S. leads. The Middle East is a prime example. The United States is also exceptional in a bad way. Sometimes because it's so powerful it tries to be exempt from the rules that apply to everybody else. What I said in *The Economist* was that we don't want to be in a situation where the U.S. goes from being the primary supporter of the system to being the most visible outlier. In some important ways our other institutions in our government have made a difference. The Supreme Court snapped the executive branch back in three cases this spring. One was the Guantanamo case and the other two were about enemy combatants. Left to their own devices, I think the executive branch would have treated these people inconsistently with international standards or constitutional standards The court, which is quite a conservative court, reigned them in.The message is that America is not just the person in the White House, it's all of the different branches of government and people involved, the civil society, the universities, students, professors, and it's our country.

**Is what happened in Abu Ghraib putting us directly on the path to becoming the biggest human rights abuser you described?**

I think we need to get to the bottom of it. It was a wake-up call for Americans. I feel that most Americans think that torture is un-American. The notion that we are perpetrators of human rights violations in Iraqi prisons when we went to Iraq at least with the notion of solving human rights problems shook a lot of people up. One important question is: who created the culture of indifference to whether people are being tortured or not? It is very hard to believe that all of Abu Ghraib was the result of a handful of people in the prison coming up with the idea of herding prisoners around naked. These are well-established torture techniques.

At some point a culture of disrespect for human rights was created and tolerated. That is exactly the kind of culture you want to dispel. It should not be a matter of finger pointing. About a year before all this information came out, there was a story in the *Washington Post* where an intelligence officer was quoted as saying, "Lots of rough stuff was going on offshore" and that "after September 11 the gloves came off." He also said "if you're not violating someone's human rights, you're not doing your job." Now, if you're in the U.S. government and you have a high position, that should be a warning signal to you that it's time to make sure that people aren't stepping outside their bounds. If I was the head of a large corporation and I heard an official in the corporation say, "if you're violating someone's civil rights, you're not doing your job," my job would be to find out who said that and to get them fired. Abu Grahib was a failure of supervision–a failure that is likely to hurt our international reputation.

**How does this compare to the treatment of human rights issues at other times that America has been at war?**

There are a lot of people who believe these human rights issues are a luxury and therefore they should be dispensed with when something else comes along that is very important. But I think the opposite. Why is America a country worth fighting for? Because we stand for something higher than just what other countries in the world stand for. We're a country which will get to the bottom of these problems. There's a lot of torture in the world and a lot of it is a lot worse than what went on in Abu Ghraib. But we don't want to be dragged down to the lowest common denominator. There are a lot of things that other governments will do that we condemn. Our ability to condemn them depends on the perception that we make every effort to root this out and never let it happen again.

**Shifting to human rights abuses in the Sudan, is a specific form of constitution or government necessary to promote respect for human rights? How can the Sudanese government be pushed to reform in this direction?**

Sudan is a mess, and has been for many years. I really credit Secretary Powell

for having the courage to say that what is occurring is indeed genocide. The question now is where does that lead us: are we ready to do what it takes to keep it from continuing? If we hadn't conceded that it was going on, then we may not have had a duty to do anything about it, but now that we have, we are no longer a bystander. After Rwanda, we said we would not let it happen again.

One of the dangers of 9/11 is that it blotted out a lot of tragedy in other parts of the world. The headlines don't have enough room; if not for 9/11 and the invasion of Iraq, Sudan might be on the front page, but now it has trouble getting on page three.

***Courting approval:*** *Secretary of State Colin Powell signs an amendment granting immunity to Americans under the ICC. American rejection of the court's authority has not been well-received overseas.*

**Can economic sanctions be used as an effective tool to promote human rights in such cases?**

It's not one size fits all, but economic sanctions have a very important role to play. A lot of what's going on in Sudan is driven by oil, and there could be an impact on oil exports coming out of Sudan by distinguishing between dirty and clean oil. Economic sanctions cover a lot of turf, and we don't have that many other tools, given that the military option is one that we can't use very often. So it's sensible when you have a broader tool to use it when it's appropriate.

**What would you see as the biggest differences between a Kerry administration and a new Bush administration in terms of human rights policy and outlook on international politics?**

My fear is that if a new Bush administration is elected some of the people who have taken the more enlightened positions, like Colin Powell, may not continue to be in the positions they have been in. On the other hand, a Kerry administration would have some very able, skilled people such as Madeline Albright, Richard Holbrooke, Wesley Clark, and Ted Kennedy. These are people with a lot of experience and ability. I think their attitude would be one of strategic multilateralism and respect for international law as a useful tool for it. Ultimately, I feel that is a wiser way to go. This is one of the very few presidential campaigns of my lifetime where a clear line has been drawn between the candidates on foreign policy and that seems to be an issue that hits with the people. Foreigners like Americans and dislike our foreign policy intensely. You have to wonder, is it really necessary? Is it helping us pursue our goals? Why should nations who basically agree with us have a bone to pick with us about unilateralism?

**You've worked both within the government and as an academic outside the government. Is there any way to improve the dialogue between the two worlds?**

I've said–I hope not too flippantly– that those with ideas have no influence and those with influence have no ideas. When you are in a policy-making job you don't have time to go looking for an article or a book on the subject, although you know that it's out there. When you do have the time to think of these ideas, often you don't have a channel to get them to the people who are thinking about these problems. There needs to be more dialogue, and especially academics need to think about their audience. However, here at Yale you're with a lot of people who are speaking to academic audiences as well as policy audiences, and that's part of our comparative advantage.

# RE-LEARNING ROMAN LESSONS IN IRAQ

by Dakota S. Rudesill

Since the invasion of Iraq last year, several commentators have noted the many similarities with Britain's frustrating and costly occupation following World War I. Overlooked, but equally instructive, is Rome's most famous invasion of the Tigris-Euphrates valley. Several years after subduing a renegade Balkan dictator, in 115-116 A.D., the great Roman Emperor Trajan invaded the Parthian Empire and occupied her capital, Ctesiphon, not far from modern Baghdad.

Historical sources are poor and there is debate about Trajan's reasons for cutting off diplomacy and launching a preemptive war of choice. However, each of the three classic motives for war identified 500 years earlier by the legendary Greek historian Thucydides were probably in the air.

First, there was fear. Trajan alleged that Parthia had violated a treaty and was trying to dominate Armenia, a neutral nation astride an excellent invasion route into Roman territory. However, Parthia's military weakness and desire for a diplomatic solution made "the Parthian threat" as much a pretext as an explanation for war.

National interest was another motive. By taking advantage of Parthian weakness to move Rome's frontier east, Rome would have a better defensive position vis-à-vis Persia. Trajan would also secure better access to Indian spices and Chinese silk, resources in great demand.

And then there was honor and glory. Like his hero Alexander the Great, Trajan loved military victories. His patrician father, a former Consul whose family had become wealthy in the olive oil industry, had also led legions against Parthia, and Trajan may have wanted to outdo his dad in war.

In *The History of the Decline and Fall of the Roman Empire*, Edward Gibbon wrote that Trajan advanced quickly. The "degenerate Parthians…fled before his arms. He descended the River Tigris in triumph, from the mountains of Armenia to the Persian Gulf."

Aboard his flagship, Trajan celebrated a mission accomplished. According to Gibbon, "the rich countries of Armenia, Mesopotamia, and Assyria were reduced into the state of provinces." To put a local face on the occupation, a Parthian favored by Rome was installed in power in Ctesiphon.

But the war was no more over in the summer of 116 than it was in May 2003. Trajan was "the first, as he was the last of the Roman generals" to sail the Persian Gulf. Overconfident, Trajan was shocked to visit Babylon and find the ancient city in revolt. With the aid of former officers of the Parthian Empire, insurgents began to attack Roman troops throughout the country. The insurrectionists included the local Jewish population, which joined with Jews throughout the eastern Roman Empire in a bloody uprising.

Worse, what the Pentagon would call a two-Major Theater War scenario may have loomed: Barbarians were attacking the European frontiers, which had been weakened by the diversion of troops to Mesopotamia.

Trajan tried to put down the revolt but died in 117 before order was restored. Hadrian, Trajan's lieutenant and successor, immediately withdrew Rome's peerless yet overstretched legions. Without the protection of the Western army, Rome's man in Ctesiphon was pushed out and the old order returned. Trajan's invasion was a costly failure.

Obviously, much has changed in the 1,887 years since Western antiquity's hyperpower decided that holding the Tigris-Euphrates valley was not worth the price. Even so, Trajan's experience holds lessons that resonate today and may still be heeded.

First, invasion and occupation are very different missions. Defeating an army on the field of battle, or frightening much of it into desertion, does not guarantee successful occupation. Rome's army, like America's, was the best trained and equipped of its age, supreme at large-scale, high-intensity combat. But lower-intensity operations, and particularly

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occupation and counter-insurgency, place a premium not on an army's proficiency in set-piece battles but on its size. Like the US today, Rome's leaders found overwhelming numbers hard to muster, due to a combination of global responsibilities and reluctance to ask an affluent population to provide men and materiel for a substantially larger army. On the ground, personnel shortages made it harder for Rome to make clear that she would prevail, a key prerequisite for co-opting elites and building popular consent.

Ultimately, Trajan's attack was just the first of several Roman attempts to have Mesopotamia and keep its empire, too. Emperors took Ctesiphon no less than five times in the Second and Third Centuries, A.D., but in each case withdrew. Rome had a military strong enough to capture the country, but not big enough to keep it.

A second lesson harshly learned was that reasons for elective wars must be weighed carefully against possible repercussions. At their starts, the wars of Trajan and Bush appeared a simple question of deposing a dictator. But they produced unexpected insurgencies in-country, and backlashes internationally.

Both invasions also pulled troops from other critical theaters, with unhappy ramifications. As Rome's European forces fought in Mesopotamia, Trajan's prior Balkan victory unraveled, starting three years of renewed bloodshed. Similarly, after U.S. troops and attention were diverted to Iraq from Afghanistan, the Taliban and Al Qaeda regrouped and this year launched new attacks. Osama bin Laden continues to elude capture, nearly three years after 9/11.

In Hadrian's retreat, there is a third lesson, and a warning: a determined leader can take a nation to war, but without building broad support for it, a nation's willingness to bear the heavy burden of occupying a foreign country can flag with the leader's own flagging fortunes. And without an enduring military commitment, a new regime in a foreign capital is at risk.

While Hadrian felt he could cut Rome's losses and withdraw, the stakes for the U.S. are higher. Do as the Romans do? Barbarians represented a threat to Rome's existence akin to Al Qaeda's threat to the West, but pulling out of Mesopotamia in 117 to fight barbarians in Europe did not strengthen them anywhere. The Parthians were a rival power that would take decades to recover from Trajan's war.

In contrast, retreat from Iraq in 2004 would strengthen Al Qaeda everywhere. And a failed or hostile Iraq that becomes a state-sized terrorist training camp would be more of a threat than it was before the war.

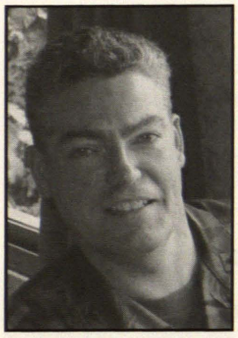
Trajan may or may not have had a grand strategy in mind, but Bush did, and he has succeeded in making Iraq part of it. Whether or not one agrees with Bush's theory that toppling Saddam will get democratic dominoes falling across the Middle East, Iraq has now become important in the struggle against barbaric Islamic extremism.

Neither Bush nor Kerry appears to be contemplating Hadrianic withdrawal. Both candidates, however, will face continuing political pressure to bring the troops home. Fortunately, Bush and Kerry have a resource Trajan and Hadrian, surrounded by barbarians, never had: other equally advanced, historically friendly states with large armies that might be convinced to help, via international organizations such as NATO or the U.N.

America today is often compared to Rome at her height. Sadly, strategic similarity has not prevented repetition of the ancient empire's errors in Iraq. Yet the most recent sacrifice of lives and treasure in the Tigris-Euphrates valley by a Western superpower need not be in vain if the advantages of our age can be leveraged to prevent one of history's great failures from repeating itself.

**"Trajan's experience holds lessons that resonate today and may still be heeded."**

***Captives or conquerors?*** *U.S. forces find themselves in the same strategic position in Mesopotamia as the ancient Romans.*



# LESSONS FROM LIBERIA

## *What A Humanitarian Disaster Can Teach The World About Nation Building*

by William Whobrey

Liberia has not been in the news much lately, and that's a good thing. In terms of nation building, no news tends to be good news. Nation building can either work, in which case there is some semblance of normalcy, (and in the case of African states this usually manifests itself in all-round apathy), or it fails miserably, in which case the headlines bemoan another ill-starred attempt to save a failed state. Nation building can work, but as the experience in Liberia has shown, it takes patience, time, and money. Above all, it takes a group of dedicated people who are willing to say no – no to political pressure that wants things to move more quickly, no to business interests that have only their own financial gain at heart, and no to citizens who, after many years of war and mistreatment, want it all to go away overnight.

On Christmas Eve last year my Operations Officer, Major Törringer, and I drove up to Camp Scheiffelin in Liberia not in Santa outfits, but in our uniforms and blue berets. Since Camp Scheiffelin had been established by the United Nations Mission in Liberia in early December, an ongoing concern had been the care of the women and children who had been separated from the men as they prepared to give up their weapons and receive cash payments. The disarmament program was threatening to unravel before it had really begun. The newspapers had eagerly reported, again and again, the riots that had shaken downtown Monrovia. There had been some casualties, and as such things go, the situation was more confused than anyone wanted to let on. It seemed as if another failed state could not be saved.

We knew these women and children – we had listened to their stories, stories of horror, rape, forced conscription, and displacement. The women and children were being mistreated – not by rebels – but by benign neglect and the chaos that had descended on the UN's DDRR (Disarmament, Demobilization, Rehabilitation, and Reintegration) campaign. As the UNMIL Force Commander's senior officer responsible for Civil-Military Cooperation (CIMIC), it was my task to find out what was going on.

What we found in the camp that evening was disheartening. There was no food and water, again, and there had been none for two days. The men's camp had been supplied, but the logistics of moving the food and water several hundred feet to the separate camp had overwhelmed the camp staff. It seemed that the mission had become part of the problem, not the solution. Our Toyota Forerunner took us back into Monrovia, and we headed straight for the office of the Deputy Senior Representative of the Secretary General, Mr. Abou Moussa. After a brief conversation and a phone call to the camp manager, we got results. Food and water were delivered. Santa Claus had come, albeit late and somewhat reluctantly.

The camp was soon closed. It had become clear that the early start of DDRR had been a mistake. It took guts to admit it, but this is where the UN success story in Liberia begins, with the admission that it would have to do better, and that it was not yet ready to take on this task. The Force Commander, Lieutenant General Daniel Opande of Kenya, resisted pressure to immediately continue the program. We were not going to make the same mistake twice. We would not resume DDRR until we were ready, and security, logistics, and partners were in place to do the job properly. DDRR resumed in April, and it has, by all accounts, been a success – not without problems and not without setbacks, but to date, over 50,000 ex-combatants from the three major factions have been disarmed. This already approaches the initial estimate of total combatants, but it is now clear that much more needs to be done. Every gun off the streets is one less that can kill a civilian, but for every gun off the streets, there is probably another that remains hidden.

Much has changed since those early, dark days of December. UNMIL, in its short history, has stayed the course, silenced the critics, and shown that progress can be made

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in even the bleakest situation. UNMIL was born on 1 October, 2003, only weeks after Security Council Resolution 1509 was approved on 19 September, authorizing a Chapter VII intervention in this war-torn country. The creation of what was to become the UN's largest peacekeeping mission to date happened at warp speed. Instrumental in this was the assistance of SHIRBRIG, a multi-national, standby, high-readiness brigade of very competent staff officers based in Denmark. This organization was able to establish a joint headquarters for Liberia in a matter of days, and we, the UN peacekeepers, followed on in the next few weeks and months. UNMIL Force Headquarters took over officially on November 1.

I arrived in early October, following my mobilization as a US Army Reserve officer and assignment to the Military Observer Group – Washington. I had been chosen to become the senior US Military Observer in Liberia, along with being the senior officer responsible for ensuring that the UNMIL military force, UN agencies, and the IO/NGO community were all moving in the same direction to assist Liberia's recovery. It was admittedly a daunting task, but one that I relished as a culmination of 25 years of military service and preparation. I was a Civil Affairs officer with training and experience in just this sort of mission. Now I could put all of that to the test – would UNMIL be able not only to stop the fighting but also provide over 2 million Liberians with the relief and hope that they so desperately craved? We would do our best, and then time would tell.

Setting up a mission from scratch is not an easy undertaking by any stretch of the imagination. Doing it with a headquarters staff of over 100 officers from over 40 different countries is of another magnitude altogether. But it worked, and it worked amazingly well. I had come to Liberia with eight other U.S. military officers, seven of whom would be detailed as Military Observers, with two of us left to serve on the staff. Now I had seven other officers working for me from seven different countries: Canada, Sweden, Bangladesh, Nigeria, Ethiopia, Ireland, and the Philippines. The military and peacekeeping experience in this group varied considerably, but each person had something unique to offer, both in skills and problem-solving approaches, and the creation of a unified team dedicated to a single mission remains my proudest accomplishment.

We had to act fast. Liberia's interim president, Gyude Bryant, took office on October 14. The country was restless, and Monrovians were only beginning to come back out on the street. The streets themselves were mostly flooded by monsoon rains, and with no drainage systems working, getting around the city itself was a challenge (but a minor one compared to others). What faced us was a country that had not known peace for some 14 years, that lacked all basic services such as electricity and running water, and where one faction had fought another for reasons that were not always clear. Charles Taylor was a brutal dictator; he needed to be removed, but it was clearly the impending disaster of LURD (Liberians for Reconciliation and Democracy) and MODEL (Movement for Democracy in Liberia) forces taking control of Monrovia from Government of Liberia (GOL) troops that caused the international community, especially the United States, to act. Taylor was forced from office and, after a peace treaty had been signed on 18 August, a multi-national West African force (ECOMIL) was deployed to establish order in and around Monrovia.

The horror of what had preceded this peacekeeping mission is unimaginable. All three combatant groups preyed mostly on civilians. Villages were stormed, inhabit-

*A meeting in Voinjama with the LURD Chief of Staff, General Sharif, aka "Cobra." The town had been completely destroyed in the recent civil war. Once home to over 100,000, the town now has only a few thousand inhabitants.*

**"Every gun off the streets is one less that can kill a civilian, but for every gun off the streets, there is probably another that remains hidden."**

ants killed, raped, or enslaved, and then the huts burned to the ground. This was the "military campaigning" most preferred by the combatants. It obviously incurred the least risk, as civilians tend not to shoot back. What most horrified all of us, and I think the Liberians as well, is that they had done this to themselves. There were regional issues to be sure, cross-border gun smuggling, even some foreign troops from Guinea, but it could not be seriously argued that this series of wars had been imposed from outside. There are tribal issues as well, but it basically comes down to the abject poverty of most of the population, the few in government who became very rich, and the great divide between the two. Make no mistake, the rebels are not interested in democracy any more than their predecessors. The acronyms LURD and MODEL may speak to democratic agendas, but the leadership of each group has become savvy enough to realize that this sort of cosmetic nomenclature is what garners support from the West. The leaders of LURD and MODEL are killers, pure and simple, without a clue about democratic principles, and what is worse, without any desire to implement any kind of democratic reforms that would weaken their own power base.

*General Dolo, a.k.a. "Peanut Butter," is a militia leader for Government of Liberia (GOL) forces in the north, near Ganta.*

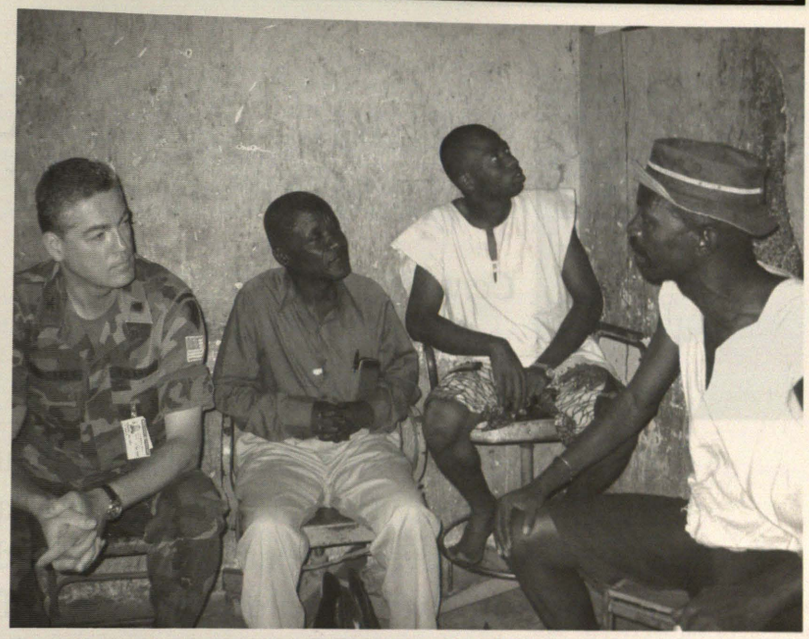
There was much to be done. The first task that faced me and my small CIMIC section was to establish a working relationship with the rest of the UN. The UN agencies, to include the UNHCR, WHO, WFP, UNICEF, and the UNDP were an alphabet soup that, from a military perspective, needed direction and needed it fast. Each agency was quite capable of coordinating its own affairs and working within its own, narrowly self-defined goals. But we all needed to work together, especially the military and civilian actors in UNMIL, and the culture gap between the two was as large as the distance between the two headquarters. Humanitarian relief could not be provided without security, and in October, the country was anything but secure. Many agencies and NGOs had experienced the worst of Liberia in August, when vehicles were stolen, workers threatened at gun point, some abducted, some killed - every humanitarian's nightmare. Now with UNMIL forces arriving, it was expected that security would be immediately restored, but with only about 6,000 soldiers of what was to become a 15,000-strong force, the best that UNMIL could do was to secure Monrovia itself. This was obviously critical, especially around the port area, but the rest of the country remained the badlands, with rebel forces under nominal leadership roaming the bush for easy prey and setting up roadblocks to extort whatever money a passerby might be persuaded to part with. So we had to establish the trust of the UN agencies while creating realistic expectations. Deploying a full-strength force around the country would take months and would proceed in small steps. By late January, forces did in fact begin to deploy outside Monrovia and environs in some strength, and the deployment itself has only just been basically completed, thus securing the country to as great an extent as possible.

Getting all these agencies and NGOs to work together has been likened to herding cats. There are good reasons why NGOs jealously guard their independence. In the past, it has helped them maintain neutrality in the eyes of combatants. But recent experience has taught us that this is no longer the case, and NGOs are now the first to demand

that security be guaranteed before they can do their job. Security is a complex matter, and there are no guarantees. Someone needs to speak a language that both sides can understand, civilian and military, and that's where CIMIC comes in. Oftentimes reservists, CIMIC specialists try to keep a foot in each world, with experience in the civilian workforce but also enough military training to be able to pass as a reasonable facsimile of a soldier. Obviously this cannot be done to the satisfaction of both worlds, but in the attempt to create a spirit of cooperation and understanding, things do get done. They just don't get done instantaneously. When lives are at stake, everyone wants things to improve immediately, but reconstruction will take time.

I often discussed this point with Liberians themselves, whether in Monrovia or out in the bush. UNMIL was met at first with great enthusiasm, but this quickly dissipated when it became clear that the country would not be completely restored in just two or three months. Then the finger pointing started. Why wasn't the UN doing more, and doing it faster? I had to reply that we could not fix in a few months what they had taken many years to destroy. All of UNMIL had come to help as best we could, but patience was now required of everyone. First, the shooting had to stop. Then food and medical aid had to reach those who needed it most. Then weapons had to be collected and people given new skills for a new life. The measure of success is in years, not months. And above all, collective and personal responsibility for what had happened would show the way forward - it was not the UN that had created this mess in the first place.

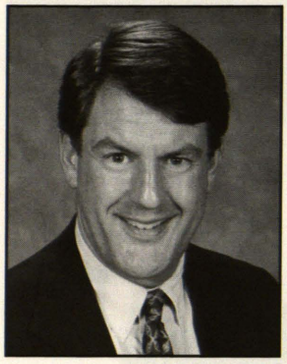
The key to making this critical transition period from war to peace a success is in managing expectations and showing slow but steady progress. While traveling around Liberia, meeting with officials and ordinary people, the first question was always: when is UNMIL coming. The answer was always: when UNMIL is ready. We had to be sure never to make promises, promises we could not keep. The key to managing expectations was to get people to understand that they themselves played a critical role in the success of the recovery. They had to demand an end to the killing, they had to repair bridges and roads, they had to do whatever they could on their own. Waiting for UNMIL to do it was not presented as an option. We always asked people what they could do to get UNMIL deployed more quickly, and what they could do to help themselves.



*Colonel Whobrey meeting with local officials in the LURD stronghold of Voinjama in northwestern Liberia. Master General Amara Saryon, right, is the chief of the local militia.*

The history of UNMIL has yet to be written. Success is not yet assured, but it is enticingly close. The UN is far from being as efficient as it could be, but it has learned lessons from the past and in missions like Liberia has employed some of them to good effect. Most of all, the mission has shown that the international community can act effectively to provide people with the hope of a better future. The mission was undertaken quickly, with a strong resolution and strong rules of engagement; the mission was provided with an adequately large military force for the task; and the United States and others supported the rebuilding of Liberia with funding that, if not completely adequate, represents a good start. A similar recipe could work elsewhere. While it is true that international cooperation can be frustratingly cumbersome, it is also true that the alternatives offer no better solution to long-term engagement and stability. Small steps, such as the successes of UNMIL and Liberia, can point the way to improved cooperation with the UN and its peacekeeping efforts.

**"The mission has shown that the international community can act effectively to provide people with the hope of a better future."**



# AMERICA'S GLOBAL WARMING POLICY

## *Certainty or Chaos?*

by David Gardiner

In early May 2004, President Vladimir Putin announced Russia's intention to ratify the Kyoto Protocol global warming agreement. This announcement reversed months of speculation that Russia would reject the Protocol, preventing it from taking effect. The agreement couldn't enter into force until developed nations responsible for at least 55 percent of greenhouse gas emissions approved it. With the threshold now surpassed, Russia's announcement means most developed countries, including Canada, the European Union, Japan, and Russia, will shortly begin to meet the Protocol's requirement to reduce global warming pollutants approximately 5 percent by 2012. The Bush administration has opposed the treaty, and the United States will not be a part of the treaty, nor subject to its limits.

As other nations begin to implement the Kyoto Protocol without U.S. participation, now is the appropriate time to consider what this means for America and what, if anything, we should do about it. With approximately 25 percent of the world's global warming emissions, America's strategy on global warming will have important implications for the world's ability to solve the problem, our economic future, and our diplomatic relations with the rest of the world.

This is particularly important in the face of compelling scientific research that supports the need for action. The world's leading global warming scientists have argued that rising levels of global warming pollutants such as carbon dioxide are trapping the sun's heat, warming the Earth's atmosphere, and threaten to disrupt the climate system in the remainder of this century. In the next century, the planet may warm as much as it has since the last Ice Age approximately 10,000 years ago, when much of North America was covered with glaciers – an unprecedented change in climate in a short time period. Left unchecked, global warming will increase heat waves, worsen air pollution, flood coastal areas as oceans rise, and increase flooding and droughts, with the greatest impacts occurring in poor countries.

Even the Bush administration, long skeptical of the science of global warming, recently reported to Congress that only rising pollution levels from smokestacks and tailpipes could explain rising global temperatures in the last 30 years. The same report warned that carbon dioxide could harm agricultural productivity by promoting weed growth and reducing nutritional uptake by plants.

In the face of this scientific evidence and rising public concern about it, state governments have taken the lead in requiring reductions in global warming pollutants. California has adopted legislation to set a carbon dioxide standard for automobiles, and is now considering a rule that would reduce emissions by 30 percent. Connecticut, Maine, Massachusetts, New Jersey, New York, Rhode Island, and Vermont are preparing to follow California's lead. Massachusetts and New Hampshire have set standards for carbon dioxide from electricity power plants – source of almost 40 percent of carbon dioxide emissions in the U.S. and 10 percent of worldwide emissions.

States have also turned to the courts to force action. Recently, California, Connecticut, Iowa, New Jersey, New York, Rhode Island, Vermont and Wisconsin, along with the City of New York, filed suit against the five largest global warming emitters in the United States – American Electric Power Company, the Southern Company, Tennessee Valley Authority, Xcel Energy, and Cinergy. Together, these five electric companies own or operate 174 fossil fuel burning power plants in 20 states that emit approximately 650 million tons of carbon dioxide each year – almost a quarter of the U.S. utility industry's annual carbon dioxide emissions. The action calls on the companies to reduce their pollution, and does not seek monetary damages. In addition, Connecticut, Maine, and Massachusetts have sued the EPA to set a standard for carbon dioxide under the Clean Air Act.

Unfortunately, while state governments are acting, our

*David Gardiner is the president of his own environmental consulting firm. During the Clinton Administration, he served as Executive Director of the White House Climate Change Task Force and as Assistant Administrator for Policy at the Environmental Protection Agency.*

national government is sharply divided on whether to move forward with efforts to regulate these emissions. The Bush administration has argued that the U.S. should reduce its emissions intensity (emissions divided by Gross Domestic Product) by 18 percent by 2012 solely through voluntary actions. But this approach suffers from three problems.

First, the Bush plan makes no change from past practice, and will increase actual emissions by 14 percent between 2002 and 2012.

Second, voluntary efforts are inadequate to the task. Starting during the administration of President George H.W. Bush, the U.S. has launched dozens of programs to promote voluntary reductions in global warming pollution. Unfortunately, emissions have risen 11 percent since 1990, indicating there are simply too few who volunteer to reduce their emissions. In the electricity sector, unregulated carbon dioxide emissions have risen 25 percent between 1990 and 2002. By contrast, the Clean Air Act's mandatory emissions standards for sulfur dioxide and nitrogen oxides reduced those pollutants 35 percent and 28 percent, respectively, over the same time period.

Third, President Bush's approach creates needless uncertainty for the business community. Business leaders know that limits on global warming pollutants are coming but do not know how stringent those limits might be or when they will occur. Businesses with significant emissions of global warming pollutants – electricity, transportation, and manufacturing – are unsure what to expect. Indeed, American Electric Power, the country's largest emitter of carbon dioxide pollution, said recently "The central challenge the company faces is making decisions about large investment in long-lived assets in a setting of uncertain public policy and rapidly changing technology".

At a recent conference of institutional investors on global warming, John Coomber, CEO of Swiss Re, called uncertainty "the enemy of corporate enterprise". Business leaders should be up in arms about the failure of the national government to address global warming because America's current policy path is the most chaotic and uncertain that we could possibly pursue.

Indeed, investors are beginning to express concerns about global warming, and have begun to insist that companies develop plans to address it. Connecticut State Treasurer Denise Nappier, who oversees approximately $18 billion in pension fund assets for 160,000 teachers, state, and municipal employees, filed a shareholder resolution at American Electric Power seeking corporate disclosure to shareholders of climate risks, which the company agreed to earlier this year. A record-setting 37 percent of shareholders at Apache, an oil company, voted for a similar resolution, indicating that investor concern about global warming risks is on the rise. Nappier and 12 other major pension fund leaders managing $800 billion in assets have called on the Securities and Exchange Commission to require disclosure of global warming risks to investors.

Many in Congress are pushing for certainty. Last October, Senators John McCain (R-Ariz.) and Joseph Lieberman (D-Conn.) offered a proposal to legally limit or cap global warming pollutants in the U.S. 43 Senators voted for it – an unexpectedly

***Environmental crusaders**: Globally, popular support for the Kyoto Protocol is high. Here, at a Kyoto Protocol Rally in Russia, demonstrators demand "Safe Nature for Children."*

**"As other nations begin to implement the Kyoto Protocol without U.S. participation, we must consider what this means for America and what, if anything, we should do about it."**

high level of support.

The sharp polarization on global warming policy has created gridlock. But it is also an unwise approach to solving the problem. There is little doubt that the U.S. will adopt mandatory emissions reduction strategies for the global warming as our competitors on other countries have done. The only issue is how and when we will do it. Gridlock delays answering these critical questions, and creates uncertainty for businesses as they plan for the future. This uncertainty about U.S. global warming policy is completely unnecessary. We should stop pretending that we can ignore this problem, and move ahead now.

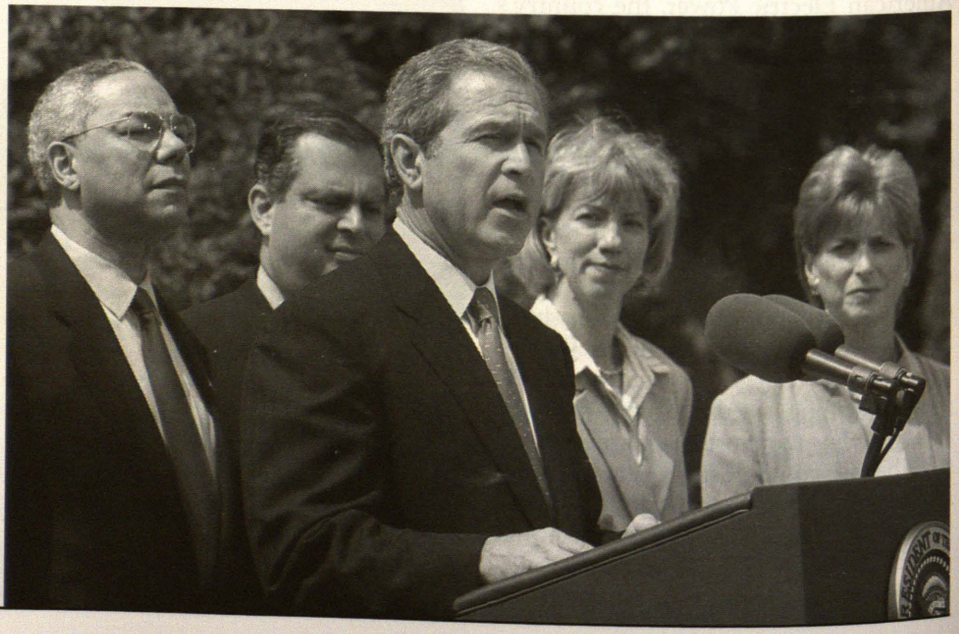
To move forward with certainty will require greater presidential leadership than we have had to date. Two steps are required from either President Bush or President Kerry.

First, the President should propose a policy to require reductions in emissions of global warming pollutants over the next decade. This policy should allow industry flexibility through emissions trading, as the McCain-Lieberman legislation does. Industry leaders are prepared to meet this challenge. Wayne H. Brunetti, CEO and chairman of Xcel Energy Inc., the nation's fourth-largest electricity and gas utility says, "Give us a date, tell us how much we need to cut, give us the flexibility to meet the goals, and we'll get it done."

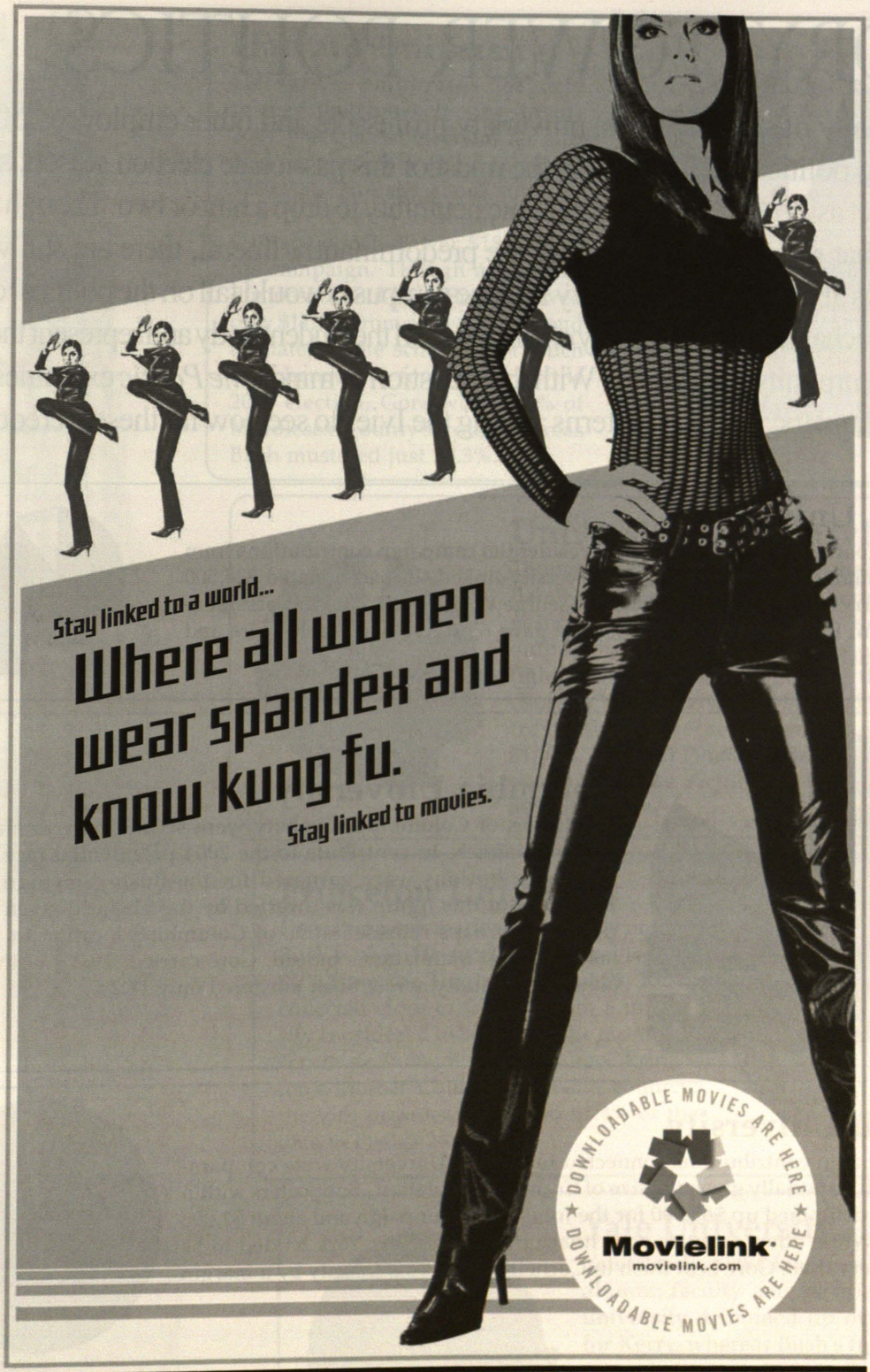
Second, because energy use causes more than 80 percent of U.S. emissions of global warming pollutants, the President should propose an energy policy that is consistent with the need to reduce emissions of global warming pollutants and other air pollutants. That energy policy should have energy efficiency and renewable energy as its two most important priorities. By 2020 the U.S. could produce 20 percent of its electricity from renewable sources, such as wind and solar, while saving consumers $49 billion and creating 355,000 new jobs, according to the Union of Concerned Scientists. Liquid fuels from biomass can replace gasoline and reduce our dependence on foreign sources of oil. New hybrid gas and electric cars, such as the Toyota Prius, demonstrate huge potential to improve energy efficiency in the U.S. auto fleet, especially in the Sport Utility Vehicles and minivans that dominate today's market.

By proposing an economically friendly global warming policy and an environmentally friendly energy policy, the President can turn us from our current uncertain and chaotic path to a clear path forward. Such an approach would reduce risks and uncertainties for business and investors, and create new job opportunities for clean energy technologies. It would improve America's national security by reducing imports of foreign oil. Other countries would applaud our leadership, an important step towards mending the current rift over climate issues. And future generations would thank us for solving the problem and not foisting it on them.

While other nations are moving ahead with the Kyoto Protocol, the U.S. still faces a fundamental choice on its global warming policy between chaos and certainty. Now is the time to choose certainty and the brighter future that it offers us. P



***We're out:*** *President George W. Bush reiterated his opposition to the Kyoto Climate Change Treaty in a June 2001 press conference. The current path would lead to a 14 percent increase in actual emissons by 2012.*

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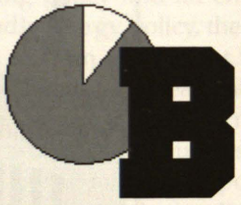
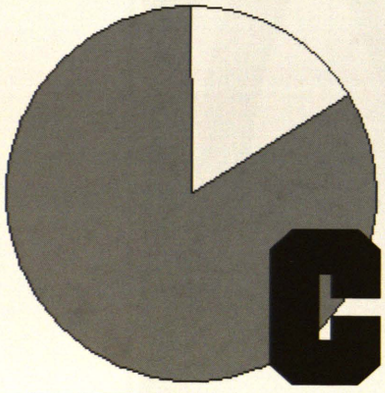
# IVORY TOWER POLITICS

Like many of their students, university professors and other employees often exhibit strong political allegiances. In the midst of this passionate election season, some of our teachers set aside their vaunted academic neutrality to drop a hint or two. Though reasonably assumed that most university settings are predominantly liberal, there are still widely held perceptions about where certain Ivy League campuses would fall on the political continuum. But do these characterizations really extend beyond the student body and represent the university and the community as a whole? With this question in mind, *The Politic* examines campaign donations and local voting patterns among the Ivies to see how far these stereotypes apply.

## Brown University

When compared to peer institutions, presidential campaign contributions from Brown affiliates are relatively low. University-linked sources donated $24,500 to John Kerry's campaign and $3,000 to George W. Bush's. In the last presidential election, Brown's Providence County gave 65.3% of the vote to Gore and 28.1% to Bush.



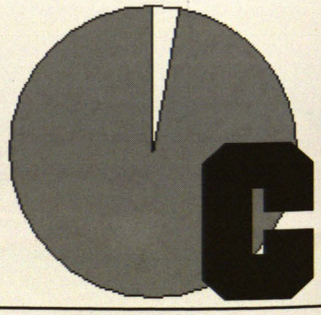



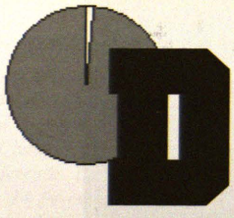

## Columbia University

Employees of Columbia University were second only to Harvard in their willingness to contribute to the 2004 presidential race. Significant contributions were garnered for the Bush campaign, notably $28,000. But this figure was dwarfed by the $144,000 given to Kerry, which is perhaps representative of Columbia's location in predominantly liberal Manhattan. Indeed, Gore carried 79.2% of the vote in New York County, while Bush mustered only 14.2%.

## Cornell University

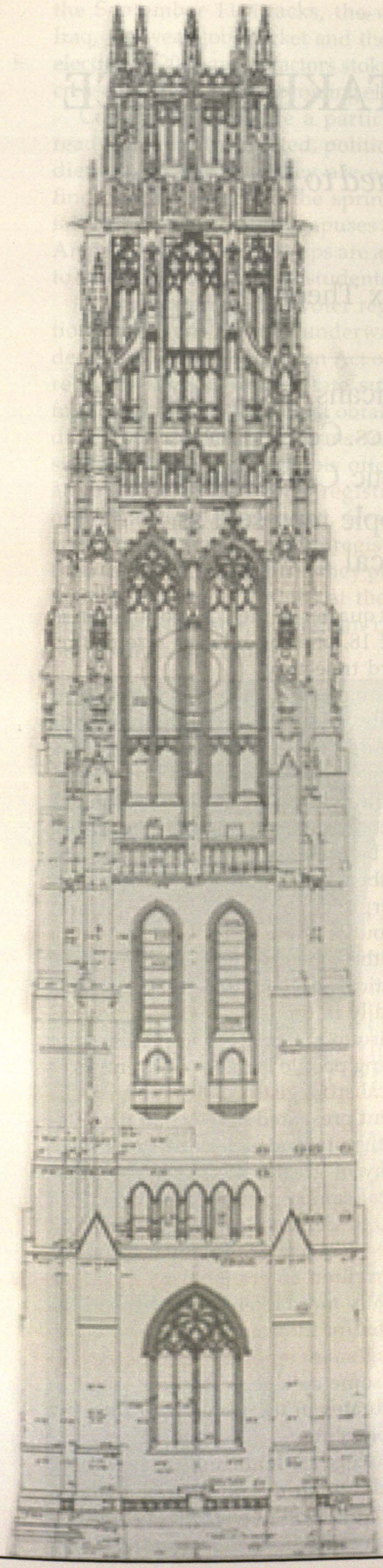
Total campaign contributions connected to Cornell University were comparatively small, especially given the size of Cornell's population. Supporters within the school drummed up $65,000 for the John Kerry campaign and about $2,000 for Bush. While other counties near Ithaca in upstate New York tended to be more conservative, Gore beat Bush in Cornell's Tompkins County by a margin of 54.4% to 33.3%.



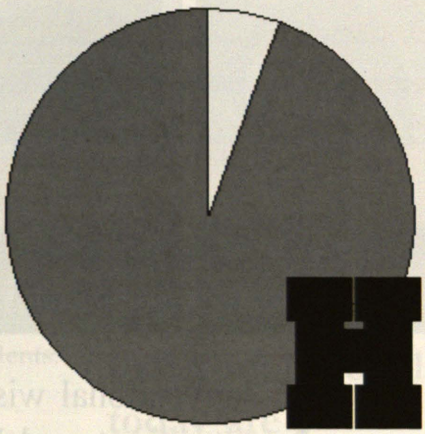

## Dartmouth College

Given Dartmouth's reputation as a more right-leaning school, its affiliates might be expected to have contributed to the Bush campaign. However, $30,000 was raised for Kerry, while only $500 was raised for Bush. But there may be more conservative support in the community than the numbers indicate: Gore carried Grafton County by only .6% in 2000.

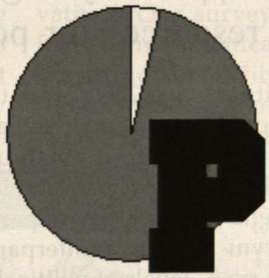


## Harvard University

Harvard's employees eagerly opened their pocketbooks for the 2004 presidential election, far surpassing the other Ivies at nearly $200,000. Not shy about supporting their own Senator Kerry, Cantabs donated over $186,000 to his campaign. Though a Harvard Business School grad, Bush received only $11,700 from eleven faculty and affiliates of the school. Not much has changed in four years: in the 2000 election, Gore won 61.5% of Middlesex County's vote, whereas Bush mustered just 30.3%.



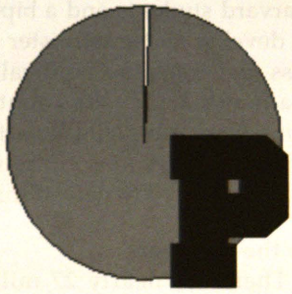
## University of Pennsylvania



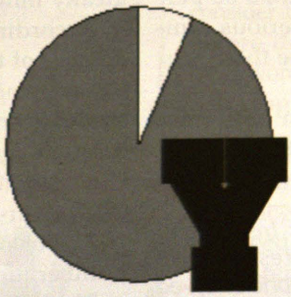
Though the largest Ivy League school does not flaunt a liberal reputation, the numbers suggest otherwise. In Philadelphia, Kerry again outpaced Bush. The Quakers showed their fighting spirit while supporting the Massachusetts Senator, giving over $48,350. In contrast, Bush benefactors donated a paltry $1,950. In 2000 Penn's Philadelphia County was a landslide victory for Gore, who won 80% of the vote.

## Princeton University

Does Princeton matter? Hopefully not, for Bush's sake. He received a grand total of $500 from the Tigers. Meanwhile, Kerry collected close to $61,000 from a university considered to be among the more conservative Ivies. Four years ago, Princeton's Mercer County was Gore country; the vice president garnered 61.4% of the vote to Bush's 24.4%.

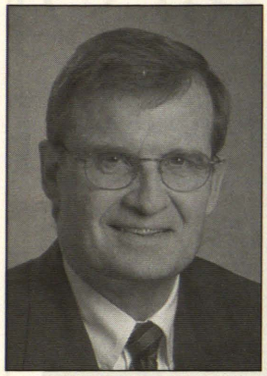


## Yale University



Yale clearly picks favorites among its alumni: faculty and associates of the university drummed up over $60,000 for Kerry, whereas Bush's fund raising struggled to top $4,500. These donation differences reflect the community persuasion from 2000, when Gore won 58% of New Haven County's vote and Bush just 36%.

*Sources: Center for Responsive Politics, Dave Leip's Atlas of U.S. Presidential Elections.*



# CAMPAIGNS TAKE NOTICE

## *College Students Primed to Play Major Role in 2004*

by Philip Sharp and Alex Theodoridis

Conventional wisdom holds that young Americans don't pay attention to and don't participate in electoral politics. Conventional wisdom argues that young citizens are politically apathetic. Conventional wisdom dictates that efforts to appeal to young people represent an inefficient use of precious resources for political campaigns.

Research conducted by Harvard University's Institute of Politics (IOP), however, suggests that conventional wisdom is wrong.

An extensive series of surveys highlights the folly of ignoring the youth population, especially those attending colleges or universities. Far from incorrigibly cynical and apathetic, college students are primed for political participation, especially, it seems, in the upcoming election. How do we know? We asked them.

Since the spring of 2000, the Institute has worked with Harvard students and a bipartisan national polling firm to develop and administer semi-annual surveys to assess and track the political attitudes of college undergraduates across the country. The results suggest that campaigns and political parties are remiss in their efforts to court these young citizens and that the strategic rationale often cited to defend this neglect is ill-conceived.

**By the Numbers**

There are nearly 27 million 18-24 year-olds in the United States. In terms of eligible voters, this age group offers about the same numbers as the African-American and Hispanic communities. It is more than 80 percent the size of the senior population. No serious campaign would dream of ignoring any of these three segments of our electorate.

Furthermore, the college-age population will grow substantially in the near future, just as every subset of the 0-17 age group increased significantly between 1990 and 2000. More than a quarter of the U.S. population is now under the age of 18, and the relative size of this group is on an upward trajectory.

To be sure, it is true that young people in general are less likely to participate in politics and vote than their older counterparts. And, it's also true that this group's levels of political engagement have trended downward in recent years. The failure of young people to turn out at the polls is well documented, but the impact of those who do vote tends to be underestimated, especially in light of the sheer numbers noted above.

This should be interpreted, by no means, as a claim that youth voter turnout is at anything approaching a desirable level. Quite the contrary, the United States is facing a crisis of political participation. Overall turnout has dropped steadily in the last three decades and now seems to hover around 50 percent in presidential elections. Because young people turn out in even lower numbers, some political strategists tend to ignore their potential. The argument presented here is that the relative weight of the youth vote, and especially the college student vote, is worthy of greater attention by strategically minded political campaigns.

According to the U.S. Census Bureau, just over 32 percent of those in the 18-24 age group voted, translating into more than 8 million voters. However, college students are significantly more likely to vote than others their age. The Center for Information & Research on Civic Learning & Engagement reports that 52 percent of 18-24 year-olds with some college education voted in 2000. For college graduates in the same age range the number jumps to 69 percent.

The IOP survey of college students finds 62 percent of respondents "definitely" plan to vote this November, significantly higher than the 50 percent who said they would "definitely" vote in 2000. Students indicate that

*Philip Sharp, Director of Harvard University's Institute of Politics, represented Indiana in the United States House of Representatives from 1975 to 1995. Alex Theodoridis served from 1998 to 2003 as chief of staff and program director at the University of Virginia Center for Politics and is currently doing graduate work at Harvard University's John F. Kennedy School of Government.*

the September 11 attacks, the war in Iraq, the weak job market and the close election in 2000 are all factors stoking increased interest in the upcoming election.

College students are a particularly ready, and easily targeted, political audience. For starters, they are easy to find, since they spend the spring and fall gathered neatly on campuses across America. Few, if any, groups are as easy to track down as college students.

At many universities voter registration campaigns are now underway. Indeed, the Higher Education Act of 1998 requires schools to facilitate such efforts; specifically, they must obtain and distribute registration forms to their student body. Many schools offer creative and effective voter registration opportunities. At Harvard, freshmen are strongly encouraged to register by their fellow students when they pick up their photo identifications at the start of the fall semester, a program run by the Institute of Politics.

Census data indicate that more than half of 18-24 year olds have attended or are attending a college or university. Over 14 million people reported being enrolled in an undergraduate program during the spring of 2000. In other words, no matter how you cut it, we are talking about a lot of people. And, as the number of young people in America grows, the percentage of them choosing to attend college also continues to rise. Any candidate, any campaign, or any political party would be foolish not to target college students.

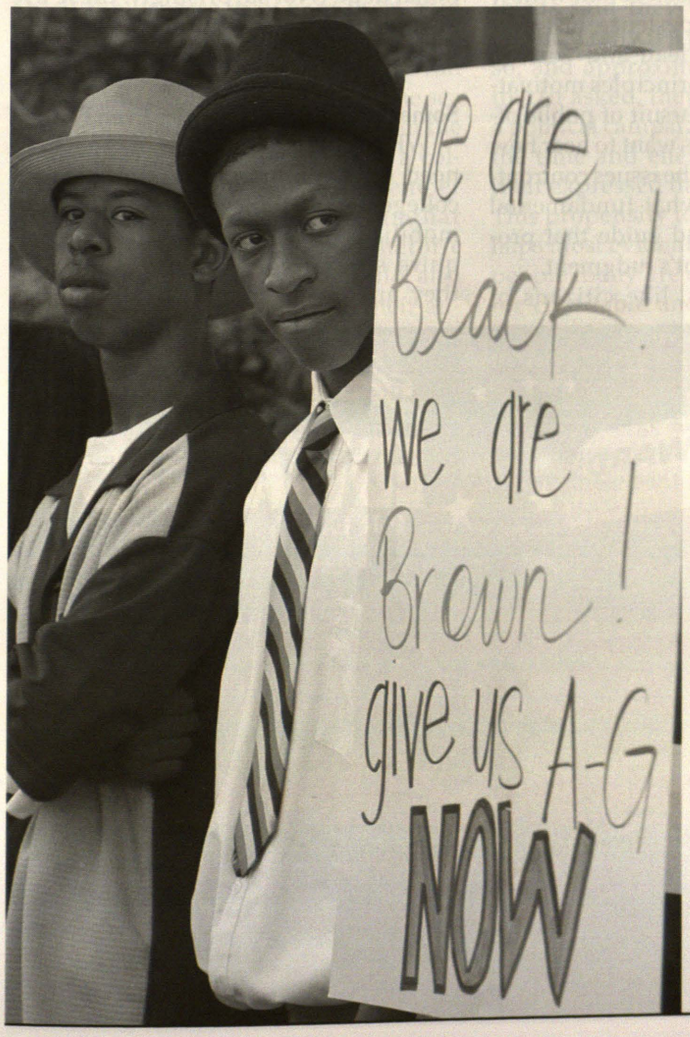
**Up for Grabs**

Young people are highly independent and do not vote as a block. In fact, more than half of college students are neither traditional liberals nor conservatives. Our surveys have identified four distinct political personality profiles: traditional liberals, traditional conservatives, secular centrists and religious centrists. You can take the IOP's Political Personality Quiz online at www.iop.harvard.edu. These four groups divide on the basis of issue stands and political ideology. Within the two centrist groups, which comprise the majority of college students, young people are split between the two major party Presidential candidates. Many young voters tend to make their decision late in the campaign and seriously consider their options before doing so. In other words, their support is up for grabs.

**Not So Different**

A strategy aimed at college-age voters need not be inconsistent with one designed to appeal to other segments of the body politic.

**"A propensity toward activism is perhaps most evident in the fact that young people today are choosing to volunteer for charitable and community service in astoundingly high numbers."**




***Students or activists?*** *A willingness to fight for causes they believe in demonstrates that students are far from apathetic.*

**"The failure of young people to turn out at the polls is well documented, but the impact of those who do vote tends to be underestimated."**

The illusion persists that young people only care about very specific, outside-the-mainstream issues, such as regulations affecting Internet music downloads or the drinking age. This is simply a misconception. Heading into this election, college students are most interested in education, health care, the state of the economy and the war in Iraq – the same issues the rest of us care about. They are adult members of our society and full, albeit new, participants in our political system. Candidates should treat them as such, and talk to them about the issues critical both to their generation and to America's future.

Even beyond specific issues, college students tend to be influenced by similar considerations as older voters. Our survey research shows that, rather than simply gravitating toward candidates who agree with them on specific issues, young voters look for signs of solid leadership and substantial experience in dealing with foreign and domestic affairs. They seek to know how a candidate's life experience has prepared him or her to lead and wish to understand the core principles motivating that candidate's pursuit of public office. College-age voters want to hear how a candidate perceives the issues confronting our nation and what fundamental values will inform and guide that prospective public servant's judgment.

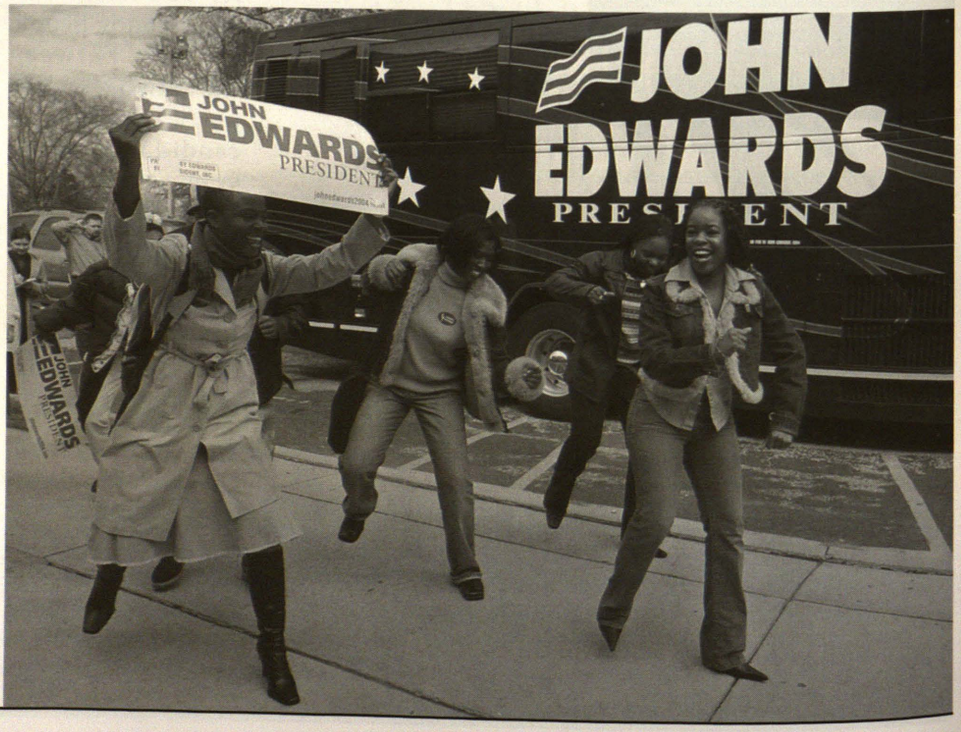
Young Americans, like citizens of other ages, are looking for candidates who are authentic. They are perhaps even more sensitive to phony statements and political pandering than the rest of us. In other words, they appreciate straight talk from candidates. So, young people, unlike some other groups, don't demand that candidates veer off their ideological course to appease them, but there are certain things campaigns can do to appeal specifically to young voters.

### A Little Targeting Goes a Long Way

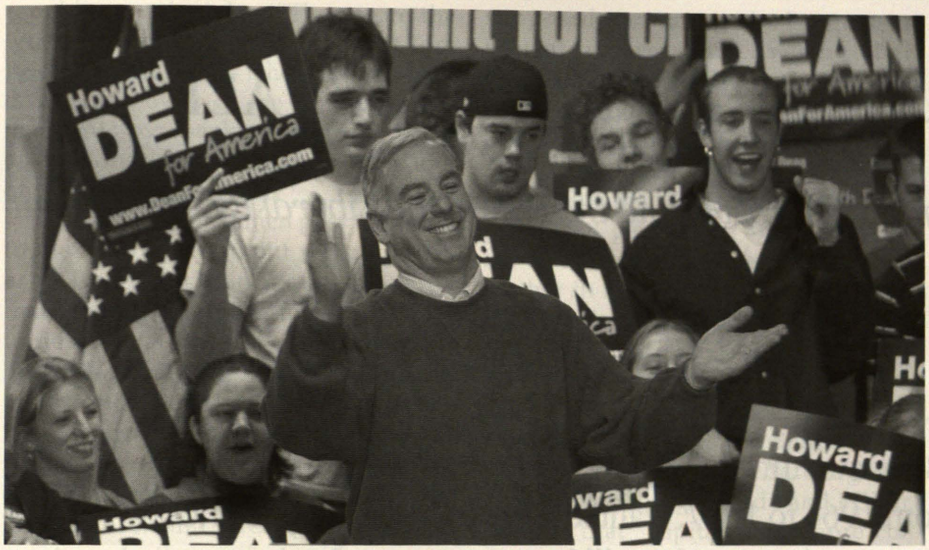
While engaging young voters does not require any wholesale revision of a campaign's message and platform, some targeting may pay off. In some instances, candidates can shape their discussion of key issues to reflect the interests and concerns of students. For example, a candidate speaking to young voters about the need to grow the economy might focus on plans for the creation of entry-level jobs. When talking about debt, he or she might hone in on educational debt. (Not surprisingly, these are also issues of considerable interest to many parents of college-age citizens.)

### Some Special Attention Goes Even Farther

While a campaign's message may need only minor refocusing to suit a college-age audience, the mechanics of mobilization for college students require special consideration. Because they are just beginning to participate




***Dancing in the streets:*** *Voorhees College students break into an improvised dance at the passing of the campaign tour bus of U.S. Senator and Democratic presidential hopeful John Edwards after a stop in Denmark, South Carolina.*




***Dean of students:*** *Democratic presidential candidate and former Vermont Governor Howard Dean is welcomed by students during a stop at William Penn University in Oskaloosa, Iowa during his "People Powered Road Trip: America at the Wheel" back in January.*

in the process, these young voters may need extra help understanding and becoming comfortable with our system. Many college students express concern that they lack the knowledge needed to get involved in politics. Activities and events that help teach young voters about the process may help them gain the confidence they need to fully participate. Candidates and campaigns can help young people steer through the sea of complicated matters discussed in the public forum. Those speaking at a college or university should remember that young citizens are less familiar with political language and rhetoric than older ones, but they should also be careful not to talk down to their audience. While more experienced voters might respond to catch phrases and sound bites, a college student will benefit more from an explanation of the arguments undergirding a particular issue stand or the origins of a candidate's ideology.

There are also a few very specific and practical obstacles that young people, and especially college students, face when becoming politically active. Our research shows that many students are lacking in familiarity with the essential logistics of casting a ballot. College students are often first-time voters and need access to basic information about registering. Because they tend to spend Election Day away from their official residences, they may need guidance in securing and casting an absentee ballot. None of these obstacles is insurmountable but each can certainly depress participation; campaigns could be instrumental in helping college students overcome these hurdles.

Campaigns choosing to engage these young people are likely to gain much more than just votes. Students indicated a strong willingness to become more active in politics. Almost two-thirds said they would likely go to a political rally if a peer asked them to do so; and approximately half responded that, if asked, they would volunteer for a political campaign. Young people have the time and energy to make good on their expressed desire for involvement. This propensity toward activism is perhaps most evident in the fact that young people today are choosing to volunteer for charitable and community service in astoundingly high numbers. Our surveys indicate that rates of volunteerism are especially high among college students. College students are a plentiful resource that could be channeled into political action.

Finally, young Americans deserve attention from campaigns because they are our political future. More than 40 percent of college students identify themselves as independents. As they hear from the candidates and the parties, many will develop a political affiliation that is highly likely to strengthen as they grow older. Therefore, cultivating young voters is a strategic investment in a party's political future and in the outcome of future elections. We also have a civic responsibility to engage young voters in the public business of America. They are not simply the voters of the future but also the leaders of the future.

**"Young people are highly independent and do not vote as a block."**

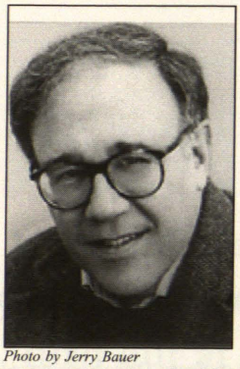


Photo by Jerry Bauer

# CRAFTING LEADERS AT YALE

## *Kingman Brewster and the Rise of the Liberal Establishment*

by Jim Sleeper

Kingman Brewster Jr., the grand, wily, wacky eminence who ran Yale from 1964 to 1977, wanted it to produce each year 1,000 "leaders in their generation … who will have a constructive impact on our society thirty years later." He'd have been pleased with his latest harvest of presidential timber: Joe Lieberman ('64, Yale Law '67), John Kerry ('66) and Howard Dean ('71), not to mention Bill and Hillary Clinton (both Yale Law '73).

Two people probably not to have mentioned to the Brewster portrayed in Geoffrey Kabaservice's *The Guardians*, though, would have been George W. Bush ('68) and Dick Cheney (Yale dropout '61), who some think have buried the "liberal establishment" that Brewster ('41) and his circle piloted through the turbulent 1960s after inheriting it partly from an older Yale crew (W. Averell Harriman, Dean Acheson and others) that had framed the Atlantic Alliance and Cold War containment. Brewster's problem with today's team wouldn't have been partisan; he and many in his circle were Republicans, albeit of a moderate genus now almost extinct. What he sought was a leadership whose authority, like American national strength, rests in small "r" republican civic virtues that are seldom evident now and even less understood.

Brewster's crewmates included fellow Yale undergrads McGeorge Bundy, the Vietnam War national security advisor and later Ford Foundation president; Cyrus Vance, the roving ambassador, domestic mediator extraordinaire and Jimmy Carter's secretary of state; New York Mayor John Lindsay; and New York's Episcopal Bishop Paul Moore Jr. Kabaservice weaves their portraits and others' into a tapestry depicting the group's star-crossed voyage through critical national decision-making, political exile and death; his subtitle might better read, "The Fall of the Liberal Establishment." But this is a story of the quest for great American leadership which you can read both for country and for Yale.

*Jim Sleeper '69, is a lecturer in political science at Yale. He is at work on a book about American national identity and this piece is adapted from his* Los Angeles Times *Book Review of April 4, 2004. Prof. Sleeper will be holding an informal discussion of this essay with students who express a wish to attend. Please e-mail James.Sleeper@yale.edu if you are interested in attending this session.*

Some of Yale's public men were knit so tightly they could seem conspiratorial: As they ran the world (or ruined it, depending on whom one asked), Vance, Lindsay, Moore, and Bundy's brother Bill met with Brewster on the Yale Corporation. While Lindsay and Bundy (at Ford) collaborated in a 1967 community-control experiment in Brooklyn schools, they defeated a bid by William F. Buckley Jr. ('51) for a Yale Corporation seat by putting Vance on the ballot. Buckley also ran for mayor against Lindsay, whose 1969 reelection coincided with Moore's elevation as Episcopal bishop of New York.

No wonder that in the populist understanding of Yale's recent history, a gothically imposing, slightly dunderheaded, white-shoe male club is wrenched open to a vibrant pluralism of color, culture and class. That's true enough to make us forget about Plato's Guardians — cited in Kabaservice's epigraph — for whom the Republic is "so closely bound up with oneself that its interests and fortunes, for good or ill, are held to be identical with one's own." Where is such leadership nourished now? "Mother of Men, grown strong in giving," runs a song to old Yale, "Rich in the toil of thousands living, proud of the deeds of thousands dead!" A bit musty, but what now matches the depth of such constraints on narrow self-interest?

Brewster told a cousin who sent him an encomium to his antecedent Elder William Brewster—minister on the *Mayflower*—that he was "grateful that you and I had the wisdom to select such a magnificent ancestor." That bemusedly secure yet egalitarian sense of the absurdities of caste belongs in republican leaders who understand that their restraint is critical to others' freedom: Brewster had refused induction into his mentors' and friends' secret society, Skull & Bones. Vance and Elliot Richardson, a Harvard interloper in Brewster's circle and a Nixon cabinet dissenter, would fall on their swords, resigning high office rather than compromise

republican principles. "They were the 'guardian critics,' as the columnist Tom Wicker called them, who tried to break down the power of the smaller establishments by speaking from the heart of the American tradition in the name of the national interest."

But why did such men pass the torch to the rest of us without securing rites of passage, disciplines and standards that nourish not only "merit" but Platonic dedication, not self-promotion but self-denial and, in a crisis, self-immolation? Kabaservice credits Brewster's leadership partly to his youthful rites of passage as a sailing champion off his ancestral Martha's Vineyard: Tacking back and forth against the elements and other sailors with a nervy gambler's instinct, knowing when to trust winds and tides and when to defy them, he summoned a sense of the humorous, the awesome and the absurd against the powerful swells — both the swift, dark waves and the rich young men who rode them. Nautical metaphors salted his public discourse: His sense of "ideological frothiness" in Depression-era America and the new Nazi Germany suggests a detached yet attentive respect for the rush and suction of powerful tides moving across dangerous rocks.

Inland, at the elite boarding schools feeding Yale and Harvard under New England's charcoal skies, the very brooks seemed to bubble with moral instruction, and eight-man river rowing taught that self-denial for the common good requires first a self that has been made strong enough to deny. In Kabaservice's account, these privileged redoubts encouraged self-scrutiny, plain living and high thinking, an understated felicity of expression, a quiet readiness to take responsibility without reward and an ability to bear pain with grace (if only because spiritual grace was thereby assured). A characteristic self-deprecating humor deflected others' envy and one's guilt about privilege.

The term "character" is ridiculed these days as shorthand for elite breeding, but, as Tobias Wolff evokes beautifully in his novel "Old School," these lean, bonded boys honed not only the bookish but also the kinetic, emotional and moral intelligence which standardized "merit" testing was supposed to transcend. Progressive educators are rediscovering their value now and studying the dubious social consequences of too much standardized testing.

Did the old regimen require a father-to-son intimacy and hence a WASP patrilineal genealogy? Brewster's racist, reactionary father left him "a stepmother in every port," and he blamed his father's generation for the follies of Spanish-American War imperialism and of the "war to end all wars." It was his mother, Florence Bessie, who broadened him: At 17, at the Belmont Hill School, he won a debate against Groton's McGeorge Bundy and FDR Jr., arguing that "capitalism is more conducive to war than socialism," but he soon concluded that the center, with good leadership, can be tempered by the extremes raging at its margins.

As undergrads in the late 1930s, Brewster and Bundy split over new intervention in Europe, Brewster believing that America's republican experiment had miscarried so badly that internal reform must precede foreign ventures. But after Pearl Harbor, he, like his friends, enlisted (as neither anti- nor pro-Iraq war activists have done). He flew for the Navy and was a top aide in the postwar Marshall Plan. But his mission remained American internal reform — to revive national leadership with new blood as well as old truths. Kabaservice's tapestry shows Yale not as the rich boys' finishing school it had been for 50 years after the Gilded Age but as the crucible of civic leadership it had been earlier — and that it became for Brewster and would be for his new "leaders."

The Brewster circle's privilege did sometimes breed an elitist moralism and ignorance about society, though. There was sometimes an insouciant, faddish presumption—like that of some Bush "grand strategists" today—in Brewster's comrades' ventures into "urban renewal," inner-city "community control," and, in Bundy's case, into Vietnam. Kabaservice notes Thucydides' caution that it can be "a misfortune to have very brilliant men in charge of affairs; they expect too much of ordinary men." With Brewster's "Guardians" it wasn't brilliance as much as a presumption that everyone's resources were boundless and their in-

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**"As even moderate students (and Kerry himself) turned against the war, Bush contrived neither to fight in it nor to oppose it."**

tentions Platonic.

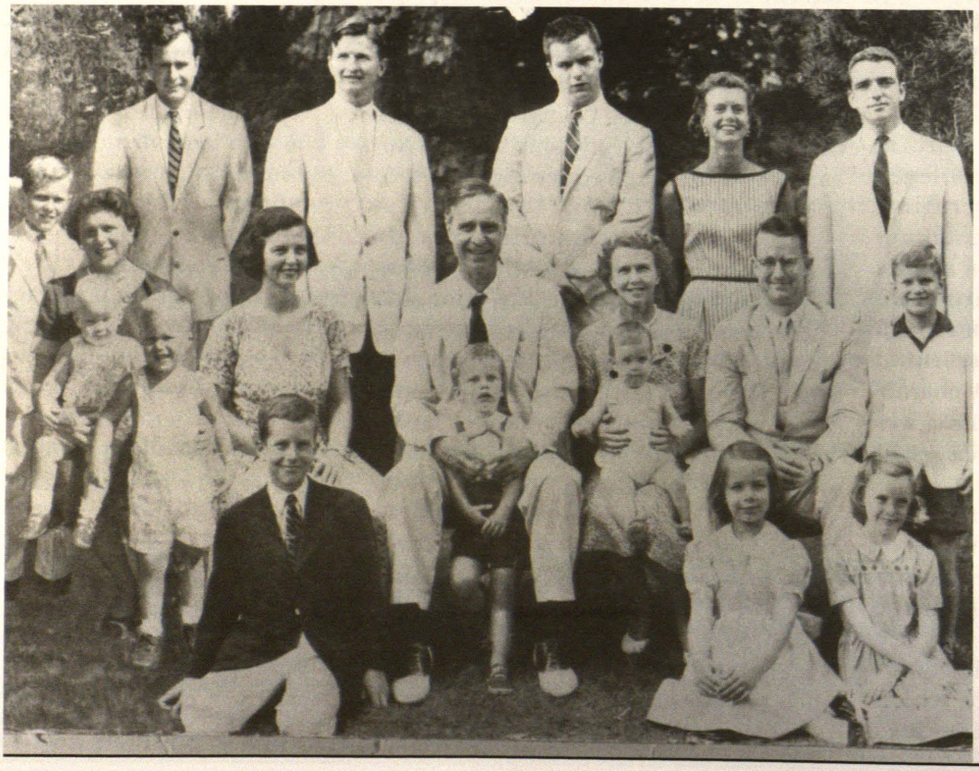
At Yale itself, that presumption could work. In the book's climax, Brewster's college, still the ancient temple of a national WASP elite but by then also a modern template for a new leadership training, becomes for two years its national testing ground: A tumultuous mass debate in the hockey rink in 1969 over the legitimacy of the Army's on-campus Reserve Officer Training Corps yielded a scrupulously counted 1,286-to-1,286 tie, prompting the community to abandon acrimony and roar with applause. A Washington Post reporter described "a strong sense that democracy had prevailed, that the administration was not scared of its students." Nor did the students fear one another. The process itself had won.

For nourishing it, Brewster was reviled as much by the radical provocateur Jerry Rubin (who kept miscalling him "Kingston Brewer" while trying to incite riots at Yale during the May 1970 Black Panther trial) as by Bill Buckley. And for the same reason, really: Brewster's liberals believed that truth emerges neither in radical pronouncements of the general will nor in the esoteric wisdom of would-be philosopher kings but provisionally, in the trust-building processes of deliberative democracy. "[A]nyone who is himself willing to listen deserves to be listened to," Brewster wrote in a 1967-68 annual report: "If he is unwilling to open his mind to persuasion, then he forfeits his claim on the audience of others."

In students like the dreadlocks-wearing future Baltimore Mayor Kurt Schmoke, he found the leaders he'd called for. They would learn that liberalism depends on virtues and beliefs that the liberal state itself cannot nourish or impose. But the counterintuitive lesson is that therefore liberal leaders must somehow be nourished all the more intensively. Yale did that. Days after it settled the Panther-trial crisis peacefully, the Kent State killings recalled violent police busts at Columbia and Harvard in 1968 and '69.

"To a remarkable extent this place has detected and rejected the very few who have worn the colors of high purpose falsely," Brewster told my entering class on Sept. 13, 1965. "This is done not by administrative edict ... but by a pervasive ethic of student and faculty loyalty and responsibility ... which lies deep in our origins and traditions." No one knew better than he how fragile those traditions are and what daring artistry it takes to keep trust alive. When John Kerry '66 joined the Navy out of "old school" duty like that of Brewster's Guardians (and out of career calculations that weren't incompatible), 60 percent of Yale upperclassmen believed the United States should remain in Vietnam. Two years later, as even moderate students (and Kerry himself) turned against the war, George W. Bush contrived neither to fight in it nor to oppose it.

Yale's own guardians have changed: Three months before Sept. 11, the university gave the untried Bush an honorary doctorate. Kabaservice reminds us that one of Brewster's first such awards, in 1964, went to Martin Luther King Jr., then newly out of jail. But the challenge remains what King and Kingman said it was — not just to open the doors of leadership but to deepen its republican commitments.



***A Yale tradition**: The Bush family is one of several that has seen numerous Yale presidents.*

# DEBATE VERSUS ACTIVISM

## *Talking the Talk or Walking the Walk at Yale?*

by Meredith Startz

Last spring, I asked a politically involved friend why he never came to Yale Political Union (YPU) student debates. He laughed, and gave me a surely-you-jest look. Upon discovering that my question was serious, he rattled off a long list of reasons, most of which I had heard before: Union members are pompous, the Union is out-of-touch with real world politics, and that the debates don't accomplish anything of value. This sort of distaste for the insular and somewhat cultish YPU is par for the course among Yalies who belong to the myriad activist and volunteer groups on campus.

Many members of the YPU exhibit a similar distaste for those who devote their political energy to lobbying and protesting rather than debate. Former YPU President Steven Christoforou summarized this attitude toward campus activists when he wrote in the Yale Free Press, "Rather than speak and argue with those who disagree with them, [activists] shut their ears and shout as loudly as they can." The general impression of activists in the YPU is that frenzied sign-waving and petition-pushing conceals a mindless acceptance of certain political beliefs.

From whence such scorn? Activists believe that YPU members talk the talk but don't walk the walk; YPU members believe that activists just start walking without bothering to think about whether or not they're going in the right direction. The mutual disdain that exists between Union members and activists seems odd given that both groups share an underlying interest in politics, and sometimes even a common ideology. In truth, the bitterness has been exacerbated in recent years by the increasing dominance of conservatives in the YPU compared to the majority of liberals in activist groups. However, the divide goes deeper than political affiliation — it originates in a fundamental difference between those who tend toward discussion and those who tend toward action.

The YPU is a debate organization, devoted to political discourse rather than political action. The YPU hosts guest speakers – politicians, professors, diplomats – and sponsors student debates on topics ranging from minimum wage to marriage. Meetings follow formal parliamentary procedure and rhetorical skill is highly valued. Surrounding the YPU is a culture of philosophical discussion and inquiry – it's not unusual to find members discussing the meaning of virtue over pizza at midnight.

The label "activist" refers to the many groups at Yale devoted to advocating some cause, from legalizing or banning gay marriage to providing shelter for New Haven's homeless. These groups raise funds, lobby, protest, and advertise – in essence, the things that any advocacy group anywhere in the country would do to promote its political agenda. While some activist groups stay on campus to influence students or the university administration, others form coalitions with New Haven or Connecticut organizations and work on the city or state level.

Clearly, the real world of politics – beyond undergraduate life at Yale – has need of both talkers and doers. Nonetheless, it would be a shame to give in to bitterness and self-segregation while remaining within the safe but artificial fantasyland of collegiate life. Debate and activism at Yale each have their distinct merits and failings, but members of both groups could benefit from better relations.

The YPU is well-suited to take advantage of the unique opportunities for debate available to Yale undergraduates. Yalies are able to spend hours sitting around with intelligent peers and professors, simply discussing ideas. Most people will never have that opportunity later in life. College is the time for listening, reading, thinking, talking, and arguing. A lot of that goes on in class, true enough; but think of the YPU as a self-directed political science course, with no homework and dozens of classmates eager to talk through to any idea that comes into your head.

Activist groups are not generally Yale-centered, and because of that, they give members valuable experience in real world politics. Activists hold the conviction that caring about an issue and being placed in a situation with the ability, time and resources to make a difference creates a responsibility to do so. It is easy to get caught up in the elite, protected Yale bubble, and to lose touch with the real world; assuming,

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that is, that one was ever in touch with the real world. Social activism cures Yale-itis, both by putting one in contact with people and issues that matter off-campus, and by giving one a chance to practice the skills and techniques that are effective in creating actual political change.

Some of the criticisms that activists and Union members make of each other hit close to home and highlight real faults in both that prevent political life at Yale from flourishing as fully as it should.

The suggestion that all activists are mindless, brainwashed sign-wavers is a silly stereotype. However, it seems fair to say that in general those who spend more time lobbying and fundraising spend less time philosophizing, debating and engaging in critical political self-examination. Occasionally this may be caused by a dogmatic political outlook. More frequently, it's the result of having a finite number of hours in the day—Yalies are busy, and they usually choose a few activities that best fit their abilities and interests. If one has a moral conviction to improve the world, and one's talents lie in organization and persuasion, it seems only natural that activism is the pastime of choice.

**"The divide goes deeper than political affiliation – it originates in a fundamental difference between those who tend toward discussion and those who tend toward action."**

That said, college is the right time to not only do what comes naturally, but to question, experiment, grow, and generally stretch the mind while it's still young and flexible. Most people arrive at Yale with a set of ingrained political ideas and biases, both YPU members and activists alike, and there is no shame in that. Beliefs originate in many places, and there is nothing wrong with finding your political roots in family, region, race, religion, or experience. However, it is crucial at some point in one's life to take a second look at those beliefs, to question preconceptions, and to hear the other side of the story. That is what the debate is all about – ideally.

There are several important outcomes of debate that all politically inclined Yalies should experience. First, debate leads to a better understanding of one's own beliefs. I would guess that most Union members graduate with a political ideology fairly similar to the one they held during freshman year. I would also guess, however, that most graduate with far more sophisticated reasons for believing the things they believe. This increased self-knowledge arises from defending ideas publicly; defending them not only from the podium during formal debate, but also during the casual discussions and arguments over dinners that are key to YPU culture. The best teachers know that a crucial step in learning and understanding something is being able to explain it to others. The YPU gives its members the opportunity to "teach" their beliefs to a class full of smart students who won't hesitate to ask questions and hold speakers to a high level of intellectual honesty. Debate should be about challenge and growth, about pushing students to dig down to their most fundamental beliefs and reemerge with a clearer, more confident understanding of their ideals.

Debate also helps one to know the enemy. Listening to the other side is good for anyone, both intellectually and socially. Really listening, that is: thinking of one's opponents as intelligent people, asking probing questions, trying to find the reason behind their madness. But why bother at all? For one thing, understanding the opposition can help one to fight more effectively for one's own beliefs, both in debate and activism. Second, and perhaps more importantly, learning to respect and interact with people who one disagrees with politically is an empowering, maturing experience. The underlying lesson is about being comfortable with diversity and thriving amidst it. It is very difficult to accept and respect something completely alien while still maintaining a firm belief in your own ideas; to do so means becoming a more confident, self-sufficient person, secure in the knowledge that one's opinions are one's own and not reliant on those around.

The last reason to engage in debate is the most important but also the least likely. To be blunt: one might actually change one's opinion. Unless one was severely brainwashed in childhood or lived on a small island with no TV or newspaper, it's unlikely that one's fundamental ideas about the world will change drastically. However, the chance that someone might convey the truth of the matter so effectively as to change one's mind, even about something small, is not to be ignored. There's also, of course, an equal chance of convincing another of truth through one's own powers of persuasion.

Challenging one's own and others' beliefs is the ostensible purpose of the YPU. In reality, the YPU as it is falls short of being the perfect forum for political discussion and personal growth. The debate that occurs at YPU meetings is not debate pure-and-simple; it is not a friendly argument

over dinner, or a discussion about the meaning of life with your best friend late at night. Instead, it's a highly stylized type of debate, filled with formality and ritual. It is easy to get caught up in trying to prove someone wrong, which often leads to debate tactics that detract from the larger purpose of the discussion. This is seen through drawn out arguments about small points of inconsistency, or statistics wars in which people throw around numbers of dubious value and relevance. Newcomers usually find the parliamentary procedure bewildering and are too intimidated to ask questions, let alone take the stage themselves. Many of the parties within the Union have secret initiation and election rituals. And what if you like debate but not bowties? It would certainly be an exaggeration to say that everyone in the YPU wears a suit to meetings, but formal attire is a part of the culture, and some of the right-wing parties enforce a rigid dress code.

In essence, comparing political activism to debate is much like comparing the practices of the U.S. Army to judo. One is a powerful, effective fighting force, while the other is a traditional and ritualistic style of personal combat. It's worth noting that the U.S. Armed Forces uses martial arts to train soldiers, in the belief that it helps them achieve better ethical judgment and greater mental and physical acuity. Judo alone cannot be a tactic for war, but it is irrefutable that training in the art can make individual soldiers into more competent warriors.

It is hard to blame activists for not wanting to join the YPU – debate may be all very well and good, but debate in the YPU comes with a lot of baggage. The YPU shouldn't get rid of its unique quirks and culture just to make itself accessible to everyone. Nor should activists force themselves to suffer through all the decorative nonsense that surrounds YPU debate. How, then, can the two groups come together to make the most of Yale's political opportunities?

The YPU can easily make itself more open to newcomers and activists without losing sight of its essential traditions. It can begin by hosting guests who interest activists, and publicizing events more effectively so that people outside the YPU inner circle know to attend. But more importantly, the YPU can change its attitude toward visitors. In general, YPU regulars are not interested in people who only come to debates occasionally, or who come to meetings but don't join a party. There is a feeling that if you're not interested in committing yourself full-time – body and soul – to a party, then you're an intellectual lightweight. This creates a hostile environment for activists who may not want to attend all of the debates or commit themselves to a particular party. The Union could benefit immensely from the fresh perspectives and real world experience activists would bring. The YPU should encourage part-time members, not look down on them.

Activists, for their part, should remember that behind the bowties and parliamentary procedure there are real people who are passionate about politics. Activists should attend YPU events without worrying about regular attendance, dressing up or knowing Robert's Rules of Order. While they are present, they should encourage YPU members to join their causes and lobbying forces to put their well-thought-out words into concrete and directed action.

Not all YPU members are cut out for activism, and not all activists will enjoy the YPU, but less bitterness and more intermingling between the YPU and activist groups can only improve campus politics at Yale. Increased interaction and understanding will ultimately improve the quality of both activism and discourse, and allow political life at Yale to flourish. P

**"Debate and activism at Yale each have their distinct merits and failings, but members of both groups could benefit from better relations."**

***Taking the cake**: John Kerry '66, the Democratic candidate for president, is a past president of the Yale Political Union.*

# AMERICA'S YOUTH AND VOTING

## *It's Not Just for Old People Anymore*

by Jonathan F. Zaff and Jennifer Phillips

College students, and young adults in general, are being touted as the new Swing Vote for 2004. With only slightly more than 500 votes in Florida having decided the 2000 Presidential election, and close races in upwards of 15 battleground states, these young voters could be a decisive factor. Consider the raw numbers: nearly 18 million 18 to 30 year-olds voted in 2000, and groups like MTV are encouraging young voter participation to the tune of "two million more" and "20 Million Loud" in 2004. In reality, the potential of this voting bloc is exponentially greater, with 60 million Americans under the age of 30. The numbers, and therefore the power, of the under-30 crowd will only continue to grow. The present generation of 0-17 year-olds, for instance, is bigger than the much-touted and often-chased Baby Boomers.

This young crop of potential voters is quite different than previous generations. Hispanic Americans and other ethnic minority groups are quickly expanding their rolls, creating a perpetual Benetton commercial in America's neighborhoods. They graduate from high school and college at higher rates than in any previous era and have been raised on an Internet diet. With numbers, education and technological savviness, you might assume that politicians would mercilessly be pandering to them in this election season. However, there is one problem: young Americans don't vote, or at least not like their parents and grandparents. And, since the promise of millions of votes is worth more than any political action committee could raise, the candidates spend their precious time campaigning to the voting masses.

To address this pervasive deficit in the basics of democracy among young Americans, we confront the myths about young Americans' civic participation, layout the barriers that disenchant these potential voters, provide an overview of the youth political engagement landscape and, finally, provide innovative, practical recommendations for reversing the downward voting trend.

*Jennifer Phillips is Director of National Programs at Harvard's Institute of Politics and heads the National Campaign for Political and Civic Engagement.*
*Jonathan Zaff is the president of 18to35, an organization devoted to promoting civic engagement among youth and young adults.*

**Urban Myths Regarding Young Voters**

It is necessary to dispel the urban myths about young voters. To understand the motivations, or lack thereof, of young voters, we first discount widely disseminated fallacies:

First, it is falsely suggested that young Americans will start to vote when they settle down. Cries of lackluster voter turnout directed at America's youth have filled the airwaves and newspaper headlines in these months leading up to November 2. To be fair, there's good reason for this criticism. Voting rates for young adults have steadily declined over the past three decades—the most pronounced deterioration being among 18 to 24 year-olds, with rates decreasing from 55 percent in 1972 to 40 percent in 2000. This stands in stark contrast to the voting habits of older Americans, whose participation rates reach upwards of 70 percent. Analysts estimate that if current trends hold, this nearly 2-to-1 voting gap could increase to a four-to-one gap within two decades. Even more importantly for our democracy, the assumption that Americans age into voting when they have mortgages, marriages and minivans is no longer a gimme. Indeed, the voting rates for all Americans have been declining consistently (except the 65+ crowd, thanks to the AARP).

The reason for this decline is complex, stumping the brightest political scientists, sociologists and psychologists across the country. The problem, though, boils down to a proverbial chicken and egg scenario. Countless young Americans do not vote because they believe that our country's elected officials do not listen to them. Conversely, politicians do not listen to young voters precisely because of low voting rates. This lack of perceived efficacy in the political process is an obvious turn-off to young Americans. Just imagine if you went to work everyday and never received a paycheck: a resignation would undoubtedly be close at hand.

A second myth is that young voters are apathetic. While young adults tend to be politically disengaged,

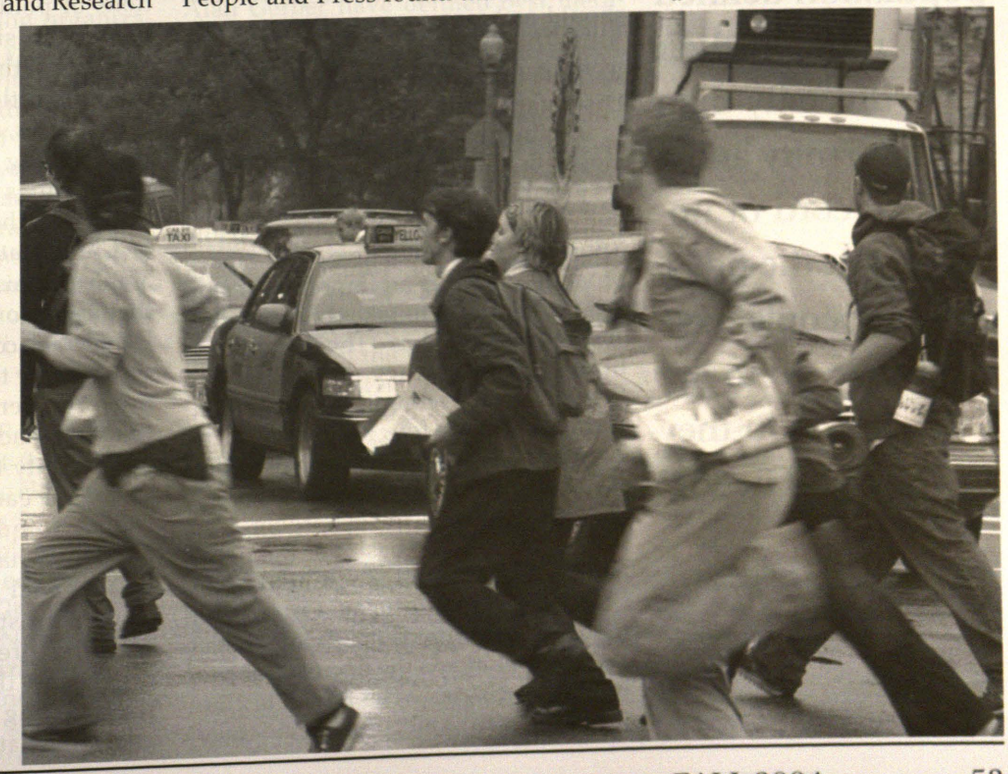
they definitely are not civically disengaged. According to recent surveys, 15 to 24 year-olds are volunteering as much as, if not more than, older Americans. Sixty percent of college students reported that they volunteered in 2000, but a striking 84% of college students had not participated in political, government or issues organizations. After 9/11, the numbers have still not changed that much: 65 percent volunteer; only 16 percent have participated in a political or issue-related organization. And the kicker: 85 percent of students still agree with the assertion that "volunteering in the community is easier than volunteering in politics."

This disconnect between political participation and civic engagement is apparent in attitudes about and of youth. A Center for Policy Alternatives poll found that 72 percent of young adults believe they have "an important voice, but no one seems to hear it." While young adults consider themselves to be "ambitious, determined and independent," these same young Americans believe that older generations view them as "lazy, confused and unfocused." Similarly, surveys in the late 1990s by Public Agenda found that well over half of adults believe the next generation will leave America in a worse condition than today. In addition, according to a poll conducted by the Center for Information and Research on Civic Learning and Engagement (CIRCLE), young adults don't think that politicians attend to their needs. This perception is grounded in reality, with a Third Millennium study finding that only 15 percent of campaign advertising was directed toward young adults during the 2000 Presidential campaigns.

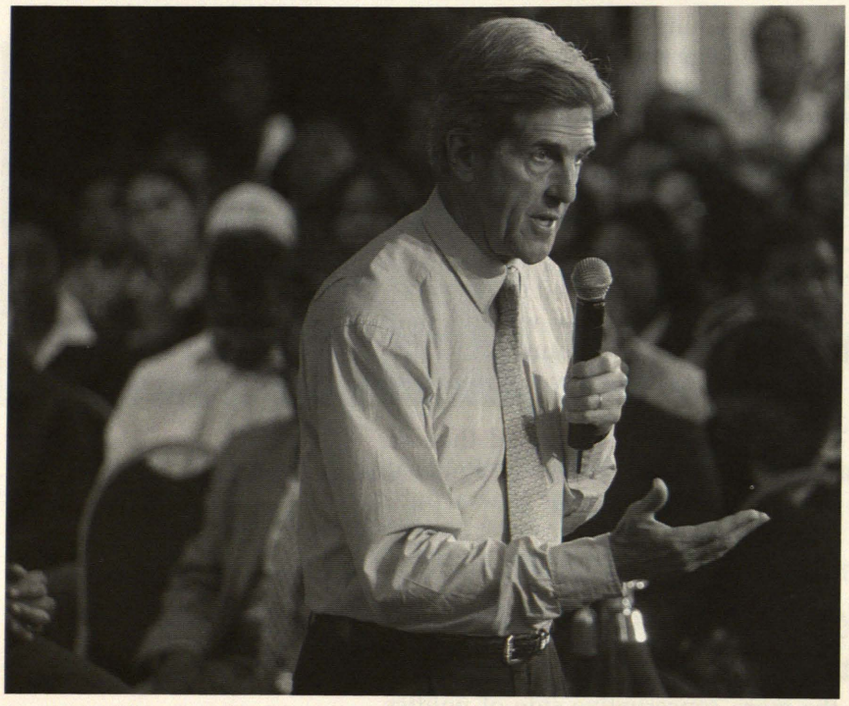
What is truly ironic is that America's nearly 70 million 18 to 35 year-olds are viewed as a prime corporate marketing target rather than as a political force. With politicians paying closer attention to the needs of groups that vote in high numbers, few should be surprised that the hottest topics on the minds of young Americans (e.g., paying for college and paying back college loans, finding gainful employment, obtaining health insurance and affording a first home) are not the hottest topics being debated by the Presidential candidates nor by the Congressmen residing on Capitol Hill.

With little interest and low support from older adults, coupled with neglect by politicians, is it any wonder that voting rates among young, civically inclined Americans have plummeted over the past three decades?

Many have long assumed that all young Americans are liberal. Political operatives have joined the general public in the belief that all young Americans are on the left side of the Socialist party, consider an idealized San Francisco to be Shangri-la, and are homogeneous when it comes to social policy. This misperception results in those on the more conservative side of politics to look elsewhere for support and for those on the Left to take the young vote for granted. Instead, the intense partisanship that defines the current political climate is at odds with the non-partisanship of a large percentage of young voters. With about 30 percent of young potential voters defining themselves as Democrats and 30 percent as Republicans, recent polls by the Harvard Institute of Politics and The Pew Center for People and Press found that at least 40



***Protesting youth**: Student activists from American University teamed with activists from Indiana run at the sound of an approaching police car after blocking traffic at an intersection.*



***Reaching out**: Senator John Kerry '66, Democratic presidential candidate, went on a weeklong college tour in April 2004.*

**"With a population defined more by their diversity than uniformity and a record of no-shows at the polls, young people have a way to go to get the attention they want and need."**

percent of college students and young adults shun political parties, considering themselves to be independent. These aren't maverick, non-conformist liberals either: fewer than 20 percent of college students say that they're liberal. Instead of partisanship, multiple national surveys show that young voters want candidates to focus on issues and ideas, rather than partisanship and politicking. Policy, not politics is a commonsense idea more politicians should embrace.

**Barriers that Encourage Political Disengagement**

In contrast to many of the commonly-held myths, the very real barriers to participation for young people are not well-known, but they are asserting a powerful and cumulative effect. Taken separately, each is an important factor. But it's more fun to take them together and think of them as "The Great Baby-Boomer Conspiracy to hold onto Power." In this tongue-in-cheek conspiracy, there are four key tent poles to:

1. Erode the very foundation of understanding how government works – civic education in the classroom. The decline in the very basics of the political system is well documented by CIRCLE and the Carnegie Corporation in "The Civic Mission of Schools" which clearly documents the decrease of civic education classes. The requisite class, "Problems in American Democracy" that steeped our parents' generation in the common issues facing American voters and elected officials is pretty much gone. With fights over the content that should be taught in the classroom and the increase in standardized testing in English and math, civic education has been squeezed out.
2. Create participation in civic life that doesn't really question the status quo. The rise of volunteerism and direct service from students in primary, secondary and post-secondary school is a well-deserved celebration of the interest and commitment to our communities. But with that participation, there is a frustrating lack of understanding of the relationship between community situations and the policy and politics that could or should change the situation. There is no one to "connect the dots" from public service to public life. Service means making a current situation a little bit better, or helping one person at a time, not creating the systemic change that impacts society, writ large. There is little, if any questioning of the policies or the decision-makers that create the environment that young, enthusiastic students volunteer to improve.
3. Make sure that very little news about government, political campaigns and politicians is actually news. Today's 24/7 world of news-driven advertising dollars means coverage and explanations of politics turns into a sport for insiders, using constant hyperbolic analysis rather than content. Giving precious little time to explain complicated issues, and making sure that constant yelling and disagreement is featured brings the masses to CNN, Fox and, gasp, the MSNBC-Hardball home of Chris Matthews. We have seen examples of this posturing play out in less than two months. We moved from the Democratic convention to the Swift Boat controversy to the Republican Convention. Yes, perhaps the political conventions are packaged, but they offer the opportunity to see the history and the vision of each party. They offer the chance to question why conventions happen, what's up with all the party hats as well as discovering the rising leadership stars. The fact that major networks present only one speech per night, and that cable networks send their talking heads into overdrive to analyze what may not have even hap-

pened, is just too post-modern. At the same time, the Swift Boat ad has been given hours and hours of television coverage by every news station and pundit talk show. What's the message here? Do we know any more about the candidates and their policies? Not exactly the way to encourage young Americans to grasp hold of politics.

4. Have campaigns and candidates spend as little time speaking to young, undecided, and unproven voters as possible. Oh, and don't forget to make sure that the political parties focus only on those who identify with each party's orthodoxy. Young people have grown up with Bill Clinton as president – a Democrat who cut spending, got rid of the deficit and reformed welfare. They've also lived with President Bush who increased spending for the war AND for education; and created more government jobs. Which president belongs to which party and which philosophy? The party names are not meaningful to young people without the experience of the War on Poverty or Reaganomics. As the pie of voters becomes smaller, candidates and campaigns carve up constituencies into smaller segments. Women become soccer moms, men become NASCAR dads, and each of these segments could become the "swing" voters who will determine the campaign, thereby claiming the right to be courted. And so youth political participation organizations try to define young voters as the new "swing" vote. But with a population defined more by their diversity than uniformity and a record of no-shows at the polls, young people have a way to go to get the attention they want and need.

So whether it's a conspiracy designed to maintain the baby-boomers in power or a significant blip on the American highway of democracy, the future of democratic participation looks somewhat bleak.

**Hope is on the Way**

But change is coming. Rock the Vote started the youth Get Out the Vote efforts in 1992 and is now the elder statesman. New groups, such as Smackdown Your Vote, the Hip Hop Summit, and Declare Yourself use their media and star power to engage voters. Grassroots efforts range from the New Voters Project, a national organization mobilizing young voters around the country, especially in six key states, to local-level efforts too numerous to mention. Campus Compact has launched the Raise Your Voice campaign to get students to focus on politics. And the Institute of Politics at Harvard (IOP) has partnered with colleges and universities around the country to develop the National Campaign for Political and Civic Engagement to move research into action and develop tools and strategies to bring students and politics together. Other groups have taken a more intentional policy focus to youth and young adult engagement. 18to35, for one, believes that engaging young adults in the political process is more than voting, it's having a voice in how public policy is created.

To guide much of this work, there is finally solid research about young people – who they are politically, what they think, how they behave, and how to reach them – that can provide direction for people in the political world as well as concerned citizens. The IOP began polling a national sample of college students in the spring of 2000 with the goal of documenting the divide between the large number of college students who were active in their communities and the much smaller number who were active in politics. Since then, the IOP has continued to research and document this group of young people. And other organizations, especially CIRCLE, continue to examine young would-be voters and how to reach them. Yale University's Don Green and Alan Gerber have defined best methods and rebuffed ineffective means for campaigns and candidates to interest supporters. Their work has led young people themselves to lead non-profit, non-partisan efforts to get their peers to participate in the electoral process.

Funding has poured in for research on how best to reach young people and move them to the polls. The Pew Charitable Trusts, Carnegie Corporation and the John S. and James L. Knight Foundation have let the way. Even the Federal government has joined the fray, allocating millions of dollars to state-level civic education initiatives.

Some wonks estimate that $50-$70 million are being spent on non-partisan efforts to research, document, recommend changes, and act to reach young voters. But will this actually change anything? Just as we desperately want to believe that young Americans will be storming the polls on November 2, our deep-seated cynicism kicks-in. Maybe more young adults will

**"A second myth is that young voters are apathetic. While young adults tend to be politically disengaged, they definitely are not civically disengaged."**

**"Instead of seeing November 2 as the end to get out the vote efforts, let's consider November 3 the beginning."**

vote this time around, but will they stay engaged? Disappear until 2008? Disappear entirely? Be replaced by aliens trying to take over the world? (there's that conspiratorial side again). Although we might sound like we're standing squarely on our soapboxes, we think that all readers would agree that a strong and legitimate democracy is one in which more, not fewer, citizens participate. We therefore believe that we have reason to push for more cohesive, effective efforts to make political participation an inherent part of American life, not a dreaded responsibility.

**If at First You Don't Succeed, Try Something that Works**

With myths discounted and the landscape portrayed, we can now turn to the real issue at hand – increasing political participation among young Americans. But political participation continues to decline despite laudable efforts over the past few decades. It's time, then, that we develop innovative solutions to this old problem of young Americans' political disengagement. These "new" solutions can and should lead to increased voter participation, and that participation could be the essential swing that will land President Bush or Senator Kerry in the White House. More importantly, by incorporating these ideas, we hope to encourage a strong, inclusive, and participatory democracy.

*Act on the root-causes of political disengagement and get away from the pragmatism of politics.* Most political participation efforts take a short-term approach, especially partisan efforts. The reason is understandable—candidates and political parties want to win, so they aim for immediate gains that have little staying power. Research shows that while political professionals think that the purpose of a campaign is to get a win for a candidate, the general public believes that campaigns are to education the community on candidates and the issues. We recommend that the two beliefs—winning and educating the public—should not be mutually exclusive. Campaigns and candidates should take the time (including with their advertising dollars) to really address the issues, instead of bashing the other candidate. This more effective approach would start to open the political door to young, civically engaged Americans.

*Fix the voting infrastructure: registration.* No two logistical issues affect young Americans more than voter registration and absentee voting. Obviously, young voters cannot vote unless they

***Extending a hand:*** *President George W. Bush greets a group of students in Albuquerque. New Mexico is expected to be a key state in the upcoming election.*

are 18 by election day. However, in many states, they can register to vote before that birthday (as long as they turn 18 by the day of the election). There is even now legislation to move that date even earlier—to make voter registration available for young people as they get their driver's license. Though this is not a magic pill—not all Americans get their driver's license, nor does registration ensure that people will vote—it's a start. And, for the youngest generation, it creates earlier ownership in the political process.

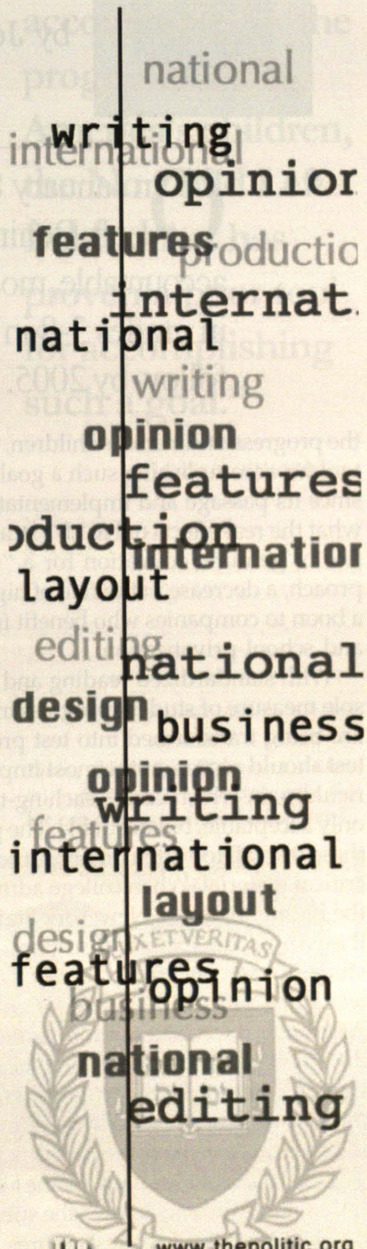
*Fix the voting infrastructure: absentee ballots.* With new identification rules, all voters must provide identification at the polls or with their absentee ballot. So why is the online absentee voting process so cumbersome for the Internet generation? Filling-out and downloading an application, finding an envelope, buying a stamp, sending the application in, receiving a ballot, and then mailing that ballot in by a state-specific deadline be the process. You lost us at "hello." Some states thankfully allow web-based application requests, and really, all states should. Cutting some of the steps out of the absentee voting process, without risking fraud would greatly enhance the efforts of the 40 to 50 percent of college voters who will vote absentee, not to mention our soldiers serving abroad and the other Americans who are either abroad or just simply out of their districts on election day. And how about the Secretaries of State agreeing on the same deadlines for absentee voting? One national date (or period of time) for applying for your application, and one deadline for voting. Okay, the voting deadline is similar from state to state, but the application deadlines are all over the place. How about a two-weeks-before-the-election deadline for your application to be received, and your absentee ballot by election day. A uniform deadline will help all those voter registration and mobilization efforts that we see on campuses and in the community.

*Educate and empower young Americans.* Fight-or-flight kicks-in when humans are confronted with the unknown, and young Americans fly pretty fast when they don't understand how politics work or how they can become involved. Bringing civic education back to primary and secondary school curricula would be a first step to confronting this innate response. Empowering young adults would be the next step. As we mentioned before, you would stop working if you were never paid. Efforts need to be made to show young Americans that they can make an impact on the political process, that they will be rewarded for voting, for voicing their opinions, and for holding their elected representatives accountable for their actions.

*Collaboration instead of competition will result in a better return-on-investment.* $50-$70 million dollars is a whole lot of money to spend on engaging young Americans; and that doesn't even count the investments by issue-based advocacy groups and the political parties. The money is spread among large national and small grassroots efforts around the country. Most take on all forms of voter mobilization: grassroots registration, media, advocacy and policy. Even worse, there are few coordinated efforts. Imagine the power and exponential increase in effectiveness if these groups worked together. An example of an informal coalition illustrates the possibilities. Smackdown Your Vote has brought together, among others, the media might of World Wrestling Entertainment, Rock the Vote, and MTV with the grassroots power of the New Voters Project and League of Women Voters and policy work of the Harvard Institute of Politics and 18to35. By leveraging each members' resources, all organizations can be more efficient and effective in fulfilling their missions and reaching their goals.

We believe in these ideas, but we aren't so naïve or so narcissistic to believe that these few recommendations alone will bring about the systemic change that will impact our democracy. We are adamant, though, that every America, young and old, has a vested interest in improving our democracy so that everyone understands their role as a citizen and that our elected officials know that they will be held accountable for their decisions. Instead of seeing November 2 as the end to get out the vote efforts, let's consider November 3 the beginning of the Get Out the Voice efforts to provide the opportunities for young Americans to voice their opinions and to challenge our elected officials to listen. Only then will the younger generations understand their power, role and responsibility as Americans.


See yourself working for *The Politic* on many levels:

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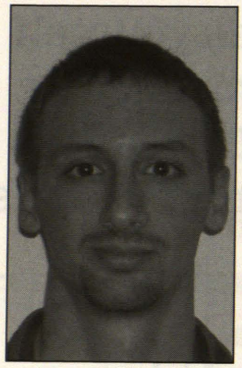

# EDUCATIONAL BACKLASH

## *How Standardized Testing is Failing America's Children*

by Jeremy Watford

On January 8, 2002, the Bush administration passed the No Child Left Behind Act. The Act sought to hold our nation's schools accountable, most notably by requiring state-mandated testing of children in grades 3-8 in the subject areas of reading and math, with science to follow by 2005. Though our schools should certainly be accountable for the progress of America's children, the Act has proven a poor tool for accomplishing such a goal. With two years elapsed since its passage and implementation, we can look back at what the real effects of NCLB's strategy have been: the sacrifice of genuine education for a "teaching-to-the-test" approach, a decrease in the rate of high school graduation and a boon to companies who benefit from standardized testing and school privatization.

With standardized reading and math tests becoming the sole measure of student progress in many states, classrooms are being transformed into test prep centers. In theory, the test should represent the most important aspects of the curriculum, in which case "teaching-to-the-test" would be not only acceptable, but desirable. The problem, however, is that these tests all too often do not sufficiently represent the most critical material. When college admissions officers reviewed the highly regarded New York State Regents Examinations, they found the exams "insulting" to the literature and the student, and concluded, "if you want to know whether this test helps prepare students for college, the answer is no." Assuming the content of the exams might be revised, it still does nothing to overcome the fact that much higher-order thinking cannot be thoroughly assessed with standardized paper and pencil tests, as was admitted by the test-promoting organization Achieve, Inc.

Regardless of the quality of the tests, does direct test preparation help students master the subject? The answer is again no. Although it boosts tests scores, it does not contribute to real understanding. A study of 18 states compared trends in state test scores with trends on other standardized tests. In more than half the states, performance went down on the ACT and SAT, while improving on the state tests. In Kentucky, state test scores went up on test items that were reused, but dropped when new items were introduced. This indicates that students are coached on previous test items, resulting in memorization rather than an actual grasp of the material. It seems increasingly clear that a high percentage of students passing state tests does not indicate that the school is doing a better job of educating the students in the relevant subjects.

Not only is the teaching of tested subjects suffering, non-tested subject areas like music, art, and foreign language are left by the wayside. As one teacher said, "At our school, third- and fourth-grade teachers are told not to teach social studies and science until March," after the tests have been administered. Eighty-five percent of teachers report that their school focuses less on subjects that are not on their state tests, and in a nationwide poll of more than 1,000 public school teachers, *Education Week* found that two-thirds felt their states had become too focused on testing.

As the name implies, the purpose of the standardized testing central to No Child Left Behind's strategy is not only school accountability, but ensuring that all students meet "challenging" academic standards and closing the gap that exists in achievement between students of different races and class backgrounds. Once again, the use of standardized tests, particularly the same tests for all students across a state, is an utter failure in this objective. Students of color, students with disabilities, English-language learners and low-income students are failing state graduation tests at rates as high as 60% to 90%. In Georgia, two of every three low income students failed the math, English and reading sections of the state's competency tests, while no student from well-to-do counties failed any of the tests. In fact, most of those students even exceeded the state's standards. In Ohio, almost half the students from families with incomes below $20,000 failed the state exams, while nearly 80% of students from families earning more than $38,000 passed.

The most damaging effect the testing craze is having on students is that of forcing them to repeat a grade. More than half of the states now have laws that require state tests to determine whether students are promoted to the next grade.

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Not only are students being held back for failing these tests, they are being held back because pressure for schools to show improved test scores leads administrators to hold back potentially weak students the year before an important exam is given. Thus, an eighth grader will be a year older and have an additional year of test preparation before sitting down to take the test. The effects of such a practice are disastrous. Retention in grade is the single strongest predictor of whether students will drop out – stronger than family income or parent's educational levels. The National Research Council found that poorly performing students who are held back do worse academically and socially, and are far more likely to drop out, than equally weak students who are promoted. Across the country, according to a study by Walt Haney at Boston College, there were 13% more students in the ninth grade in 2000 than there were in the eighth grade in 1999. Retention rates are especially high in Texas and North Carolina, states with particularly impressive scores on the National Assessment of Educational Progress. This practice makes schools look good at the expense of students. Additionally, Haney predicts, "senseless provisions of NCLB likely will lead to a further increase of 5% or more in grade-nine retention. And of those who are flunked," he says, "70% to 75% will not persist to high school graduation."

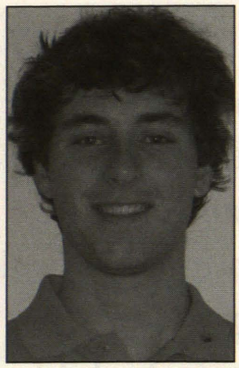
So just who does benefit from the priority given to standardized tests by the No Child Left Behind Act? The most immediate beneficiaries have been various corporations commercially associated with testing. The *Wall Street Journal* in December 2003 published a news story that began: "Teachers, parents, and principals may have their doubts about No Child Left Behind (NCLB). But businesses love it." Along with the windfall for companies that design and score the tests, "hundreds of 'supplemental service providers' have already lined up to offer tutoring, including Sylvan, Kaplan Inc., and Princeton Review Inc. . . . Kaplan says revenue for its elementary- and secondary-school division has doubled since NCLB passed."

In the long term, the Act gives the biggest boost to critics of public education and proponents of privatization. The law's criteria for being judged successful – how fast and how high the scores must rise – is ridiculous. NCLB requires every single student to score above the proficiency level by 2014, something that has never been done and few believe possible. As Monty Neill of FairTest argued, the criteria for making "adequate yearly progress" toward that goal are such that "virtually no schools serving large numbers of low-income children will clear these arbitrary hurdles." Thus, "many successful schools will be declared 'failing' and may be forced to drop practices that work well. Already, highly regarded schools have been put on the 'failing' list." Indeed, many educational scholars and politicians have argued that the Act was engineered to cast public schools as failures. Sen. Jim Jeffords (I-VT), chairman of the Senate Committee on Education from 1997 to 2001, has described the law as a covert maneuver "that will let the private sector take over public education."

Regardless of the genuine motivation behind the Act, it is an incontrovertible fact that it is failing, and will continue to fail, its stated objectives. Rather, instead of improving our nation's education system, NCLB is only making the situation worse by increasing grade retention and thus high school drop out rates, as well as decreasing the actual education of students in the relevant subjects. No child left behind? The use of standardized testing to such a high degree is leaving quite a few children behind and will only continue to leave more.

**"Though our schools should certainly be accountable for the progress of America's children, the No Child Left Behind Act has proven a poor tool for accomplishing such a goal."**

***Taking the Pledge:*** *Elementary students in Washington, D.C., can salute the flag, but can they pass a standardized test?*



# STEALING FROM CALIFORNIA

## *Blue Cross Running the Gauntlet on Californians*

by Ted Long

Blue Cross of California was originally founded in 1937 as a hospital service corporation to keep hospitals open during the Great Depression. For the last 55 years, Blue Cross has operated as a non-profit health insurance company serving Californians. However, in 1993, Blue Cross of California CEO Leonard Schaeffer decided that it was time for a change. He decided to make Blue Cross a for-profit corporation. To date, the Blue Cross community has experienced some ups and downs springing from the for-profit conversion – ups for the executives and downs for patients. Schaeffer has pocketed well over $100 million, and Blue Cross enrollees have experienced outrageously inadequate healthcare coverage and unprecedented premium hikes.

But what separates this cutthroat business practice from all of America's other profit-mongering companies? Blue Cross is very special: its administration has realized that reading certain laws differently allows it to cheat the system and reap enormous profits.

The Knox-Keene Health Care Service Plan Act of 1975 marked a historic change in America's healthcare system. This new law allowed for the formation of health maintenance organizations (HMOs) and other managed health insurance plans in the state of California. However, an integral part of the Knox-Keene Act was regulating the new managed healthcare system. In an effort to make sure that health maintenance organizations and other health insurance distributors provided adequate healthcare to enrollees, the Knox-Keene Act included an important regulation: "the direct or pro rata portion of all expenses incurred in the operation of the plan which are not essential to the actual provision of health care services to subscribers and enrollees [must not] exceed 15%." The word 'expenses' in this context is intended to encompass administrative and profit revenue, so that a given healthcare company could not take 50% of its revenue away from medical coverage and keep it as profit.

In fact, 84% of HMOs in California give 85 cents on the dollar to medical care for enrollees; whereas Blue Cross gives on average about 78 cents on the dollar to healthcare, keeping the rest as administrative and profit revenue. This abusive practice makes Blue Cross of California the worst of California's large HMOs in terms of putting the least possible amount of money into medical coverage for enrollees.

But the situation described above is even worse. In addition to Leonard Schaeffer's having made millions of dollars for himself, Blue Cross of California made the Fortune 500. Blue Cross's absolutely deplorable accomplishment is directly attributable to the fact that its leadership chose to read the Knox-Keene Act incorrectly. While keeping only seven cents on the dollar may not seem significant, between 1994 and 2003, this petty change turned out to be $4.07 billion.

In a recent public hearing about Blue Cross's upcoming merger, which will be discussed later, Steven Thompson of the California Medical Association confronted several Blue Cross executives about Blue Cross's blatant thievery of $4.07 billion from California enrollees. The executives laughed and stated that they simply saw the law differently.

What is the purpose of law if it cannot be enforced? The Knox-Keene Act was intended to prevent large managed healthcare corporations from making exorbitant profits at the expense of enrollees. However, the revelation of Blue Cross executives that they can interpret state law as it benefits them with no fear of government intervention has effectively nullified the healthcare regulations explicitly stated in the Knox-Keene Act. Furthermore, a cursory glance at Blue Cross's performance ratings explain how Blue Cross pulls in its enormous profits: It provides vastly inadequate medical coverage for its subscribers, and gets away with it.

In 2003, the Consumer Union's annual report rated Blue Cross in the lowest category for Access to Doctors, the most important indicator for quality of healthcare coverage. In addition, according to California's Office of the Patient Advocate *Quality of Care Report Card*, Blue Cross was rated the lowest of any health plan in the areas of "Care for Staying Healthy" and "Care for Getting Better." Blue Cross must not be allowed to provide its present illegal

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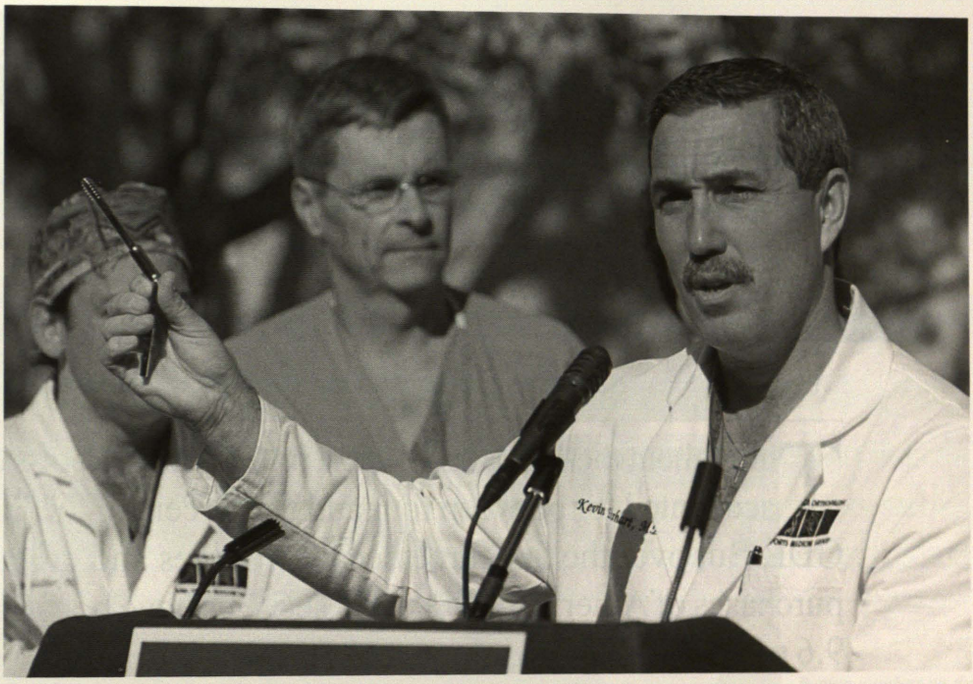
and embarrassingly low level of healthcare coverage to Californians.

Despite the fact that Schaeffer's Blue Cross was flattered by recognition in the Fortune 500, Blue Cross subscribers were not feeling especially wealthy. Around the time that Blue Cross made the Fortune 500, in the period of 2001 to 2002, Blue Cross raised premiums 20.9%. Even before this unnecessary increase, Blue Cross had already been charging nearly the highest premiums of any major managed healthcare corporation. These excessive premiums contributed to Blue Cross's violating the Knox-Keene Act.



***Pinning his hopes:*** *Dr. Kevin Erhart holds up the pin used for hip surgery – an elective procedure often denied by managed care corporations.*

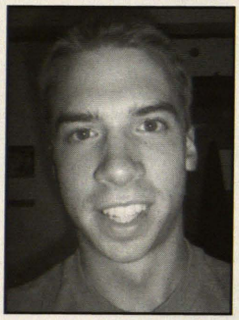
However, in a sudden change of direction, Schaeffer recently decided that it was time to turn over a new leaf. He decided to end the pillaging of Californians and sell Blue Cross of California to a smaller healthcare company called Anthem. While the Indianapolis-based Anthem is much smaller then Blue Cross in scope, it makes up for its lack of financial accumulation with a reputation rivaled only by Blue Cross itself for providing low-quality healthcare. If this acquisition should go through, Blue Cross enrollees' healthcare will go from bad to worse, especially because in the merger contract Anthem will only have to maintain one director for the entire state of California. Previously, under Blue Cross, California had a plethora of regional directors responsible for dealing with coverage issues and grievances. Shrinking this number will have catastrophic consequences for Blue Cross subscribers, who already have absurdly sub par healthcare.

In California, two government organizations must sign off for the sale to be completed. The California Department of Managed Health Care (DMHC), the agency supposedly responsible for overseeing healthcare practices, initially claimed that it would read over all of both Blue Cross's and Anthem's records and take time to deeply consider this proposal. Shortly after, the DMHC gave the expected green light, and the deal was considered to be sealed. But California Insurance Commissioner John Garamendi, in a moment of brilliant lucidity, rejected the acquisition on the grounds that it did not benefit Californians.

Of course Schaeffer immediately filed a law suit against Garamendi as a desperate bid to make him to change his decision, but the inspirations for this acquisition are painfully clear, and the implications must no longer be ignored. While Schaeffer alone stands to make over $76 million if the acquisition should go through, he is not the only managed healthcare CEO that has pocketed exorbitant amounts of money at the expense of enrollees; he is just one of the worst. America's healthcare system is out of control, in a large part because business executives like Schaeffer will do anything to make a profit, including providing low-quality healthcare and ignoring the law. This logic is pure economic theory, but that is why healthcare law was written – so that corporations could not get away with denying enrollees adequate medical care.

It is imperative that the California government either enforce the Knox-Keene Act, or rewrite it so that it can be more effectively enforced. Blue Cross of California must not be allowed to provide its consistently inadequate levels of health coverage for its enrollees. California's government and the DMHC in particular must take action to regulate Blue Cross: if Blue Cross still continues its destructive practices, it should be severely fined or have its for-profit license revoked. These are not radical ideas; this is merely a call for Blue Cross to obey the law like everybody else.

**"Blue Cross must not be allowed to provide its present illegal and embarrassingly low level of healthcare coverage to Californians."**



# REDUCING AMERICA'S TRADE DEFICIT

## *Fixing One Problem Abroad Solves Many at Home*

by Donald Turnbull

Throughout the 1950s and 1960s, imports and exports consistently accounted for between four and six percent of the United States GDP. But over the last three decades, surges and drops in foreign purchases of American goods and services have boosted exports to 9.6 percent of GDP, while steady rises in U.S. purchases of foreign products have raised import levels to a whopping 14 percent of GDP. With net exports on the order of negative $498.1 billion for 2003, we are witnessing the largest trade deficits in our history, in spite of recent weakening of the dollar.

Introductory macroeconomics teaches us that with a depreciating dollar, Americans get fewer units of foreign currency for a greenback. The result of such a shift is that imports become more expensive relative to domestic products – so the price sticker for that Porsche I've been eyeing becomes a lot less attractive, and to keep my wallet healthy I may just have to go with a Corvette instead. Correspondingly my friend across the Big Pond might find that the slick feel of Italian leather shoes just is not enough to beat the savings he could achieve on a pair of cowboy boots. So there should be a benefit to this weakening currency: With the Euro appreciating 45 percent against the dollar between February of 2002 and December of 2003, one would expect to see falling import levels and rises in the amount of exports, bringing about a reduced trade deficit. But the numbers just don't show this sort of result – in fact, for the second quarter of 2004, the U.S. trade deficit was on a $599.6 billion annualized pace – so the next question comes naturally. What *is* inhibiting the economic theory from becoming reality? Remember the last item you bought? I will hazard a guess and say it had an oval sticker with a gold background, black trim and black block letters that read "MADE IN CHINA."

While our NAFTA counterparts Mexico and Canada may be our two largest trade partners, the biggest culprit in ripping the torso out of the U.S. trade balance is China's astronomical value of exports to – and trifle of imports from – the States. In 2000, 41 percent of China's total exports were sold to the U.S., while China bought only two percent of America's total exports. The trade deficit with China was $49.7 billion in 1997, but that number has more than doubled to reach $124 billion for 2003, making it account for over 25 percent of the total U.S. trade deficit last year. Not only is that nearing twice the amount of our second-largest bilateral trade deficit (with Japan), but it is also over $20 billion more than our total trade deficit in 1997, just six years earlier!

So why isn't the United States reaping any benefits from its devalued dollar with respect to China? While many currencies such as the euro, Japanese yen and British pound have free-floating exchange rates with the dollar, the Chinese yuan (also known as the renminbi) is tied at a fixed rate of exchange with the buck. Because of this alignment, the yuan fluctuates in proportion with appreciations and depreciations of the dollar relative to other currencies. The relative costs of goods in the bilateral American-Chinese trade relationship therefore remain the same, and the potential for downward pressure on our trade deficit with China vanishes. Exacerbating the problem, European and Japanese consumers see no change in the costs of imports from China relative to the United States, and hence there appears no reason to substitute American-made products for those from China.

Quantifying the net effect of this exchange rate rigidity on the U.S. trade deficit and economy as a whole is no easy task, especially since the dollar began its slide just 30 months ago, and trade with China already accounts for far more than it did just before the dollar's plunge (the bilateral deficit was $83 billion in 2001). But its impact is undoubtedly significant, given the recent outcries about American business owners

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***Putting numbers on the board:*** *Customers at a local Chinese bank check various currency exchange rates.*

outsourcing jobs and hiring, among others, Chinese laborers.

So where is the light at the end of the tunnel for American protectionists and exporters? Though China first hinted at removing capital controls in 1994, the wheels – as with most political shifts in the country – are turning awfully slowly. Moving toward currency convertibility is certainly a task to be undertaken gradually, and China's leaders are far from sprinting through the doors of trade liberalization. In the world's second-largest economy, also one of the fastest-growing in recent history, unabated environmental degradation, poor regulation of financial systems, political tensions and the challenges of privatizing state-owned enterprises (SOEs) make for enough economic pressure on the leadership already, trade issues aside. And when an eight percent annual growth rate is necessary to sustain per capita rises in income, risking a reduction in China's trade surplus through appreciation of the yuan by floating the currency seems worse than just a low priority.

But as China continues its strong expansionary trend and as our national economies grow increasingly intertwined, this trade imbalance will likely continue to widen, making the transition to a floating exchange rate only less attractive to China and more necessary for the United States. Chinese officials have begun to worry that the country's recent blistering growth rates are so unsustainable that they will lead to an overexpansion, accompanied by a sharp rise in prices. In fact by keeping the yuan pegged at such a low value, China has elicited incredible demand for its currency and, through printing more yuan to please the market, has awoken the ominous specter of inflation. Its pile of foreign currency reserves, having rapidly grown to the immense level of $416 billion, is now second only to Japan for the largest in the world.

Luckily for China, upward movements of the exchange rate would have contractionary effects on an economy, thereby cooling the economy and holding down the price level. Skeptics would point to the Plaza Accord of 1985, when Japan agreed to appreciate the yen and watched its value double against the dollar in two and a half years, and question whether China could tolerate such a speedy and steep appreciation. Economists estimate, however, that the yuan is undervalued by only 15 to 40 percent.

Thus the time for applying serious pressure on China to float the yuan is

**"The time for applying serious pressure on China to float the yuan is now."**

**"We are witnessing the largest trade deficits in our history, in spite of recent weakening of the dollar."**

now. The currency hasn't budged since 1994, and American exporters – particularly manufacturers – are continuing to reel from a significant price disadvantage as we effectively subsidize Chinese exports. Though many have been quick to dismiss the manufacturing sector as being on its way out of the American economy, it contributed twice as much to productivity growth as the services sector throughout the 1990s. Without the yuan's pegged exchange rate, manufacturers – the most coveted of voting blocks – might experience a revival, and so a realignment of the yuan-dollar rate at a fair-market level would increase the export potential of this and other sectors of the U.S. economy. Protectionists and free trade advocates can therefore both find reason to rally behind the cause, and, indeed, support crosses the political divide among American leaders. In reference to China's fixed exchange rate policy last year, Democratic Senator Charles Schumer of New York asserted that "pegging the currency . . . flies in the face of free trade," while Republican Senator Jim Bunning from Kentucky said the Chinese were "cheating."

Perhaps if either major Presidential contender threatened challenging China's fixed exchange rate through the WTO, the nation might bend as a last resort. After all, the General Agreement on Tariffs and Trade states the objective of "entering into reciprocal and mutually advantageous arrangements directed to substantial reduction of tariffs and other barriers to trade," and it is difficult to argue that the yuan's egregiously far-from-market-equilibrium exchange rate with the dollar strives toward such a goal. Unfortunately, however, the dynamics of this issue are nowhere near the forefront of the political radar screen. Senator Kerry's pitch to tax foreign subsidiaries of U.S. companies is the only prominent proposal that directly relates to our trade deficit, and while it would, for example, reduce the effective importation of Chinese labor, Chinese-owned firms competing with these subsidiaries would gain from increased exports to the U.S., resulting in a net ambiguous effect on the American trade deficit.

So it seems that those who are losing out from this ever-climbing deficit have two options: 1) pray for an election-year shift in strategy toward more protectionist policies or 2) seek vocational retraining for those who have lost jobs due to America's trade imbalance. For, in the near future, it does not appear that either U.S. presidential candidate will pressure China enough to force a policy change.

***Counting the cash**: A bank teller in Beijing counts Chinese currency.*

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# INVESTMENT DISCLOSURE:

## *Hurting Yale's Long-Term Prosperity*

by Dennis Hong

Investment disclosure advocates appear to have noble intentions, but they lack information and focus when it comes to assisting Yale University in making ethical investment decisions. What seems to be lacking is a basic understanding of active investment management strategies, knowledge of the purposes of the university endowment, and an awareness of the long-existing forums at Yale which have been established to build productive consensus to address the concerns of investor responsibility. A fundamental understanding of these important elements will facilitate valuable dialogue in the future and bring the community closer to a consensus within the controversial ethical investment debate.

Much of the misinformation produced by the investment disclosure advocates demonstrates unfamiliarity with the investment management industry and with strategies of active management. Active management, as opposed to passive management, seeks to produce returns based on the well-informed judgment of investment managers. Passive management strategies, on the other hand, are based on producing portfolios which track the broader financial markets. For investment managers who pursue active management strategies, a given set of investment holdings represents a unique recipe for investment success – in essence, a trade secret, a formula that has given the manager an advantage over his competitors. Disclosure permits free-riders to outside-engineer a successful portfolio manager's methodology without paying the extensive costs of due diligence and research that has already been conducted. To illustrate, an investment manager disclosing his portfolio is like an individual playing poker with all his cards face up.

Full investment disclosure places Yale at a significant competitive disadvantage for similar reasons. If the University could not guarantee the integrity of a given firm's trade secrets, it stands to lose its competitive advantage of securing the very best, highest quality firms to manage its capital. Had Yale's portfolio tracked the broader financial markets through passive management strategies over the last two decades, its endowment would be worth billions less than it is today. It is dubious that Yale would be pre-eminent among the world's universities today had it not been able to produce consistent, value-added, robust returns on its investments. Moreover, second-guessing the ethical character and investment strategies of Yale's managers, who have undergone stringent due diligence processes prior to receiving the University's capital, does not help but rather hinders their abilities to add value. Full investment disclosure is therefore at odds with active management strategies which have added billions to Yale's capital stock over the last two decades.

Further arguments in support of investment disclosure revolve around a misunderstanding of the purposes of endowment funds. What disclosure advocates often forget or disregard is that the endowment was not established as an engine for political expression or social reform. The Yale endowment was established as a trust composed of the numerous gifts of generous donors to support the financial needs of the students and scholars of today and of tomorrow. The University was entrusted with these gifts on the condition that it would wisely invest these funds to maximize their values over an indefinite horizon. The last consideration that these donors had in mind was to see their gifts immediately decimated and beholden to the political interests of a loud minority.

The endowment is clearly not an instrument of political expression, and merely publishing a record of investment positions would only lead to unfocused, unproductive debate. Yet, the University administration has long supported structures such as the Advisory Committee on Investor Responsibility (ACIR) to provide a forum for productive debate on ethical investing and investor responsibility. The ACIR is organized to address the fundamental ethical concerns of the proponents of full investment disclosure, and to provide a venue for consensus-building which would dictate that the University should not allocate capital to a given investment or class of investments. Such consensus-building processes do not require that the University disclose its investments at any given time. Disclosure then is not a precondition for ethical investing.

The University is entrusted with the task of maximizing investment returns on the gifts that were donated by generations of donors. To pursue an alternate mandate and bow to any political agenda is to be woefully irresponsible not only to the donors but to the future generations of Yale students and scholars who will depend on these endowment contributions as much as the University depends on the endowment contributions now. Investment disclosure advocates may be rightfully motivated by the goals of investor responsibility, but these goals can be achieved through existing administrative structures, and their energies are better invested elsewhere. P

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counter point

# INVESTMENT DISCLOSURE:

## *Ensuring Yale Invests Ethically*

by Bora Bozkurt

Money is critical to the survival of any institution. Nonetheless, there are different strategies to make money, which have varying ethical implications. Business institutions pursue short-term or long-term monetary goals in order to maintain vitality and to offer services. Higher education institutions managing money are no exception – they have to follow strategies that would optimize the gains necessary for survival and growth. In light of this framework, a lack of disclosure concerning investments stands out as a double-edged sword that may increase gains due to monopolized investment opportunities and freedom to take risk, but decrease prestige and trust. While discussing disclosure, however, it is important not to go astray from a realistic and capitalist perspective in order to reach a practical, profitable conclusion. At the same time, there is more to investing money than simply increasing returns.

For example, imagine you have an interest in the international chemical industry, and you discover an arbitrage opportunity in fertilizers. You then establish the world's highest revenue-per-employee company, but keep it private due to your lack of need for capital. You have built an empire from scratch before the world has heard your company's name. Sooner or later, however, one of your top employees will establish his own firm with your well-kept secret and newspapers will run stories on your moneymaking scheme. It is impossible to sustain a monopoly in a market with no barriers to entry unless you are able to offer competitive pricing, extraordinary quality of service and most importantly respect and reputation among your clients.

Long-term success in finance has a similar formula. It is unlikely that the Yale Corporation stumbled upon an undiscovered gold mine. Rather, the world's most successful long-term money managers are those who trust their own instincts to remain profitable under any circumstances and hence do not have issues confidently disclosing their investment strategies.

The history of finance is full of companies that have attempted to sustain their own secret schemes of making money. In the 1970s J. Aron, a mysterious firm with a near monopoly in commodities, had its share of pure arbitrage. A decade later, Solomon Brothers' Lewie Ranieri came up with the idea of mortgage bonds and dominated the market for years to follow. Inevitably these companies lost their position in the market through time and were acquired by stronger players. On the other hand, Wall Street's giant investment banks and investment institutions hardly have their share of secretive arbitrage in any market, yet continue to expand their domain in the financial world through principles of maintaining perfect reputations and shying away from businesses that can damage their prestige. The major losses of profitability and prestige these companies have suffered were due to premature decisions to join the hypes, such as that of investment trusts during the 1920s, and supporting hostile takeovers and transactions conducted for clients with questionable businesses. The recipe for long lasting success is never an easy one.

Yale University's clientele are its loyal alumni, who know what they owe to this institution for their valuable years here and, even more importantly, for the many doors that their Yale diplomas have open for them throughout their lives. The institution's name has become associated with impeccable morality, hard work and a long lasting tradition of success. If this reputation were to be lost, Yale alumni would no longer feel compelled to donate money. Reputation is the hardest asset to gain, but the easiest to lose.

Yale's investment organization carries the Yale name and is completely liable to maintain this reputation. Even though it remains as a money building body, it cannot be run like a hedge fund with the sole purpose of making gains out of risky trades. The reason why the investment organization has a continuous inflow of money is not because it has earned unusual returns for the investors; investors – Yale alumni – are indifferent to its returns. It has a continuous inflow of money due to student and alumni faith in its good name. Its refusal to disclose its investments only implies that the institution wants to hide its moneymaking mechanisms and may be ashamed of its risky and dark investment opportunities with high returns.

The first lesson of morality taught in financial corporations is to use the "*Wall Street Journal* test" when in ethical doubt. Just assume that your actions were published on the front page of the *Journal*. Would they strike a blow to your and your company's prestige? This principle should be the guiding light for our institution's investments. Their disclosure can only serve to make sure that they pass the test.

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# GIVING IT THE COLLEGE TRY

## *Make Your Vote Heard on November 2*

Four years ago George W. Bush and Al Gore battled to a near tie in the race for the White House. Though Gore won the popular vote 48.4 percent to 47.9 percent, Bush edged Gore in the Electoral College by a razor thin 271 to 266 margin. In individual states, the race was even closer: Gore won New Mexico by 0.06 percent, Wisconsin by 0.20 percent, Iowa by 0.32 percent and Oregon by 0.45 percent. And, of course, the election was really decided in Florida, where Bush defeated Gore by the contested margin of only 537 votes.

At this point there is little need to examine further the Florida recount ordeal of 2000, which has been debated ad nauseam by pundits, politicos and lay citizens alike. Instead, we turn to another crucial feature of the 2000 election and the reason that *The Politic* was founded in the first place: voter apathy.

In 2000, only 76 percent of eligible adults nationwide were registered to vote; among these registered voters, only 67.5 percent turned out to vote on Election Day 2000; and among all eligible voters, turnout was a pathetic 51.3 percent. Here on Yale's campus, students pride themselves on being engaged with the world around us. Thus, it was disheartening that the voting rate among young people, aged 18-25, was even lower than they national average in 2000: a paltry 42 percent.

These statistics and a perception of apathy toward politics at Yale were the driving force behind the creation of this publication four years ago. *The Politic*'s founders, Sam Yebri and Brian Wallach, believed that bringing information about pressing political issues of our day to the Yale campus would foster an informed and active student body – the kind of student body that would turn out to vote in far greater numbers than in 2000. Their goal was not a partisan one, and this non-partisan approach has been reflected in our editorial boards, which have had members ranging the political spectrum, from libertarian to near-communist. And over the past four years, these editorial boards of *The Politic* have strived to fight against student apathy by publishing a quality quarterly magazine that is heavy on content and engaging to the reader.

Over the past four years we have featured a vast array of contributors. Notable among them are former President Gerald Ford, Democratic presidential nominee Sen. John Kerry, Attorney General John Ashcroft, Gov. Howard Dean, filmmaker Oliver Stone and many others. Alongside these big names we have published commentary from undergraduates, graduate students, Yale faculty and outside academics. The goal has been to foster a discourse across all of these groups – from the youngest freshman at Yale to former presidents of the United States – about what issues and topics are important to this nation and to our world.

Looking back, we believe there are certainly some things that we could have done better in accomplishing our aims. Yet we are firmly of the mind that each issue has been better than its predecessor, that the quality and content we have produced have consistently improved and that this magazine will continue to grow. We are confident that *The Politic* will continue to be a vibrant source of information and commentary in the Yale community in the years ahead.

Now as we approach the presidential election of 2004, the first test of whether *The Politic* has begun to reach its goals as a publication has arrived. Is our campus more vibrant with political discourse today than it was four years ago? Will voter turnout this year be higher among young people than in 2000? Will more than half of eligible Americans vote this time around? We believe that the answer to all of these questions is a resounding yes.

Certainly, *The Politic* cannot take credit for all of these accomplishments. World events, a more partisan tone nationwide and the increasing amounts of money being spent on all sides of the 2004 election all contribute to what will likely be a larger voter turnout in 2004. Yet we hope and believe that we have played a small part in contributing to the ongoing dialogue that takes place on the Yale campus every day, that we have helped make the average Yale student a little more informed about political issues and that we have convinced a few more Yalies to give politics another chance.

For, in the end, the power is in all of our hands. Between now and November 2, we encourage you to get informed and become a part of what is truly a day of worldwide importance. We must all make an effort to be heard and make an impact. We all must vote.

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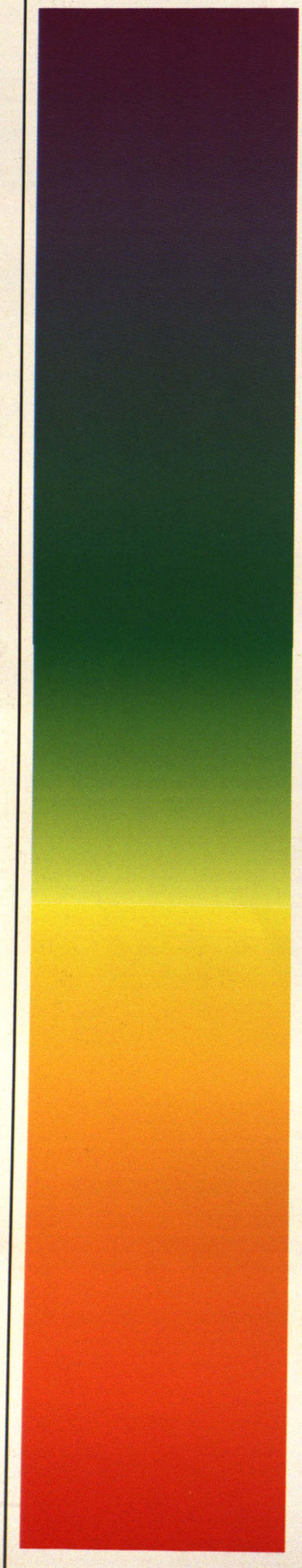

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